

**SHUBHRA RANJAN
IAS STUDY PVT.LTD.**

**POLITICAL
SCIENCE**

**HANDWRITTEN
NOTES**

BOOK-4

2019
(JULY TO NOVEMBER)



Satyendra
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Political Science and International Relations Classroom Programme

Syllabus

PAPER I: Political Theory and Indian Government and Politics Section A: Political Theory

1. Political theory meaning and approaches
2. Theories of the state: Liberal, Neoliberal, Marxist, Pluralist, Post-colonial and feminist.
3. Justice: Conceptions of justice with special reference to Rawl's theory of justice and its communitarian critiques.
4. Equality: Social, political and economic; relationship between equality and freedom; Affirmative action.
5. Rights: Meaning and theories; different kinds of rights; concept of Human Rights.
6. Democracy: Classical and contemporary theories; different models of democracy - representative, participatory and deliberative.
7. Concept of power, hegemony, ideology and legitimacy.
8. Political Ideologies: Liberalism, Socialism, Marxism, Fascism, Gandhism and Feminism.
9. Indian Political Thought: Dharmashastra, Arthashastra and Buddhist traditions; Sir Syed Ahmed Khan, Sri Aurobindo, M.K. Gandhi, B.R. Ambedkar, M.N. Roy.
10. Western Political Thought: Plato, Aristotle, Machiavelli, Hobbes, Locke, John, S. Mill, Marx, Gramsci, Hannah Arendt, Hegel.

Section B: Indian Government and politics

1. Indian Nationalism:

- a. Political Strategies of India's Freedom struggle: constitutionalism to mass Satyagraha, Non-cooperation, Civil Disobedience; militant and revolutionary movements, Peasant and workers' movements.
- b. Perspectives on Indian National Movement: Liberal, Socialist and Marxist; Radical humanist and Dalit.

2. Making of the Indian Constitution: Legacies of the British rule; different social and political perspectives.

perspective of national movements
① Marxist ② Dalit

any one of them } diplomat site
for International Relations
Observer Research Foundation

Aurobindo
Gandhi
Ambedkar

Kapil
Gandhi



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3. **Salient Features of the Indian Constitution:** The Preamble, Fundamental Rights and Duties, Directive Principles; Parliamentary System and Amendment Procedures; Judicial Review and Basic Structure doctrine.

4. **Union and State Government** *

a. Principal Organs of the Union Government: Envisaged role and actual working of the Executive, Legislature and Supreme Court.

b. Principal Organs of the State Government: Envisaged role and actual working of the Executive, Legislature and High Courts. *only Governor in state govt*

5. **Grassroots Democracy:** Panchayati Raj and Municipal Government; significance of 73rd and 74th Amendments; Grassroot movements.

6. **Statutory Institutions/Commissions:** Election Commission, Comptroller and Auditor General, Finance Commission, Union Public Service Commission, National Commission for

Scheduled Castes, National Commission for scheduled Tribes, National Commission for Women; National Human Rights Commission, National Commission for Minorities, National Backward Classes Commission.

7. **Federalism:** Constitutional provisions; changing nature of centre-state relations; integrationist tendencies and regional aspirations; inter-state disputes.

8. **Planning and Economic Development:** Nehruvian and Gandhian perspectives; role of planning and public sector; Green Revolution, land reforms and agrarian relations; liberalization and economic reforms.

9. **Caste, Religion and Ethnicity in Indian Politics.** *[as paper - post Independence]*

10. **Party System:** National and regional political parties, ideological and social bases of parties; patterns of coalition politics; Pressure groups, trends in electoral behaviour; changing socio-economic profile of Legislators.

11. **Social Movements:** Civil liberties and human rights movements; women's movements; environmentalist movements

PAPER II: Comparative Politics and International Relations and India and the World

Section A: Comparative Politics and International Relations

1. **Comparative Politics:** Nature and major approaches; political economy and political sociology perspectives; limitations of the comparative method.

2. **State in comparative perspective:** Characteristics and changing nature of the State in capitalist and socialist economies, and, advanced industrial and developing societies.

Repealed from 1st paper



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3. **Politics of Representation and Participation:** Political parties, pressure groups and social movements in advanced industrial and developing societies. *Development in Globe.*
4. **Globalisation:** Responses from developed and developing societies. *US hegemony, Imp+ speeches in Economic forum, G-20, Any USA develop-ments*
5. **Approaches to the Study of International Relations:** Idealist, Realist, Marxist, Functionalist and Systems theory.
6. **Key concepts in International Relations:** National interest, Security and power; Balance of power and deterrence; Transnational actors and collective security; World capitalist economy and globalisation.
7. **Changing International Political Order:**
 - a. Rise of super powers; strategic and ideological Bipolarity, arms race and Cold War; nuclear threat;
 - b. Non-aligned movement: Aims and achievements; *in contemporary Nature*
 - c. Collapse of the Soviet Union; Unipolarity and American hegemony; relevance of nonalignment in the contemporary world.
8. **Evolution of the International Economic System:** From Bretton Woods to WTO; Socialist economies and the CMEA (Council for Mutual Economic Assistance); Third World demand for new international economic order; Globalisation of the world economy. *Rajyasabha 201, AIR*
9. **United Nations:** Envisaged role and actual record; specialized UN agencies-aims and functioning; need for UN reforms.
10. **Regionalisation of World Politics:** EU, ASEAN, APEC, SAARC, NAFTA.
11. **Contemporary Global Concerns:** Democracy, human rights, environment, gender justice, terrorism, nuclear proliferation. *Section B (P)*

Section B: India and the World

1. **Indian Foreign Policy:** Determinants of foreign policy; institutions of policy-making; continuity and change.
2. **India's Contribution to the Non-Alignment Movement:** Different phases; current role
3. **India and South Asia:**
 - a. Regional Co-operation: SAARC: past performance and future prospects.
 - b. South Asia as a Free Trade Area.
 - c. India's "Look East" policy.
 - d. Impediments to regional co-operation: river water disputes; illegal cross-border migration; ethnic conflicts and insurgencies; border disputes.



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4. **India and the Global South:** Relations with Africa and Latin America; leadership role in the demand for NIEO and WTO negotiations.
5. **India and the Global Centres of Power:** USA, EU, Japan, China and Russia.
6. **India and the UN System:** Role in UN Peace-keeping; demand for Permanent Seat in the Security Council.
7. **India and the Nuclear Question:** Changing perceptions and policy.
8. **Recent developments in Indian Foreign policy:** India's position on the recent crisis in Afghanistan, Iraq and West Asia; growing relations with US and Israel; vision of a new world order.

Reference Material

Primarily you will have to depend on class notes and any additional printed material that will be provided in the class. Still, if you feel any need and if you have time, you can **refer the following material selectively.**

1. Western political Thought: O. P. Gauba
2. Introduction to Political Theory – O.P. Gauba.
3. Indian Political Thought- O.P. Gauba
4. India's Struggle For Independence – Bipan Chandra
5. Indian Government and Politics- B.L. Fadia
6. The Oxford Companion to Politics in India- Pratap Bhanu Mehra
7. Comparative Politics- J.C. Johari
8. The Globalization of World Politics- Baylis Smith
9. International Relations -V. N. Khanna

*Global politics
= Andrew Heywood*

Note: Refer the above reference books selectively. Also, repeated reading of few standard texts is better approach over reading large number of books.

For More Details

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18/9/18
cl-70

INDIAN POLITICAL THOUGHT

①

Q1: To what extent is it appropriate to suggest that Indians had the tradition of political thinking?

Q2: Why is the status of Indian political thought contested?

Q3: Discuss the salient features of Indian political thought & compare it with western thought.

Q4: Discuss the ancient traditions on Indian political thought.

Q5: Discuss the major components of Ancient IPT.

Q6: Discuss the major components of Modern IPT.

CONTEXT OF THE DEBATE

It is widely assumed that Indians lack political & strategic culture.

It is assumed that India is not a place to look for political wisdom but only a place to look for spiritual wisdom.

Indians have made huge progress towards the spiritual aspects of life.

Indians have ignored the material well being.

Politics is this worldly (Material world) whereas Indians have

been concerned about the "OTHER WORLD" (WORLD OF GOD) → Spiritual world.

Hence, in western world, status of Indian political thought remains contested.

Indians are always looking for spiritual wisdom rather than political wisdom. Indians are spiritually progressed.

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— However, it is not correct to say that Indians lack pol. thinking —

⇒ when west describes India empty of political wisdom, it reflects their ethno-centric attitude ^{By saying this they had added their hegemony that their culture is better than Indian.}

⇒ Similarly when west ignores Indian pol. thinking, it can be seen as the western attempt to maintain its cultural, ideological hegemony.

* Acc. to Prof. V.R. MEHTA, the failure of west to recognize Indian thought can be because of LACK OF UNDERSTANDING of Indian way of life by people in west. ^{only his own thought of his own culture}

→ There is a big difference in outlook of East & West ^{reads in western perspective.}

↳ West thinks in DICHOTOMOUS lines. West has made difference between Man and Society; Nature & Culture; Politics & Ethics

↳ Indians have always looked things in CONTINUITY. ^{In Indian society & culture there is both} we have never separated Man & society, Nature & Culture; Dharma & Dharmot. ^{In Indian society all are interlinked}

Hence, in order to understand Indian perspective on politics & statecraft, it is necessary to understand INDIAN WAY OF LIFE of on the unique way of Indian thinking.

* Acc. to Prof. MORRIS JONES,

The neglect of Indian pol. thought will result into Impoverishment ^{process of becoming poor} of WEST.

* MAX MULLER, who is regarded as one of the greatest INDOLOGISTS, have acknowledged that Nowhere in the world human mind has dealt with various qns. of life in such a depth as in case of India.



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India has been a source of enlightenment for the world

⇒ To conclude we can say that it would not be appropriate to say that Indians lack political wisdom. There are various Indian texts like

✓ HANDISKRIT

✓ ARTHASASTRA

✓ RAMAYANA

✓ MAHABHARATA

✓ SUKRA NEETI

we can't say that Indian lacked political thought when we see the ancient text they have huge political wisdom.

and other pol. texts which contain huge political wisdom

⇒ Besides Hindu texts, the BUDDHIST & JAIN texts also discuss

the ▷ Principles of statecraft

▷ the ideals of kingship

▷ Objectives of Governance

their method may change from hinduism but their text also discuss about politics

Salient Features of Indian Political thinking

→ Enormous continuity in ancient & modern Indian thought

→ there is a continuity in the concept of DHARMA & DHAND Panchama

→ Indian political thought is COMMUNITARIAN The way of life which hold for life on earth.

→ Indian tradition has been PLURALISTIC Connecting Individuals & Society
more institutions are there for governance.

→ Indian approach is always COSMOPOLITAN. Indians have not defined nation in narrow territorial sense. Existence of various communities, whereas west goes towards homogenisation

↳ Acc. to SANT TOKARAM Entire world is a family

→ Indian tradition is NON-CRITICAL

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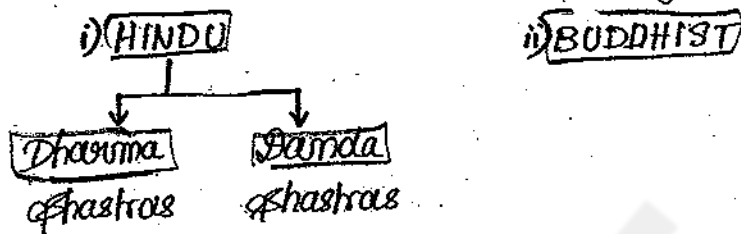
→ In some way, Indian tradition is NOT OPTIMISTIC.

→ Indians take the REPRESSIVE view of History.

^{Backward looking}
^{Pointed out} ^{There is continuity}
What are the Major traditions in Ancient Indian thought?

Acc. to. BHIKHU PAREKH,

→ Ancient Indian tradition can be categorised into:



⇒ Indian tradition reflects CONTINUITY rather than change.

Hence HINDU & BUDDHIST traditions do not differ in any qualitative sense of the term.

↳ We can call BUDDHISM as 'REBEL CHILD OF HINDUISM'. Hence there is a lot of similarities b/w 2 traditions.

↳ Buddhism also believes in the concept of KARMA & REBIRTH like Hinduism.

→ The basic difference b/w H & B is Hinduism represents

^{Buddhism had never said it against Brahmanism. It only against caste system. It was promoted by vaishyas & kings.}
the HIERARCHY OF BRAHMIN & KSHATRIYAS; Buddhism represents the HIERARCHY OF ALLIANCE OF KSHATRIYAS & VAISHYAS.

↳ Buddhism challenged the caste system. Thus more EQUALITARIAN. However, if it is Buddhist or Jain texts, kings are supposed to be kshatriyas.

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⇒ Similarly, 2 Hindu traditions - Dharma & Danda shastras
do not differ in qualitative terms. It is just a difference
of DEGREE rather than kind.
In both there is danda by dharma but differs only in degree (amt) of concept
In Indian tradition there is continuity.
whether it is Dharma or Danda shastra, both texts revolve
around 2 basic concepts: DHARMA DANDA

It is believed that DHARMA can't stand w/o Danda.
without
we can see this in Machiavelli's degree of punishment should be there to else it ends to chaos

In DHARMA SHASTRA, the central discussion is on DHARMA

& discussion of Danda is peripheral.
not that more

In DANDA SHASTRA, texts discuss DANDA as main issue &
discussion of Dharma as peripheral.

Dharma Shastra → Dharma - central
Danda - peripheral
Danda Shastra → Danda - central
Dharma - peripheral

THOUGHTS OF MANU

Discuss the salient ideas found in MANU SMRITI

Intro:

MANU SMRITI belongs to the tradition of DHARMA SHASTRA.

Who was MANU? Acc. to Indian traditions, MANU is Manasputra
of Brahma (originator of the universe)

Manu is one of Sapta Rishi → who was sent
to create cosmic rules called Riti
In order to maintain order in humanity.

Role of MANU:

Manu is the 1st LAW GIVER

Manu has told what is Dharma of different Varnas
what is Dharma?

There is no appropriate word available in any of the
European languages which can be treated as exact
translation of Indian word Dharma. It should not be

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Dharma

not be confused with religion.

Acc to. RIG VEDA, 'Buthum Dharmaam Dhutam', which

means DHARMA is that which HOLDS LIFE ON THIS EARTH.

What will happen when we will not follow Dharma?

It will lead to ABHAKTA (Anarchy)

अधर्म धर्मा
निराश्रयः
अनार्यः

↓ it will lead to

PRAJAY (Catastrophe) → this will bring end to life on Earth

SOURCE OF DHARMA:

→ Dharma is discussed in DHARMASHASTRA.

→ Most well known Dharmaashastra is MANU SMRITI.

→ SMRITI is based on SHRUTI

What are Shruti's?

▷ SHRUTIS represent VEDAS.

▷ VEDAS contain REVEALED KNOWLEDGE. The knowledge is revealed by Brahman to Rishis.

▷ SMRITIS are based on revealed know. found on shrutis. i.e. (part of Vedic literature)

▷ SHRUTIS contain Rta (Pit). It denotes COSMIC LAW (i.e) law of universe/nature.

→ DHARMA is a law to govern human society. It is based on Rta.

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HANU SMRITI contains following ideas relating to Dharma.

i) PURUSHARTHAS

These are 4 goals of life:

a) DHARMA
add me if on exam

b) ARTHA
money

c) KAMA
material pleasure

d) MOKSHA
liberty

The 4 purusharthas show that Hindus took life in a

COMPREHENSIVE sense. They've neither ignored the material nor sensual pleasures. Hence it represents a BALANCED WAY OF LIFE.

They haven't ignored any goal but they are in balance.

4 goals distinct but balanced life with all of them

ii) CONCEPT OF ASHRAMS

Ashrams denote different stages of life with specific goals for each stage.

4 stages

a) BRAHMACHARYA

b) GRHASTHA

c) VANAPRASTHA

d) SANYASA

iii) CONCEPT OF VARNAS

Student

Householder

Retired

renunciation

giving up everything

Hindu society was divided into 4 Varnas

a) BRAHMINS

b) KSHATRIYAS

c) VAISHYAS

d) SHUDRAS

4 varnas

Each varna is to follow its Dharma.

If varna dharma is not followed, APRATAKTA → APRALAY → END

*Govind
B.R. Ambedkar
Dharma is the
seed of life*

Hence, the most important duty of king is to ensure that all Dharma varnas follow their Dharma.

It is for this reason, the king has the Red of Dharma.

*(Dharma)
to maintain law
he uses Dharma*



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iv) CONCEPT OF SANSKAR

There are 16 essential sutials to be followed by Hindus.
These sutials are called Sanskars.

Starting with GARBHADHAN Sanskar ending with ANTEYASTHI.

⇒ Manu smriti also discusses the

✓ origin of state

✓ Ideals of kingship

v) Origin of state:

* QUASI CONTRACTUAL THEORY

Meaning man → then social contracts

→ state is a contract between Man & God.

→ Ch-7 of Manusmriti mentions the 'Theory of state'.

Theory of state
How state is
right is right concept
present in Manusmriti
Big state form
B.B. Manu etc.

Initially there was NO STATE (i.e.) there was ANARAKTA (Anarchy)

In this situation MAISYANYAYA was prevalent. (i.e.)

Right is right - Big fish eating small fish.

Hence people requested Brahma & Brahma created HANU.

HANU is the 1st king & the law giver.

Now, it is the duty of people to obey the laws.

if they don't obey
lead to pralay (anarchy)

vi) Ideals of Kingship: not like

(i) king has divine personality.

8 Gods have given a part of their personality to the king.

thus king combine INDRA, VARUNA, AGNI, VAYU, SURYA,

CHANDRA, YAMA & KUBERA



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(i) There is a difference in idea of kingship in EAST & WEST.

WEST — kings used to have Divine personality + Divine Rights → Monistic

INDIA — king only had Divine personality → It is pluralistic society in East & he had to follow the Rajadharma prescribed by Brahmins

Divine Rights symbolise ABSOLUTE AUTHORITY.

kings did not have Absolute authority. They were UNDER LAW.

kings were to follow RAJADHARMA — Dharma as found in Dharmashastras (i.e.) as told by Brahmins.

(ii) What will happen if king does not follow Dharma?

Acc. to. HANU, such king will go to Hell. → Creating a discourse in mind of king that there is a higher spiritual authority.

(iii) King is supposed to be from Kshatriya Varna.

It was a HEREDITARY institution.

(iv) Duties of King: maintenance of caste system & making them follow their duties if they don't. DAND → war.

→ Follow VARNA DHARMA (or) KSHATRIYA DHARMA.

✓ WAR is Kshatriya Dharma

→ King should have Knowledge of Vedas

→ King should Respect Brahmins.

→ King should get up Early in the morning.

→ King should not sleep on the day time.

→ King should not indulge too much on Hunting, Gambling, Drinking, Gaming.

→ King should not indulge too much with women.

→ King should worship Brahmins daily.

→ King should construct PUBLIC UTILITIES → welfare state

as in subjects happiness lies the king's happiness

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Hinduism is related to Brahmins.

→ king should take care of ORPHANS, PESTITUATES.

→ king should help his people to achieve MOGKSHEN (i.e) 4 purusharthas.

4 goals of life
Dharma, arth, Kama, Moksha.

→ RAKSHAN & PALAN are the responsibilities of the king.

Dharm Shashtra

→ king should administer PUNISHMENT acc. to SHASTRAS.

Arth Shashtra

Caste based
punishment &
lower caste & punishment

▷ In MANU SMRITI, there is no concept of Equality before law.

▷ Lower the varna, higher the punishment for same offence.

→ Manu Smriti also deals with PRINCIPLES OF TAXATION.

Taxation
based on
fertility of
land.

▷ Principle of Taxation directly proportional to fertility of land.

◦ $\frac{1}{6}$ th of produce is king's share from fertile land.

◦ $\frac{1}{8}$ th of produce is from less fertile land.

◦ $\frac{1}{10}$ th of produce from least fertile land.

▷ king also has share from other produces

◦ $\frac{1}{6}$ th Milk, Honey, Meat, Butter & other trading commodities.

less

→ Manu Smriti gives INFERIOR STATUS to WOMEN

▷ they are kept under supervision of man. They are considered as man's resp. their actions has to be guarded always.

Conclusion:

MANU SMRITI is one of the most controversial texts.

Among the advisers of Manu Smriti are: DR. S. RADHAKRISHNAN

Among the critics, the major critic is: DR. B. R. AMBEDKAR

In his book Annihilation of Caste, he asked untouchables to put dynamite on vedas & Manu Smriti.

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(10)

Manu smriti is also criticised by FEMINISTS. ^{as he gave inferior status to women.} Despite criticisms, Manu smriti remains the major text which defines HINDU PERSONAL LAWS.

THOUGHTS OF KAUTILYA

* ARTHASHASTRA belongs to the tradition of DANDASHASTRA.

* Prime issue: STATE CRAFT.

However, it also discusses DHARMA & we see the CONTINUITY between MANU & KAUTILYA. ^{degree is less.} ^{In Indian texts there is continuity.}

* Main ideas on Arthashastra:

⇒ Meaning: Kautilya defines STATE CRAFT as ARTHASHASTRA.

'ARTH' denotes Material well-being. Acc. to him, the MORE

Important objective of the king is to secure the MATERIAL WELL BEING of his people. In his words:

"Material well-being is supreme, attainment of all other goals - DHARM, KAMA, MOKSH depends on Material well-being"

⇒ In ancient times, Land ^{is arth.} was the main source of securing Material well-being. Hence, the:

Main idea of Arthashastra: How to Acquire the land.

It is natural for a state to go for Acquiring Land.

The 1st land to be acquired is the Land of NEIGHBOUR.

Hence Neighbours are NATURAL ENEMIES. Hence, the

ARI

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relations between 2 states are the RELATIONS OF WAR.

⇒ Thus, Arthashastra deals with ART OF WAR like SUN TZU, the Chinese strategist. Hence:

Main ideas of Arthashastra: War, strategic planning,
balance of power, Geopolitics.

⇒ Arthashastra can be considered as the:

"1ST TEXTBOOK IN GEOPOLITICS"

Geopolitics → Science of CAPTURING LAND

↳ Acc. to concept of Geopolitics, Land State is an ORGANISM.

Like any organism, state has to grow.

↳ If state doesnot grow/expand, state will perish/decay.

Arthashastra is the first book on geopolitics so this is the way we can challenge west world's India talker strategy.

Thus Arthashastra challenges the western

view that Indians lacked STRATEGIC CULTURE

GEORGE TANHAM categorically rejected that

Indians had any strategic culture/wisdom.

But KAUTILYA proves him wrong.

It is UNFORTUNATE that policymakers in India have overlooked the wisdom found in Arthashastra.

However, since the beginning of 21st century, with HINDU RIGHTIST PARTY coming to power,

there is a change in the approach of SOUTH BLOCK.

We are REDISCOVERING the ancient Indian wisdom.

REALISM

Defensive Offensive

✓ offence is the 1st Defence

✓ One who attacks 1st has greater chance of winning

EX: CHINA

In 50 yrs, there will be

No Pakistan.

✓ OBOR, CPEC

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Prominent Ideas of Arthashastra:

- 1) State of relations between 2 countries
- 2) Mandal siddhant
- 3) Saptanga theory
- 4) Shadgunya Neeti (6 fold policies)
- 5) 4 Upayas
- 6) Types of wars

1) State of Relations

Acc. to KAUTILYA, the relations b/w 2 states are Relations of WAR, where the strength of IRON prevails.

Thus Kautilya is a REALIST who believes that Inter-state relations are the struggle for power.

acc. to Kautilya
power distribution
these prevail
No. state relations
can be termed
of war.

Acc. to Realist wisdom, inter state relations or International politics is a state of war. Nations are either in the war or in the preparation for war. Hence, in such situation, state can rely only on POWER.

By preparing for the war is the
only way to avoid the war.

Kautilya belongs to the school of "OFFENSIVE REALISM". He believes in POWER REALISATION rather than defense. For them, "Offence is the Best Defence".

as one who attacks
has a greater
chance to win

WAR OF ATTRITION

PAK does this on LOC.

1st we go for self help

If that doesn't help

External Bal. of power

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2) Mandala Siddhant:

Context: RATA DHARMA → KSHATRIYA DHARMA (i.e) WAR.

After coronation, king has to start for EXPEDITION.

In ancient India, there was tradition of different YAGNAS.

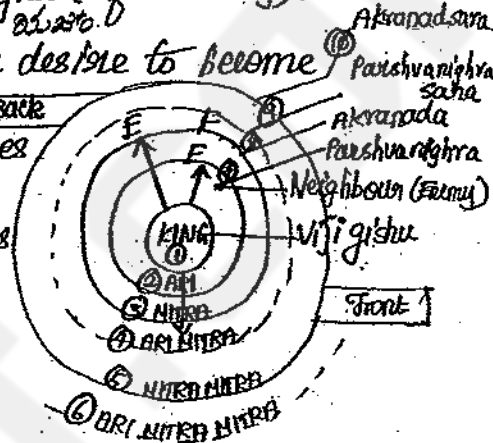
Ex: Aswamedha Yagna; Rajasuya Yagna (after victory).

Acc. to Kautilya; king should have the desire to become

CHAKRAVARTI SAMRAT. He addresses

the king as VIJAYISHU (one who aspires

for victory)



11) Udashina (Neutral)

12) Madhyama (buffer states)

SRILANKA - PAK - Friend

Only Asian country to allow fueling Pak; Pak trains SL AF.

→ Mandala siddhant is based on

the concept of GEOPOLITICS.

→ Acc. to Geopolitics, STATE is ORGANISM.

→ Organism has to grow. For that, it has to expand.

→ If it doesn't expand, it will perish. → Arth is very imp. for goals.

— Thus, states are expansionist by Nature —

▷ Acc. to Indian texts, the duty of the king is YOGI YOGKSHAMA → 4 goals of life.

▷ Achievement of all other goals depend on

NATURAL WELL-BEING → Arth is main that is in form of land.

▷ LAND is the main source of Natural well-being.

▷ It is the compulsion of both kings to expand.

— Thus, Neighbours become Natural Enemy —

As they have to compromise expand & they are 1st target (SLF)

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▷ Both try to acquire same piece of land.

Ex: INDIA-PAK-CHINA have an eye on T&K.

- As per mandala siddhanti, enemy's neighbour becomes a natural friend -

Ex: In present situation INDIA-AFGHANISTAN are natural allies.
↳ due to Pakistan

⇒ KAUTILYA mentions different kings in forward direction:

- ① KING (at centre)
- ② ARI (Enemy)
- ③ MITRA (Friend)
- ④ ARI MITRA (Enemy's friend)
- ⑤ MITRA MITRA (Friends, friend)
- ⑥ ARI MITRA MITRA

When VIKRANTHO prepares for Expedition in one direction, he has to take care of Enemy situated at back.

kautilya calls enemy at back as - PARSHVA NIGHRA

Friend at back as - AKRANADA

In this direction also, he gives sequence of kings (Backward)

- ⑦ PARSHVA NIGHRA ⑧ PARSHVA NIGHRA SARA ^{Friend}
- ⑨ AKRANADA ⑩ AKRANADA SARA

He gives 2 other kings

- ⑪ UDASINA (Neutral)

Ex: TURKMENISTAN; SWITZERLAND

Neutral status:

It is in context of war. If other countries accept the status of any country as neutral, Then that country has to give Equal

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Access to its territory to both parties in war.

Ex: NEPAL aspires for Neutral status. Nepal's demand is against India's national interest. If UN recognises Nepal as neutral, in case of INDIA-CHINA war, both will have access to its territory. At present, only India can use its territory during war under the agreement-1950.
friendship treaty

Acc. to. Kautilya, king should try to bring Neutrals in favour.

(12) MADHYANA (Buffer states)

Buffer states

They are smaller states/territories b/w 2 Major powers.
Their purpose is to avoid 2 Major powers coming into state of direct confrontation.

Ex: NEPAL is ideal Buffer zone b/w INDIA & CHINA.
& Bhutan

Acc. to. Kautilya, king should try to bring Buffer state in his favour.

Ex: India has brought Nepal under its control by 1950 Agreement.

However, India lost strategic advantage when CHINA occupied TIBET. TIBET was also an ideal Buffer zone.

MAX WEBER: Kautilya is more Machiavellian than Machiavelli.
Mach's prince is harmless when compared to Kautilya's king.
Mach didn't write explicit things



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TYPES OF WAR

KAUTILYA mentions 3 major types of war.

Type of war depends on situation of VIRATISHU

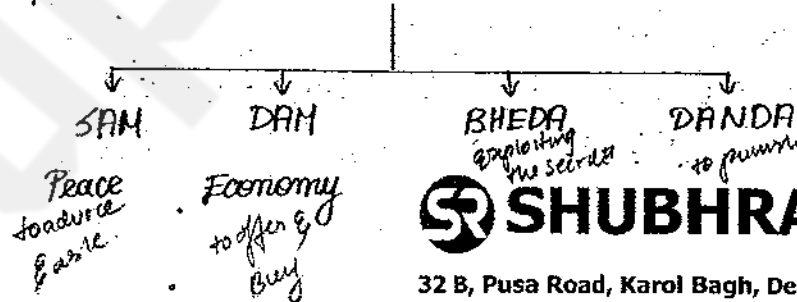
- i) PARAKRAM YUDDHA — Direct/open war *when we are strong power directly open in battle field*
- ii) KOOT YUDDHA — Guerrilla war *if strength of enemy is more*
- iii) TUSHNIN YUDDHA — Proxy war *when we know we will lose. So we will give 1000 cuts from us etc.*

SHADGUNYA NITI [6 Fold Policy]

VIRATISHU can adopt following options depending on situation.

- a) Sandhi [Treaty] — If enemy is strong, go for sandhi Ex: ^{PAK} Shimla Agmt. *Ex: Pakistan - Shimla agreement*
- b) Vighna — Break the sandhi when you become strong. *Asymmetric power*
- c) Aasana [to sit] — Stationing of forces near enemy territory
- d) Yama [movement] — Exercises near enemy territory — *Malabar, Malan* *Builds pressure display strength*
- e) Samashraya [refuge] — Join hands with those who have similar objectives. Ex: QUAD [to contain CHINA]
- f) Dvaidhibhava [Dual policy] — Friendship with one, enmity with other
Don't go for war at 2 fronts at same time, instead make friendship with one enemy for the time being.

4 UPAYAS [4 Fold Policy]



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Kautilya mentions 3 types of victories:

- * Dharmavijaya - By rightful means
- * Lobhaviijaya - Economic inducements to Enemy's army
- * Asurvijaya - By unfair means

SAPTANGA SIDDHANTH [Sapta Banskuti]

✓ It explains the 7 LIMBS OF THE STATE, which also means 7 ELEMENTS OF SOVEREIGNTY.

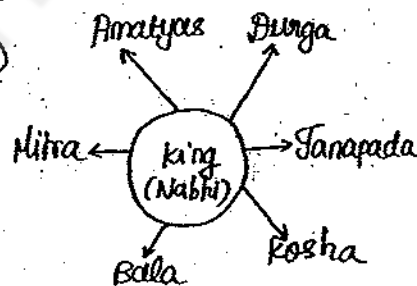
✓ It is an example of ORGANIC THEORY OF STATE.

✓ Kautilya takes SYSTEMIC VIEW of state.

→ State is a system containing 7 elements

i] King: king is the Nabhi of state (centre)

Add
✓ Kshatriya-dharma
✓ 8 Gods...
It is difficult to replace a personality.
King plays the most important role.



→ If king is strong & other elements of sovereignty are weak, the strong & smart king can convert the elements of weakness into elements of strength.

→ If other elements are strong, but if king is weak, it will lead to overall weakness.

Though king is central, yet Kautilya writes that a single wheel cannot turn the chariot. It means king cannot run the state alone but will require help of others. Thus



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Kautilya emphasizes that king should not be arrogant & give adequate recognition to other elements. State is a system of interdependence. He also reminds the king that kingship is a duty - DHARMA. In Kautilya's words: *go for decentralisation*
Rajadharma

"In the happiness of the subjects, lies the happiness of the king"

ii) Amatyas : Senior Ministers

They are mostly Brahmins.

The most important among them is the AMBASSADOR, who is the representative of king/state. King should choose him very carefully.

He should be a trusted person & well-versed in shastras.

He should be handsome.

He suggests that king should have atleast 5 Amatyas

as one can conspire against, even if one will stay with king.

King should have constant vigil on amatyas.

Amatyas can challenge the power of king.

He even suggests king should keep on testing Integrity of Amatyas from time to time.

He gives different suggestions:

King can send his spy to amatyas who can tell that queen is in love with amatyas & is waiting for him at palace & in case amatyas plans to kill the king, queen will provide all help.



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iii] Durg : Fort

Maujiyam empire is known for diff. types of forts.

Kautilya mentions about forts on hill, water, Deserts.

Forts are the symbols of DEFENSIVE & OFFENSIVE capabilities of state. Hence king should be constructing forts.

iv] TANPAD : Places where common man lives, operates, conducts Business & various activities.

It is very important as it provides ECONOMIC RESOURCES.

king has to ensure that his people are happy. [In the happ of ppl...]

Even in case of Tanpads, Kautilya suggests to use spies to remain in touch with public mood.

Kautilya has given a detailed account of spies

He mentions atleast 10 TYPES OF SPIES to be used both for external & internal purposes.

Some of Types of spies are:

- o KAPATIKA - posed as students
- o BHIKSHUKS
- o WOMEN
- o UDASISTHITA - Destitutes/orphans
- o GRAHAPATIKA - Domestic servants

157
Sparrows



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VI] BALA : Military strength.

Acc. to him, army should be composed of kshatriyas.

He believes in hereditary basis of recruitment.

However, if need arises, other varnas can also be incorporated.

Even w.r.t. king, Kautilya is not particular about varna.

He mentions that king can be of any varna but preferably kshatriya.

VII] KOSHA : Treasury.

It should be sufficient to the extent that not only the king is able to fulfil his routine obligations, he is able to meet any sort of emergency. [war, natural calamity..]

VIII] MITRA : Ally

Friends only have SYMBOLIC IMPORTANCE.

[As there is no permanent friend/enemy & it is difficult to identify who is real friend/who is pretending]

They are symbol of STRENGTH OF KING. Everyone wants to be the friend of the strong. Hence if a country starts losing friends to enemy, it is a serious concern. Ex: MALDIVES going to CHINA; ALSO SL, NEPAL.

[In politics, perception of strength is crucial]

Relevance of Saptang theory in Mandala Siddhant:

Before starting expedition, VISISTHU has to calculate the strength of the enemies as well as his own. The 7 elements are the determinants of power. King has to make assessment of 12X7=84 elements of sovereignty [12 kings x 7 elements] to take calculated risk.



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KAUTILYA'S Statecraft on Internal Administration:

Internal & external are interdependent.

Even on Internal admin, king has to take care of Fele of sou.

Spies are
very important
army have
multi roles
→ corruption
→ rebellion
→ Amity & Enmity

Even for Internal admin, Kautilya advises the use of spies to check rebellion.

Kautilya has given special emphasis on problem of CORRUPTION on administration.

KAUTILYA'S views on Corruption:

^{supposed to happen}
Corruption is INEVITABLE part of administration.

Corruption
had become
inevitable

Acc. to him, 'Honey on the tongue - it is not possible not to taste it'

Public officials handle so much resources that they themselves do not realise when they have committed the act of corruption (i.e) EMBEZZLEMENT of public funds.

In his words, 'fish swimming in water will itself not realise when it has drunk the water'

Even when corruption is inevitable, yet it is NOT DESIRABLE.

Why? Because it makes state weak internally & externally.

How? Corruption weakens the capacity of the state to achieve the material welfare of its people. This weakens the morale of ppl.

as corruption
increases morale
of the people is also
lost - org. falls
if they will exploited
so they will not feel
patriotic towards
state

If morale is down, it is easy for enemy to win.

What is the problem in handling corruption?

The biggest problem is DETECTION of corruption. Acc. to him, it is easy to detect the movement of birds flying in the sky but it is not easy to detect when the officials have committed corruption.

Kautilya mentions diff. ways in which officials commit corruption.

In his words, 'There are 40 WAYS OF EMBEZZLEMENT'.

Ex: officials can play with weights & measures

officials can take money out from treasury but enter it later in the account book

they may sell resources at a higher price but enter lower price in the accounts 2 spectrum leading to loss of faith on system.

they may take money from public fund for personal use without entering. [Hence we need CAG]

Though, Kautilya recognizes the difficulty, it does not mean that steps should not be taken for minimizing corruption. He gives following suggestions:

→ Right sizing the bureaucracy

→ Transfer the official before he understands loopholes in office so that they can't spread loopholes & will be to work

→ Give security & rewards to the whistle blowers (soochakas)

→ He suggests to punish the entire chain & not just official.

▷ Punish the person who gives bribe (Dayak)

▷ Punish the person who receives bribe (Matigraha)

▷ Punish who keeps the money (Madhaya)

▷ He suggests for PUBLIC HUMILIATION of corrupt official.

→ Reward the honest officers. (Name - shame, voluntary retirement)

→ Compensate the person who has suffered loss of official's corruption make them to keep trust on the state



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COMPARISON BETWEEN KAUTILYA & MACHIAVELLI

NEHRU in book: Discovery of India has called KAUTILYA as INDIAN MACHIAVELLI.

UPINDER KAUR in her recent book Political violence in ancient India suggests that on terms of time, Machiavelli should be called as ITALIAN KAUTILYA.

→ the 2 thinkers diff. in TIME & SPACE.

Kautilya - Ancient India; Machiavelli - End of Medieval Italy

→ still there are remarkable similarities b/w their thoughts

▷ Both are REALIST scholars.

▷ Both had similar CONCERNS. Both were concerned about the then prevailing situation in motherland. The motherland of both was under threat of foreign invasion.

Both wanted CONSOLIDATION OF MOTHERLAND & ppl's well-being.

▷ Both give similar ADVICES to King / Prince

✓ Kautilya, like Machiavelli, allows king to use all sorts of means.

✓ Machi. makes separation b/w POLITICS & ETHICS,

Kautilya prescribes Daam, Danda, Bheda, Danda

✓ Both support IMPERIALIST foreign policy. However,

Kautilya has given more detailed views.

✓ Both talk about MANAGEMENT OF POWER, DEB. OF CORRUPTION
They discuss about the prince's GOVERNANCE, Handling of CORRUPTION.

✓ Both suggest prince should rule with IRON HANDS

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→ Scholars like WINTERNITZ & BOTTAZZI, while tracing the roots of REALISM also reach to KAUTILYA.

→ Thus there are remarkable similarities, But there are some differences also.

→ For Machiavelli, prince is above Religion

For Kautilya, king remains under Dharmma

RASADHARMA
(Religion is included in the system).

→ Mach. gives generic ^{not specific} advices, whereas

Kautilya gives precise advices

Means exactly how king should be, system should be, taxation, procedure etc. Just like Endoremy then means.

→ Any person looking for statecraft will find ARTHASHASTRA as better guide than Mach's PRINCE.

In Arthashastra proper system of statecraft is mentioned & also says about how to deal with situation in every place with than Machiavelli.

→ MAX WEBER, in his book, Politics as Vocation has mentioned

that Kautilya was more Machiavellian than Machiavelli

(i.e) More Realist than Machiavelli.

Acc. to him, if we look at Kautilya's KING, Mach's PRINCE will look harmless.

→ more careful & more brave like lion & clever like fox
Saptanga theory
Mandala theory
6 fold theory

— Thus, there are lot of similarities in aspirations → mother law circumstances, ideas, prescriptions. —
↳ Japanese

— Kautilya differs from Mach. in the sense that Kautilya got his KING but unfortunately MACH. never got his PRINCE —



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BUDDHIST SCHOOL OF THOUGHT

BUDDHA is not considered as a political philosopher in conventional sense. Yet, scholars like GAIL OMVEDT, KANCHA ILLAIAH believe that Buddha can be considered as political philosopher. Many kings approached BUDDHA to understand meaning of GOOD GOVERNANCE & ideas of INTERSTATE RELATIONS.

Buddhism is other worldly religion in comp. to Hinduism.

Known as PROTESTANTISM OF EAST, challenged some of the Brahmanical traditions like caste system. Buddhism can be considered as EQUALITARIAN, SOCIALIST, REPUBLICAN & RATIONALIST tradition.

Buddhism promoted the idea of DELIBERATIVE DEMOCRACY

by organising the councils as well as maintaining the tradition of DEBATES within sanghas.

Unlike Hinduism which is patriarchal, Buddhism

gives EQUALITY OF STATUS TO WOMEN. Though, initially women were not allowed to join sanghas, but later they were admitted.

Like Hinduism which revolves around concept of DHARMA, Buddhism also revolves around concept of DHAMMA (duty)

The ideal of KINGSHIP, THEORY of STATE is found in Buddhist literature like JATAKAS

one of the important sources to understand DUTIES of STATE is ASHOKAN EDICTS.

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- Buddhism also talks about CHAKRA/MANDAL. *Same as in Kautilyan Mandal theory*
- It also talks about CHAKRAVARTI SAMRAAT.
- However, here the Chakral wheel is not the wheel of chariot but DHAMMA CHAKRA (wheel of Dharma).

→ In Hinduism, king acquires land; *Arthashastra*
In Buddhism, king wins Hearts. *Jataka*

→ Buddhism presents the idea of PHILOSOPHER KING.

Even in Hinduism, there is an idea of PK. *same*

In both traditions, king is supposed to be knowledgeable person, should be well aware of his duties & devote himself for well-being of the people. *Yogeshwar*

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Salient Features of Buddhist Political Thought

i) Origin of state

If Hindu political thought associates origin of state with ARAJAKTA, *Interstate political thought started with Arajaka, anarchy*
Buddhist political thought associates it with FALL OF MAN/CORRUPTION. *Original Rights*
Corruption comes into existence because of the emergence of

materialism → *led to corruption. led to fall of Man*

ii) Origin of king

Buddhism represents REPUBLICAN tradition. *Buddha was also from this kind of tradition*

king is called as MAHA SAMMAT (consensus). It shows that king has been elected by the council.



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iii) Qualities of the king:

BUDDHIST king resembles PLATO's PHILOSOPHER KING.

People have chosen the NOBLEST of all (not strongest)

king embodies WISDOM.

king has a SOURCE of KNOWLEDGE.

} same as P.E.

Importance of king possessing knowledge:

Since power brings corruption, king's knowledge/enforce MORALITY.

King as a Powerseeker & God.
Knowledge seeking God.

iv) Buddhist Foreign policy:

✓ It is based on PEACE & NON-VIOLENCE.

✓ CHAKRAVARTI SAMRAT wins others by DHARMA dharma.

CHAKRAVARTI

daughter of
maharajan
Eng.

* UPINDER KAUR in her recent book, 'Political violence in Anc. India'

mentions major sources 3 to understand Buddhist idea of

KINGSHIP & STATECRAFT

a) ASHVAGOSHA BUDDHACHARITA

b) ASOKA VEDANA

c) JATAKS

Multiple
Buddhist

↳ Acc. to her, Buddhist pol. discourse is much more HETEROGENEOUS

Buddhist
father of
king as a
have character
of ideal king

than we usually imagine. There are some texts like BUDDHACHARITA

which have much in common with HINDU texts.

a) ASHVAGOSHA belongs to BAHUSHRUTIYA school. Ashvagosh has

projected SHUBHODHANA (Buddha's Father) as IDEAL KING.

rather than land.

Ideal king is ATHASIT (control over possessions), CALM, GENEROUS,

LEARNED, TRUTHFUL & is LOVED by people rather than feared.

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→ In the kingdom of Ideal king, rain comes at proper time.

✓ Women give child birth painlessly.

✓ Kingdom is free from Famine, Disease & Dangers.

→ Ideal king is ^{all his subjects} PATERNALISTIC, ^{well meaning & kindly} BENEVOLENT, he does not give

DEATH PENALTY - punishment aims at Reformation.

→ The most important characteristic is COMPASSION. He does not aim to harm others. ^{↳ most imp character of administrator}

→ king is ASCETIC (saint); king is a symbol of SACRIFICE. ^{↳ P.K.}

→ Ideal king crushes the SWOLLEN PRIDE of enemies with

BATTLE OF VIRTUE rather than war. ^{↳ Non violent}

→ Acc. to Ashwagosha, Shuddhodhama is ideal king, yet he had a flaw - He loved his son more than Dhamma. He wanted his son not to turn ascetic & forced his son to remain indulged in sensual pleasures. ^{↳ Symbol of sacrifice?}

→ Ashwagosha mentions BUDDHA as BARVAT SIDDHA. His qualities surpassed the qualities of the ideal king. His potential surpassed the ability of Good governance and created scope for MOKSHA FOR ALL. He represents KARMA; NISCHAYA; PARAKRAM; TEJAS; ATHAVATTA.
(Control of soul). ^{↳ KARUNA} ^{↳ Determination} ^{↳ Brilliance}

→ Ashwagosha mentions that KINGSHIP is 'DANGEROUS DELUSION'. For a kingdom is charming yet full of dangers; like Golden Castle in fire; like food mixed with poison; like lotus pond filled with crocodiles.



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Buddha
had surpassed
the limits of ideal king

- Hence national king prefers to LEAVE HIS JOB :-

limits
responsibility
to political
system

⇒ KINGSHIP DESTROYS PEACE. If you want peace, you will
leave kingship. If you want kingship you will not have peace.

- Like Day & Night; Hot & Cold, they are INCOMPATIBLE.

b] Ideas on ASHOKA

→ BUDDHA is a RENOUNCER;

→ Same as!

ASHOKA is a more the ROLE MODEL for kings.

ONE WHO SACRIFICES

will live in ppl forever

rather than who rule.

EX: GRANDHI > NEHRU.

→ Ashoka is a better example of PHILOSOPHER KING.

→ Ashoka is addressed as PRİYADASSI (king loved
by the people); DEVANAMAPIYA (loved by God).

→ The ideals of kingship are provided by ASHOKA.

→ His edicts give 1st hand account of his own views.

→ As per ASHOKA,

▷ King should live as per DHARMA. Same as Hinduism.

▷ King should SERVE HUMANITY.

▷ He should promote TOLERATION among different religions.

▷ He should forbid CRUELTY towards ANIMALS.

▷ He should go for DHARMA VIJAY.

▷ He should send MESSENGERS OF PEACE.

→ Sent his
son &
daughter.

▷ Should follow policy of NON-AGGRESSION towards Neighbours.

▷ Should aspire to be VIRTUOUS.

He did not do
any force
imposition
to his own
religion
all

✓ Acc. to UPINDER KAUR, Buddhist texts overemphasize on compassion.

c] The other sources are GATAKS. In Gataks, it is mentioned that

✓ Good king provides the best govt; But best king with his
wisdom takes care of entire universe.

→ AGGANA SUTTA mentions

✓ GREED, ARROGANCE, FAISE, LUST, PUNISHMENT destroys king

→ MAHA SUDASSANA ^{SUTTA} ~~SHUDDA~~ also suggest that:

✓ Problem of overwhelming power can be handled only by treating state as MORAL INSTITUTION.

✓ the most important qualities are - GENTLE; LIBERAL; NOBLE; MODEST;

SELFLESS - for a king.

on book king
SHUDDHODHANA

KEY PRINCIPLES / PROMINANT IDEAS OF BUDDHISM

3 Basic Principles

- ① ANICCA - Nothing is permanent
- ② ANATTA - Denial of self
- ③ DUKHA - World is full of sorrow

Important
for Ethics

SB 22.20.20
SB 22.20.20

4 Noble Truths

- ① World is full of sorrow
- ② Ignorance, Greed & Hatred is the source of sorrow.
- ③ Liberation from sorrow is liberation from Ignorance
- ④ To liberate from Ignorance, follow 8 Fold path

8 FOLD PATH

- ① Right Conduct
- ② Right Speech
- ③ Right Thinking
- ④ Right Aspiration
- ⑤ Right Belief
- ⑥ Right Efforts
- ⑦ Right Contemplation & Meditation
- ⑧ Right source of livelihood.

BUDDHIST	HINDU
Other <u>worldly</u>	Not <u>worldly</u>
Republican	Monarchy
Idealist	Realist
Renunciation	Geopolitics - acquiring land

THINKERS IN MODERN INDIA

II SIR SYED AHMED KHAN (1817-1898)

- Qns
- 1] Write short note on role of SAK as social reformer.
 - 2] Discuss SAK's role as moderniser.
 - 3] To what extent it is appropriate to suggest that SAK was the originator of a nation theory? *invariable*
 - 4] Discuss why SAK remains a controversial personality not only among Hindus but also among Muslims.

Introductions:

- ▷ He belonged to an HAJE class among Muslims. His family had been in service of Mughals.
- ▷ He has witnessed the Decline of Mughal power in India. This was the time when Muslim community in India was passing through the phase of DEPRESSION.
- ▷ He was concerned about the state of his community.

→ Sir SAK believed that:

▷ The upliftment of community is possible only with
MODERNISATION OF ISLAM.

▷ Islam as a religion is most compatible with science and Rationalism.

→ He started publishing a magazine titled TENZEEB-UL-AKHLAQ

▷ Through his magazine he started denouncing the OUTDATED
CUSTOMS & TRADITIONS among muslims.

*Customs have been created not to
that period but can be changed
as we develop.*

→ He founded a Society for SCIENTIFIC RESEARCH in Ghazipur (UP).
Later on society was shifted to Aligarh.

*Integrated
traditional with
modern education.*

→ He also founded a Journal for the promotion of scientific
research known as Indian Institute Gazette.

→ He was convinced that the upliftment of muslims is possible
only when they will adopt SCIENTIFIC LEARNING.

*After 1857 Battle muslims were
seen as major reason for war
so they were suppressed &
they developed inferiority*

→ He used to say that muslim youth should hold Book of SCIENCE
on one hand and QURAN on other.

*as he had challenged the wisdom system,
women education & other things*

→ Sir SAK came to be criticised by 'ORTHODOX SECTIONS' from the
muslim community because of his scientific & modern approach.
With Govt. help, he established MUHAMMEDIAN ANGLO ORIENTAL COLLEGE

↓
ALIGARH MUSLIM UNIVERSITY



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Ch: SAK as Originator of 2 Nation Theory

There is a transition in ideas of SAK.

we shouldn't blame him as British it is was Brahminical system which had been prevalent

1st Phase - SAK as advocate of HINDU-MUSLIM unity

► Initially, he was an advocate of H-M unity. He used to say that Hindus & Muslims are the 2 eyes of the beautiful boudie - India. He advised muslims to avoid eating BEEF, respecting the sentiments of Hindu neighbours.

► However, later on his views changed.

Reason for change

Language controversy in AWADH (UP) - Until now, URDU in persian script has been the official language. By this time, there was a growth of movement for HINDI. The Hindi supporters felt that Hindi has become the language of masses. Hence, Hindi should replace urdu as official language.

The controversy took ugly turn. Neither muslims were ready to accept Hindi nor Hindus were ready to continue urdu as official language. The entire controversy disappointed SAK. He came to the conclusion that neither muslims nor Hindus will agree with each other. He even assumed that,

which had been a reality which had created a basis for 2 Nation theory

with passing time, more & more controversial issues will emerge & hence co-existence will not be possible.

In interest of peace, it is better if both live as separate communities. It is because of such thinking he has been called as Originator of 2 Nation theory.

Why SAK was controversial among Hindus?

→ He was concerned of frustration faced by his community.

Reason behind frustration

It was true that Mughal power was on decline. It was also true that Muslims were discriminated by British.

Why? Britishers thought Muslims were responsible for 1857 revolt.

Hence they started discrimination & PREFERENTIAL POLICY towards HINDUS.

→ SAK realised that Brit. is the new force/power emerging in India. He had a foresight to understand that Brit. rule is going to exist for long. Hence, there is no point opposing them. On other hand, Muslim community is hardly in a position to resist British power. Hence, in a given situation, the best approach will be to join hands with British.

→ Since he believed that Education & Modernisation is only way to uplift, only Brit. could provide such resources for achievement of goal.

→ SAK wrote ASBAB-I-BAGAWATE [Causes for revolt of 1857].

In the book, he showed that Muslims were not responsible but the wrong policies of British which forced ppl. to revolt. He has also mentioned no of instances Muslims helped saving life of Brit. officials.

→ Later, he wrote an article Loyal Muhammedans of India.

In this, he has expressed the loyalty of Muslims towards Brit.

Muslims were blamed for the 1857 Revolt. But by his book he made Britishers realise that they were responsible.

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→ He has advised muslims to stay away from INC.

The main reason was not that Congress was dominated by Hindus but that he felt that Brit were going to stay for long and there is no point entering into confrontation with the ruling power.

⇒ For above reasons, he was criticised by Hindus as

✓ Oppositionist

✓ Leader of community rather than Nation unlike other muslim

leaders like BADRUDIN TYABTI who remained INC member.

⇒ SAK was successful in getting support of British in

establishing MUHAMMEDAN ANGLO ORIENTAL COLLEGE in ALIGARH which later became ALIGARH MUSLIM UNIVERSITY.

Conclusion:

His status among muslims is at par with that of R.R.H. ROY among Hindus though he became controversial, yet he emerges as the tallest leader among muslims on the sub-continent. No other muslim leader had contributed for the upliftment of muslims till date in the way SAK had contributed.

So present time is same situation as muslim youth are in. So they should be uplifted by muslims. So they can work for better and educational opportunities for muslims in political sphere. Muslim youth in present times is passing through similar frustration & stagnation. There is a need for a leader like SAK at present who can guide muslims towards importance of educational empowerment & to stay away from polarisation and Radicalisation.

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2. SRI AUROBINDO (1872-1950)

- He belonged to EXTREMIST phase of INC & a critic of Moderates.
- He was against CONSTITUTIONAL METHODS and gave the theory of 'PASSIVE RESISTANCE'.
(different from satyagrah) → withdrawal of power into Acceptance of British rule & school
- He prepared the ground for Gandhiji.
- His biggest contribution is 'Theory of INDIAN NATIONALISM'.
- There is a transition in his life:
 - ▷ He left active politics & moved towards SPIRITUAL UPLIFTMENT.
- He has given the Philosophy of Freedom & Idea of Human Unity.

Introduction:

- ✓ AUROBINDO GHOSH is called as Prophet of Indian Nationalism.
- ✓ Acc. to R. TAGORE, world will come to know the essence of India through writings of Aurobindo.
- ✓ He is a great SYNTHESISER. He has synthesised all philosophical systems of East & West into an INTEGRATED PHILOSOPHY.

CRITICISM OF MODERATES

- ⇒ He was dissatisfied with view of early Nationalists on Brit. Raj.
 - ▷ Early nationalists like S. N. BANERJEE & DADABAI NAOROJI *by Moderates* considered British rule as 'Blessing in Disguise'. They believed Brit. as source of modernisation, hence they should stay on India.
 - They were fearful that if more direct resistance & aggressive attitude is taken, Brit will leave India. Hence they proposed NILD *→ they want the Britishers to stay in India & they believe that they are in modernisation machine*.
- CONSTITUTIONAL Methods (Prayer, petitions, protests) within legislature *↳ Being in disguise*.

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▷ They had great faith in British's Sense of Justice. They wanted Swaraj within Brit. Raj. They wanted DOMINION STATUS for India like other colonies.

Response of Aurobindo Ghose

→ He has written a series of articles 'NEW LAMPS FOR OLD' in the Newspaper 'INDU PRAKASH'. In these articles, he has outlined the approach of Early Nationalists ^{moderately}.

- ✓ Foreign rule is never a blessing, not even a blessing in disguise.
- ✓ Foreign rule will stop the natural growth of a nation. ^{as they will work for the motherland}
- ✓ Foreign rule is nothing but evil.

→ AUROBINDO was the 1ST PERSON who talked about the goal of 'PURNA SWARAJ'. He wanted Complete Independence & not Dominion status.

Why? • Acc. to Aurobindo, Emergence of India as a Nation has a divine mission & is for the BENEFIT OF HUMANITY and not just Indians. Universal spirit is now with India. Universal spirit has chosen India to spread its message. India cannot spread the message from state of SLAVERY.

Universal spirit from all over world to give message at diff point of time. God brought universal spirit in diff places both good & bad.

• Since, Universal spirit is with India, India is bound to emerge as a Free nation. Hence, entire International community should support Rise of India as a Nation.

* Hence he suggested that we need to change strategy.

* He had TWO FAITH in Constitutional Methods.

Why? Brit. govt. in India is not constitutional but a DESPOT

They are not answerable to Indians. Hence const. methods won't work.

What is to be Done? DIRECT ACTION

It can be of 2 types:

i) Active Resistance

ii) Passive Resistance

Aurobindo was not against the use of force. However, he believed that choice of strategy depends on situations.

In INDIAN situation, Active resistance may not be the best.

Hence, go for PASSIVE RESISTANCE. - SWADESHI & BOYCOTT

What type of program in passive Resistance?

Strike at the very root of Brit. Colonialism.

Root? India as a Source of Raw materials

India as a market for Brit. products.

Hence, he suggested SWADESHI & BOYCOTT

He was the main inspiration behind the Swadeshi move in Bengal.

He suggested to boycott British ports & Brit. admin. to convince Indians that they can live w/o Brit. institutions.

He also proposed NATIONAL EDUCATION. He was convince that

Brit. schools are meant only for the production of 'LOYALISTS'.

Hence PASSIVE RESISTANCE - SWADESHI & BOYCOTT is the only viable option.

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AUROBINDO'S THEORY ON NATIONALISM

Criticism of Early Nationalists

His understanding of Nationalism in general

He is inspired by western scholars esp GERMAN scholars like

• HEGEL • HERDER • BERGSON • SCHOPENHAUER • NIETZSCHE

• LANPRECHT

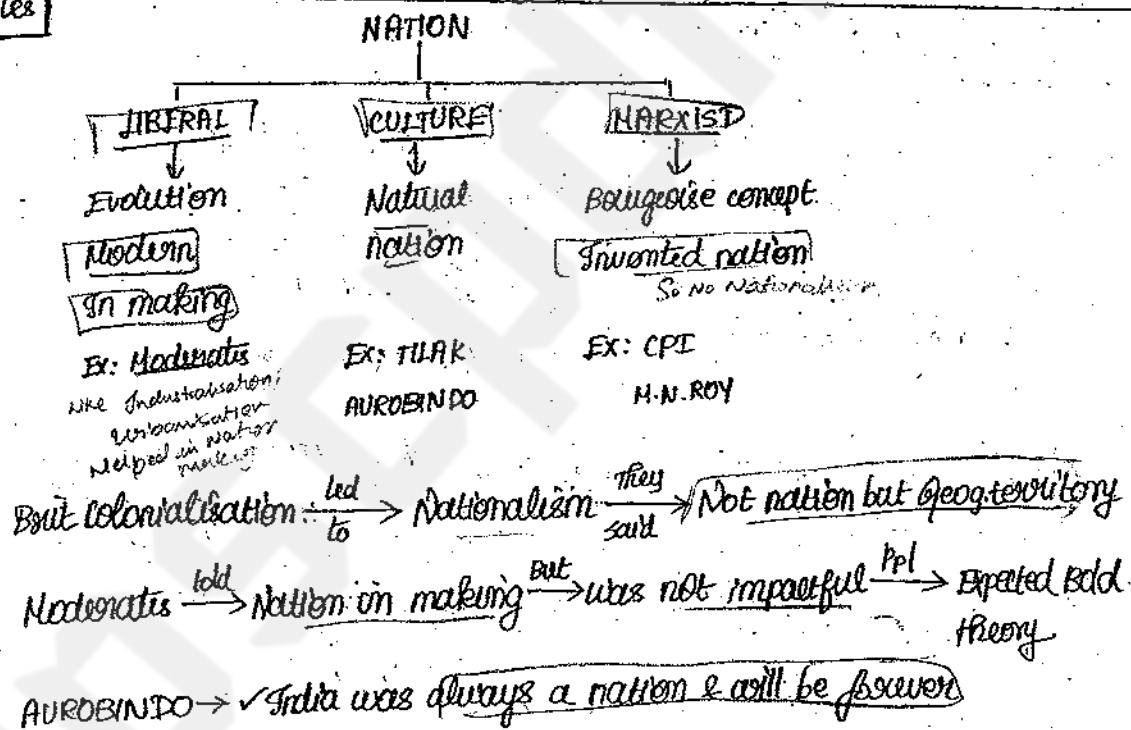
His view on Indian Nationalism

• VIVEKANANDA • BANKIM CHANDRA CHATTERJEE

His views on India as a Nation & Purpose of Indian Nationalism

Notes

Extra Notes



He depicted that Nation as a civilisation
It's destiny is to rise as
diff. times diff. spirits

✓ Not dependent of PNC Powers

✓ Universal Spirit - God - Human unity

↓
reveals itself in diff. forms - every civilisation is an
expression of an aspect of universal spirit

GREEK CIVILIZATION - Aesthetic, Beauty aspect
ROMAN CIVILIZATION - Morality & Ethics aspect
BRITISH CIVILIZATION - Materialistic aspect
GER/ITA-FASCIST - Evil aspect due to fascism
INDIAN CIVILIZATION - Spiritual aspect (nearest to God) ^{So Indian is destined to be nation}

Universal spirit through such different expressions delivered DIFF. MESSAGES to the world. Now, it has chosen INDIA to spread SPIRITUAL MESSAGE - Aurobindo

Nation itself is God & a spiritual aspect

Reflection of God

Nation should become the New Religion; Worship Nation.

NOTES END

CONTEXT of Theory of Nationalism:

Colonial masters have thrown the challenge of IDENTITY OF INDIA as A NATION. They held that India is not a nation, it is nothing more than 'GEOGRAPHICAL EXPRESSION' by British.

Nationalist Response:

Nationalist response came in 2 forms:

- i) LIBERALS / Early Nationalists → They accepted that India is not a nation but India is a 'NATION IN MAKING' [S.N. BANERJEE] ^{moderate} (It may depict the nature of the freedom fighter)
- ii) EXTREMISTS → Extremist leaders like TILAK, B.C. PAUL, AUROBINDO

rejected the approach of both colonial masters & Early Nationalists.

✓ They had established that India is a Nation

or India was a Nation from the beginning



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CRITICISM OF EARLY NATIONALISM

AUROBINDO had applied the concept of German scholars which held that Nation is Natural & Nation has a spirit.

spirit may be dormant but cannot be denied.

(currently Indian spirit is sleeping)

→ He suggested that old men of India (MODERATES) need new lamps to see the spirit of India as a Nation.

→ He held that it is irrelevant to understand Indian Nationalism through the Western ideas put forward by Colonial masters.

Rather we should read within & from India

*Modals → Traditional
Extremes → Subversive*

To understand Nationalism, we have to look at 'HISTORICAL PROCESSES' which are taking place within India.

Moderates are unable to see the spirit of nationalism among youth

✓ To meet the spirit, we need a 'BOLD THEORY OF NATIONALISM'

× He also warned Moderates to stop praising British. If we continue to praise British, it will weaken the morale of those who aim to fight British.

Aurobindo added Spiritual Blend so to get life into it

AUROBINDO'S CONCEPT OF NATION

Theory of Nationalism

Every Nation

is a universal spirit

idea (spirituality)

should look at Indian scholars rather than West

Modals should change their stance regarding British

* He has spiritualized the concept of Nation.

→ Inspired by GERMAN scholars, he held that Every Nation

is a reflection of one on the other dimension of the Universal Spirit.

→ In this way, he also est. that ultimately ALL HUMANS are

part of the (universal spirit)



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→ Thus, in his theory of Nationalism, we can also see the Idea of HUMAN UNITY or Integral view of humanity.

* Thus, he represented the CIVILIZATIONAL VALUES of INDIA.

▷ The value of VASUDEVA KUTUMBAKAM. This idea was also expressed by VIVEKANANDA when he addressed Americans as 'Brothers & Sisters'.
complete world is a family → cosmopolitan view

→ Thus, AUROBINDO never believed that the Idea of Nation is against the Idea of COSMOPOLITISM.

* → Acc. to him, aim of every nation should be to SEEK ITS OWN FULFILLMENT

• BE AWARE OF ITS OWN POTENTIALITY

Nation part of spirit
Nation & world not so different.

It will be foolishness if we imitate others. It means every nation has a specific purpose to expressing an aspect of universal spirit & each nation should understand & develop its own destiny.
India → Spirituality

* AUROBINDO believes in the IDEAL OF GITA.

Acc. to GITA:

✓ One should follow the Law of one's own Being

(i.e) Human, Pig, Lion

↳ should not imitate others

✓ When one follows one's own DHARMA (Duty/natural potentiality)

it leads to Rebirth But when one leaves own Dharma

follow other's Dharma, it only leads to SUCCESSFUL SUICIDE

→ However, he does not suggest that we should cling to everything that is Indian or avoid anything western.

we should take what is good from them but never forget our culture. Keep the windows open but doors closed.

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✓ we have to negate the evils:

✓ we have to take good features of both. → i.e. what Aurobindo had done
Integrated philosophy.

* He also shows that fall of India happened bcoz we emphasized too much on TAMAS (Dark elements).
fall of India bcoz of tamas (darkness)

* He also held that British rule was a necessity, like a hammer of God to punish, eliminate Tamas & revive at the original spirit.

* He suggested that universal spirit has expressed itself in different nations/civilizations

◦ GREEKS → Dimension of Beauty

◦ ROMANS → Dimension of Ethics

◦ BRITISH → Dimension of utilitarianism / Materialism.

It is not that only good elements are expressed even evil too.

◦ FASCISM → Dimension of Evil

◦ INDIAN → Dimension of SPIRITUALITY / Universal spirit.

→ India represents the spiritual element & must fulfill the DIVINE MISSION - To spread the message of spirituality.

* 19th century India — Imitative, Forgetful, Artificial

→ Imitation leads to death, sterilization.

→ India should be aware of its own role.

→ Like individual, Nation has a Body, mind, soul, Temper

AUR & VIV's concept
very diff. from
Hindu Maha Sabha

this is
imitation

UPHOLDING of INDIA

Only possible via

SOFT POWER

Nuclear weapon X

Mass of Peace ✓

↳ Indian culture

CREATION OF PAK

↳ not foolish

↳ India has always

been of this nature

↳ Religion, pluralism

(LULU)

Shyam Sauram - Book

↳ India must not compromise

with fund. principles of

Indian culture -

AUROBINDO ON INDIAN NATIONALISM

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* He was critical of early nationalists who believed that INC has to convene sessions at different places to arise the spirit of nationalism.

→ AUROBINDO held that Indian Nationalism does not depend on 'congress pandals'. Indian Nationalism is eternal.
original & genuine SW. Ind. Nationalism rather than PC Pandals.

* He was influenced by NEO-VEDANTISM OF VIVEKANANDA

→ Neo-Vedantism

It is a criticism of Brahminism. Vivekananda believed that Brahminism (caste system) has harmful unity of India.
Brahminism is the main reason for 2-nation.
He appealed to end Brahminism & to bring the original

'SAMATAN DHARMA' → as all are children of god there will be no difference & Satya is supreme.
Brahminism

→ Values of Samatan Dharma

we all are children of one God

→ It was Vivekananda who first gave UNITY IN DIVERSITY existing in India on basis of Samatan Dharma.
as all are children of god
cosmopolitan view

✓ Acc. to him, amidst the diversity which we find on the subcontinent exists the FUNDAMENTAL UNITY. → as we follow Samatan Dharma

✓ Fundamental unity is expressed in WAY OF LIFE observed on subcontinent from E TO W & N TO S.

→ this Fundamental unity is the BASIS OF INDIAN NATIONALISM.

→ VIVEKANANDA had appealed to youth in India. He appealed that NATIONALISM SHOULD BE THE RELIGION OF YOUTH!

→ He appealed "ARISE, AWAKE & STOP NOT UNTIL THE GOAL IS REACHED"

⇒ AUROBINDO has also based Idea of Indian nationalism on Sanatani Shrama. → UNIVERSAL SPIRIT, COSMOPOLITAN

✓ He also held Nationalism must become RELIGION OF YOUTH.

Nationalism as Religion → We need same level of commitment to nation as we have for Religion.
They should show same commitment to nationalism as they do for religion.

* AUROBINDO'S spiritual Nationalism was inspired by

BANKIM CHANDRA CHATTERJEE'S concept of MOTHER INDIA as KALI.

B.C. Chattajee appealed to the patriotism of the youth.

He held that we all are children of mother India.

We should not accept our mother on chains.

He symbolised India with GODDESS KALI - SHAKTHI.

He warned that Shakthi of mother India is challenging Brit India.

This shakthi is expressing millions of Indians who are ready to challenge foreign rule! → on a spiritual way depiction

Even Aurobindo incorporated the idea & spiritualised the entire concept.

Britishers should be fearful of the power/shakthi of mil. of Indians.

Acc. to AUROBINDO "Nation is not a piece of land,

Nation is not a collection of Human beings,

Nation is not a figure of speech,

Nation is not the figment of ppl's imagination,

Nation is not a political program

Nation is not an intellectual pastime

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Nation is a Faith

Nation is a Religion

Nation is Divine

Nation has a Spirit



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AIM OF INDIA AS A NATION

* India has to deliver the DIVINE MESSAGE - MESS. OF SPIRITUALITY

✓ Only India can deliver this message. It is God's will → to spread message of Spirituality

✓ It is duty of Indians to God.

✓ Now universal spirit is expressing itself in the form of INDIAN NATIONALISM. God itself is driving the movement.

✓ The rise of India is unstoppable.

→ as its gods will.
- Hence, instead of opposing the rise of India, World should support the rise of India.

Universal Spirit
is now expressing
itself in the form of Indian
Nationalism

OTHER IDEAS OF SRI AUROBINDO

Aurobindo's CONCEPT OF LIBERTY / FREEDOM

Freedom is SUPREME VALUE

Freedom can't be compromised.

Freedom is ESSENTIAL for both Individual & Nation

In his words: "Craving for Freedom is lodged so deep in human heart that even words of arguments are powerless to disapprove it."

Type of Freedom: Aurobindo has analyzed existing types of Freedom:

26/2/2020
Freedom previous
Liberty Union Theory

LIBERAL/ANARCHIST VIEW This view of freedom is MECHANICAL.

It ignores the importance of society.

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Perspective of
Liberty should not be seen as a device to satisfy only one's
own impulses w/o taking into consideration impulses of others.

It is
more of
an individual
way so the
prominence of
society may
lead to
anarchy
The biggest flaw of this concept is → It puts Individual
against the society → may lead
to anarchy

SOCIALIST VIEW

Socialism gives primacy to society but completely ignores Individual
It forces individual to give up freedom.

What should be the idea of Freedom?

Any theory of Freedom should be such which allows
individual to achieve freedom on a way which is not
detrimental to the society.

Plato type
concept

Where is the source to understand Freedom?

⇒ To understand the meaning of Freedom, the source is SOUL.

Soul Searching
is the way
to attain freedom
without knowledge
How to enjoy freedom is just
words
One should follow the message of soul Bcoz only then
we can have Peace.

⇒ Acc. to him, Freedom is "OBEYING THE LAW OF OUR EXISTENCE"

Freedom respecting
means
co-existence
We are humans. We should not live like animals.

We should live in harmony with others incl. Environment.

⇒ the real freedom is INNER FREEDOM

the real power is INTERNAL POWER

It is power to obey; It is power to move towards perfection
of our Nature.

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⇒ Freedom is not just fulfillment of mental/physical needs.
Freedom is Flourishing of Divine within us ^{2nd}
Freedom is not just materialistic rather its spiritual i.e.

⇒ Solution of problems do not lie in REASON (Mind) ^{super rationality.}
But solution lies in the SOUL, in SPIRITUAL TENDENCIES.

It is only when we follow this inner freedom, we can create perfect social order, the ideal society.

Solution not found in soul so what? Freedom is not just searching society & social order

⇒ Thus liberty is the law of Spiritual Society.

Liberty is possibility of achieving True spiritualization.

Rights are following SWADHARMA (Duty)

* AUROBINDO was initially talking of SWARAS for nation,
But later started talking about struggle for individuals.
He shifted from POLITICAL → SPIRITUAL freedom

Even Gandhi had given the message as struggle is not only for nation but for individuals also independence to self

* He gave the concept of SACCHIDANAND & 'SUPER MIND'

SACCHIDANAND = (SAT + CHIT + ANANDA)
Truth Reality *2nd super mind use (consciousness)* *happiness*

✓ The purpose of life is Attainment of happiness [ananda]

✓ Attainment of happiness is based on Realisation of Truth or ultimate reality [SATYA].

✓ The realisation of God depends upon achieving the state of 'SUPER MIND' [CHIT]

[When we apply super mind, one can see God in everyone]

How to achieve super mind?

Super mind requires YOGA.

He gave the concept of INTEGRAL YOGA { Dharma Yoga + Karma yoga +
Raja Yoga + Hath yoga +
Gnan Yoga +
Bhakti Yoga +

Intenal Yoga requires ✓ NISHCHYA

✓ TAP

✓ SADHANA

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Aurobindo's CONCEPT OF HUMAN UNITY

Acc to him AGGREGATION is the law of Nature. Nature expects all of us to come together.

If we don't follow the law of nature, nature will destroy us.

There is no other way out for humanity except coming together.

We can't solve contemporary problems w/o coming together.

The ideal of human unity comes from civilizational values

of SANATAN DHARMA. This is the message India has to spread.

It is to be noted that Aurobindo's ideas have become all the more relevant in contemporary times when we see the rise of global challenges.

It is beyond the capacity of humans/single state to deal with these challenges alone.

[3] GANDHI

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* Gandhi is rightly regarded as Father of Indian Nationalism.
It was under him the national movement became MASS MOVEMENT.
Gandhi is the next logical step in the evolution of India as a Nation after AUROBINDO.

There is a lot of continuity in thought of AUROBINDO & GANDHI.

* Gandhi cannot be regarded as a political philosopher in the conventional sense of the term.

Acc. to Prof. HUMAYUN KABIR, Gandhi was not a philosopher but a SCIENTIST.

More than a philosopher, he was a PSYCHOLOGIST.

He understood the MASS PSYCHOLOGY.

Hence, Gandhi emerged as the MOST SUCCESSFUL MASS LEADER.

* There is a TRANSITION in Gandhi. *South Africa or satyagraha led to the India movement. Also Gandhi's entire life was for it.*

Gandhi also moved towards SPIRITUALITY from a MASTER STRATEGIST.
He became NAHATNA.

* Gandhi can be described as a HAN OF ACTION.

He never claimed to know the Truth.

He always inspired people to Find the Truth.

He denied the existence of GANDHISM.

However, Gandhism cannot be denied because there are many persons who consider themselves as GANDHIAN.

Acc. to a SURVEY by TIMES Magazine, GANDHI was the 2nd most loved person after JESUS CHRIST.

→ By End of Means approach only if we follow the path of truth then only we can achieve to go to god. It was way of influencing people by spiritualism.

IDEAS OF GANDHI

- ① Non-Violence
- ② Satyagraha
- ③ Swami
- ④ Sarvodaya
- ⑤ Critique of Modern Civilization
- ⑥ His views on Ends & Means
- ⑦ His views on Rights & Duties
- ⑧ His views on State
- ⑨ His concept of Ram Rajya

SOURCE OF INFLUENCE ON GANDHI

⇒ Religious Texts

▷ Parmayama ▷ Buddhist & Jain texts ▷ Bible ▷ Quran

⇒ LEO TOLSTOY'S 'Kingdom of God within you'

⇒ JOHN RUSKIN'S 'Unto this last'

⇒ SOCRATES

⇒ PLATO

⇒ ROUSSEAU → General will.

Ram Rajya
→ No need
of state
there is self control
Satyagrah



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① AHINSA / NON-VIOLENCE

— Foundational principle of Gandhi —

It is the foundation of all other ideas of Gandhi.
For Gandhi, Ahimsa was his Religion, Creed.

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How Gandhi defines Ahimsa?

AHINSA is a path for attainment of Truth/God.

On what basis can we consider Ahimsa as path to attain God?

It can be ^{established} ~~attained~~ on the basis of 'ENDS & MEANS THEORY'.

Gandhi believed in the continuity of ends & means.

If end is to attain God/Truth, the simple logic is follow

what Gods did rather than what satyam did.

He was inspired by JESUS CHRIST, Lord RAM, BUDDHA.

The life of these personalities reflect Love, sacrifice, Brotherhood, Non-violence.

Hence, Gandhi came to a conclusion that if objective of life is attainment of Truth, AHINSA is the path.

Features of Ahimsa?

AHINSA should not be seen in Narrow & negative sense of terms.

(i.e) Not committing violence. [Love, Brotherhood, Sacrifice]

Ahimsa should be understood in BROAD & POSITIVE sense.

It is to be seen as feeling of LOVE, FRATERNITY.

One can follow Ahimsa only when we have a feeling of brotherhood for others.



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Why Ahimsa is broad?

Not to be practised only among humans but also among
ANIMALS, BIRDS, ENVIRONMENT

Similarly, scope of Ahimsa is as broad as Application in
INTER-PERSONAL to INTER-STATE relations.

^{peace, love, brotherhood & non violence}
Acc. to Gandhi; Ahimsa belongs to world of HUMANS.

Because, humans have Soul.

Soul → Ahimsa
No Soul → Himsa

Himsa belongs to world of ANIMALS

Because, soul is not so developed.

Thus, humans have REASON, CONSCIOUSNESS, and

Animals are guided by APPETITE

It implies that those who apply himsa are humans only
in appearance but not in substance/essence.

Exploiting as a POLITICAL MEANS, Ahimsa became the
'ORFED' of Gandhi.



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② SATYAGRAHA

Satya + Agraaha = (Insistence on Truth)

What is Satyagraha?

It is a MEANS / STRATEGY adopted by Gandhi on his struggles.

Philosophy of Satyagraha:

It is based on the foundational principles of Gandhi

▷ NON-VIOLENCE

▷ ENDS & MEANS

How Gandhi defined Satyagraha?

Gandhi defined Satyagraha as the CONFLICT b/w GOOD & EVIL

Indian freedom struggle was not an ordinary struggle.

It was a fight b/w Good & Evil. British state represented evil whereas Indians represented Good.

If we apply the logic of DIALECTICS, Satyagrahis are bound to win.

Acc. to Gandhi, the objective of National movement is to establish RAM RAJYA.

If aim is to achieve Ram Rajya, methods can't be that of Ravan.

Thus Satyagraha represents the CONTINUITY OF ENDS & MEANS.

Gandhi made distinction between SATYAGRAHA & PASSIVE RESISTANCE.

Passive resistance was given by THOREAU; In India, AUROBINDO

Gandhi was in the habit of giving new meaning to existing terms.

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Acc. to Gandhi, Passive resistance

A person is not using violence bco he thinks that the strategy of violence may not be appropriate in given context.

Passive resistance is a strategy which they use when they are not using violence.

A person thinks the other person against whom it is applied as his enemy.

Where person is thought to be enemy.

For SATYAGRAHI,

Non-violence is an act of faith & not a matter of choice.

There is no enemy for him. Satyagrahi is against the EVIL & not against EVIL DOER.

His/her aim is to end the Evil.

Acc to. Gandhi, "If someone is my enemy, it means I

First do not do evil to others. If you do evil to others, you create an enemy. So, sacrifice is necessary.

It is bco of our actions only enemy is created.

will have to take the responsibility I

may have done something that has turned the other person into my enemy. Hence,

I have to reform myself first". Hence,

He accepts & He always tries to rectify his mistakes.

Satyagrahi has to make the sacrifice.

We should never hate anyone. Rather we should love them. Only we will be able to follow satyagraha.

Sacrifice is possible only when there is a feeling of love.

It means one should love his enemy only then one can follow satyagraha.

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Scope of application of Satyagraha:

Gandhi believed that it can be applied to all spheres of life from PERSONAL TO POLITICAL.

Gandhi tested his technique of Satyagraha in SOUTH AFRICA, kept on modifying techniques perfecting them. → Scientist

He proposed mass satyagraha as well as individual satyagraha.

Satyagraha is application of Non-violence. Non-violence is characteristic of humans. → for animals its violence.

Acc to Gandhi "one cannot degrade other human being w/o degrading oneself first" i.e. why he accepts his mistakes & says that if there is any enemy he is mistaken.

When we use VIOLENCE, we first DEGRADE OURSELF.

③ CRITIQUE OF MODERN CIVILIZATION

Gandhi is not the 1st person or the only person to criticise the modern civilization.

In west, the tradition started with ROUSSEAU.

→ due to modernisation man had become calculative & became more materialistic & utilitarian.

What is there in modern civilization about which Gandhi is critical about?

Gandhi is critical of it not because of its origin in west but because of its NATURE.

The 2 defining features of Modern civilisation are:

Utilitarianism → It reduces man to level of animal first concerned with satisfaction of appetite

Materialism → Over emphasis on material pleasures led to sacrifice of spiritual satisfaction.

Manifestations of modern civilization:

Gandhi made No difference on British colonialism and FASCIST IMPERIALISM.

Thus IMPERIALISM, FASCISM are the manifestations of modern civilization.

Gandhi called modern civilization as SATANIC.

Why Satanic?

It degrades man from status of human being to the status of animal.

Human beings which have capacity to become Gods end up becoming sultans.

Modern civilization has not only harmed human society, it has also harmed the ENVIRONMENT.

Acc. to Gandhi, the path of development which the western world has followed on last 100 years, if rest starts follow the same, at least 9 more centuries will be required.

Source of Influence:

In his critique of modern civilization, Gandhi was inspired by the work of EDWARD CARPENTER - He has demonstrated the negative consequences of modern medicines on human health. This has led Gandhi to think about -ve consequences on different spheres of life.

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What is True Civilization for Gandhi?

True civilization is a civilization which does not degrade man to status of animal but which makes man a better human being

True civilization does not mean satisfaction of wants but

MINIMISATION OF WANTS

[There is enough for man's need but not for man's greed]

True civilization DOESN'T HARM ENVIRONMENT OR SOCIETY

Gandhi, in context of India, didn't favour EXCESSIVE MECHANISATION or production by machines. Instead of mass production, Gandhi

favoured production by masses. Machines should not lead to DISPLACEMENT OF HUMANS. Production should be for NEED & not GREED

Instead of mass production, it is only production for need

Gandhi stated the separation of Ends & Means - the so-called MACHIAVELLIANISM as the defining feature of modern civilization.

Real purpose of Gandhi's critique of Modern civilization:

We can consider it as part of Gandhi's WAR OF POSITION, an attempt to build COUNTER HEGEMONY. Gandhi's critique questions the legitimacy of civilising mission and white man's burden.

Here first he wants to win war of position by reaching view path of development to be adopted by India. Gandhi has discussed the critique of modern civilization on his HIND SWARAJ. In it he has given 'BLUEPRINT' FOR THE FUTURE

of development to be adopted by India.



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④ SWARAJ

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Introduction:

Swaraj can be considered as INDIAN VERSION OF LIBERTY / FREEDOM.

Swaraj has been the GOAL OF FREEDOM MOVEMENT.

The concept of swaraj kept on EVOLVING.

For moderates It was getting greater representation of Indians in governance.

For Extremists It was 'SELF-GOVERNMENT'.

Ex: TILAK, J.L. ROY.

AUROBINDO was the 1st person to interpret swaraj as

Complete Freedom from foreign rule rather than dominion status.

He also SPIRITUALISED the concept of swaraj. Acc. to him, the real meaning of freedom is 'INNER FREEDOM', the realization of law of our being. The concept of freedom has to be compatible with the PEACE & HARMONY in the society.

Gandhi's swaraj is inspired by AUROBINDO. Gandhi has further EXPANDED its meaning. Gandhi's swaraj was also based on ideas of UPANISHADS.

As per UPANISHADS, swaraj implies 'SELF-CONTROL' or control on one's desires. Thus, for Gandhi there is no real swaraj w/o 'SELF DISCIPLINE'.

He was also inspired by LEO TOLSTOY, who held that
KINGDOM OF GOD IS WITHIN YOU (i.e) Man does not require
any external control. *all is inside our soul → soul searching is needed*
Gandhi has explained Swaraj in multiple spheres.

Political sphere → Here, swaraj meant:

PANCHAYATI RAJ - Democratic decentralization. A system
of governance where individual in the centre. *Consensus*

RAN RASTHA - (Stateless Society). Man governing himself.

Economic sphere → Economic swaraj will give: *Self control*

LIFE OF DIGNITY to millions of ppl living in state of POVERTY.

It is a part of Gandhi's CONSTRUCTIVE PROGRAMS. It included

LAND REFORMS - Land to the tiller *with the prob*

REVIVAL OF POTTAGIE INDUSTRIES

PROMOTION OF KHADI

*village
economy*

The model of economic development which aims to fulfil the
BASIC NEEDS w/o harming environment.

Social sphere → Another very strong aspect of CONSTRUCTIVE PROGRAM.

It incl fighting against the evils of:

COMMUNALISM

UNTOUCHABILITY

*Freedom from
overly
mass Hinduism
with sec. or
having Saivism,
Jain, Buddhism*



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Cultural sphere → One should RESPECT ONE'S OWN CULTURE.

If we will not respect our culture, world will not respect us.
Culture is a part of PERSON'S IDENTITY. However, Gandhi

did not have orthodox views. He suggested that one should accept good things from all cultures.

He suggested that, "I do not want my house to be walled in on all sides and my windows to be stuffed. I want the culture of all lands to be blown about my house as freely as possible. But I refuse to be blown off my feet by any" ***

Thus, Gandhi's swaraj was his approach towards addressing the problems of India and aimed at REGENERATION OF INDIA.

⑤ SARVODAYA - 28 Feb Book translated to Gujarati which contains about dignity.

We call it GANDHI'S SOCIALISM?

There is not much originality in Gandhi's Sarvodaya.

Sarvodaya was the Gujarati translation of

JOHN RUSKIN'S Book 'UNTO THIS LAST'

Theme of Sarvodaya:

Gandhi's constructive programme which aimed at giving the LIFE OF DIGNITY to the poor.

As per Sarvodaya, even when we cannot make people equal in terms of Income, we can make people EQUAL IN TERMS OF DIGNITY.

As per Gandhi, the work of Barber deserves Equal respect at that of work of a lawyer.

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Koswodaya of Gandhi can be explained through foll. concepts:

a) BREAD LABOUR

b) TRUSTEESHIP

c) LAND REFORMS

d) REVIVAL OF COTTAGE INDUSTRIES

} later - in Indian pol

* Bread Labour:

Acc. to concept - Every person should perform some amount of PHYSICAL WORK

Why?

Only then, we will REALISE the pain & hardship of those who perform physical labour.

Only then, we will be able to APPRECIATE IMPORTANCE OF MANUAL WORK and we will be able to give DUE RESPECT.

at least
work 2-3 hours
per day
2-3 hrs

* Trusteeship:

It is Gandhi's approach to deal with conflict b/w LABOUR & CAPITAL.

Gandhi does not approve concept of CLASS STRUGGLE or)

NECESSITY OF VIOLENCE

Gandhi believes in the possibility of HARMONY b/w CLASSES.

His ideas come near to ideas of SOCIALISTS BEFORE MARX, who believed in APPEALING TO CONSCIOUSNESS of Capitalists.

Even in his theory of Trusteeship, the fun. principles are:

o NON-VIOLENCE

o CONTINUITY OF ENDS & MEANS

o There is enough for NEED but not for GREED

main motto of Marxism
Capitalists & 50%
of the population
don't work
Don't work
(unemployment)
of property
distribution



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Acc. to Gandhi, Capitalist should consider not himself the owner but as TRUSTEE OF CAPITAL

why? Capital is a SOCIAL PRODUCTION & not just contribution of one.
what is Gandhi's prescription?

Capitalists can keep what is necessary for his NEEDS as well as what is necessary for RUNNING INDUSTRY.

The SURPLUS AMOUNT should be contributed for well being of POORS & OVERALL GOOD of the society.

Gandhi's trusteeship comes near to ARISTOTLE'S

Theory of Property

(i.e) Private Ownership but common use.

In practical sense, it can be applied in the form of CSR

(Corporate Social Responsibility).

Gandhi's trusteeship can be outcried by MARXIST leaders &

Intellectuals like H.N. ROY.

MARXISTS

20 Resources
2000-2005
Poor & Disadvantaged
They project his Trusteeship as a means to PROTECT THE INTEREST of CAPITANIST class rather than Justice to poor.

Marxist Intellectuals project Gandhi as 'spokesperson of Bourgeoisie class'.

They also mention that Gandhi himself belongs to Capitalist class.

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⑥ CONCEPT OF ENDS & MEANS

Gandhi on Role of Ethics in Politics

Gandhi was ^{point} critical of MACHIAVELLIANISM

MACHIAVELLIANISM stands for separation of Ends & Means.

prince can use whatever means to reach the end, that ends justified need to machiavelli

Gandhi believed that separation of Ends & Means is the cause of CORRUPTION in public life & responsible for evils like IMPERIALISM & FASCISM.

Gandhi considered GOKHALE as his POLITICAL GURU.

It was he who has been emphasizing on SPIRITUALISATION OF POLITICS, the need to bring ETHICS INTO POLITICS.

Gandhi was also inspired by GREEK THINKERS - SOCRATES & PLATO who have not separated politics & Ethics.

Acc. to - Gandhi, Politics w/o Ethics & Religion is like a Death Trap.

One cannot come out of trap w/o light of Religion or Ethics.

Gandhi believed in PURITY OF MEANS OVER ENDS. ^{Deontological approach.}

In his book HIND SWARAJ, he held that it would be

illogical to expect rose flower by sowing seed of babool.

Gandhi applied the Ends and means continuity in his struggles.

Hence he called his movements as SATYAGRAHA.

The debate How Purity of Ends & means remain a matter of eternal debate among political philosophers giving rise to 2 schools of thought: REALISM & IDEALISM.

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Realism - Short sighted approach

Idealism - long term vision. Being idealist means
EXTREME REALIST.

④ GANDHI ON RIGHTS & DUTIES

'Rights are present in duties in Embryonic sense.'

Gandhi neither sacrifices individual for the sake
Ends & Means approach of society nor sacrifices society for the sake of
individual.

Like AUROBINDO, Gandhi looks for BALANCE b/w.

Rights & Duties;

Individual & Society → Theory of Freedom by A. Ghosh.

Gandhi is inspired by PHILOSOPHY OF Nishkama
karma in GITA.

GITA suggests to perform our duty.

when we do it, we automatically get our Rights.

Rights & duties are neither Anti-Ethical nor
independent of each other.

when we fulfill our obligations, we get our Rights.

Gandhi's theory of rights come near to ASKI's Theory of Rights & Duties.
[Functional theory of Rights]

INTELLIGENT POLITICS

No EGO must play here.
Long term vision.

Ex: Friendly with PAK
is in our interest
ultimately.

When we are dealing
with PAK, it is
actually PAK+CHINA.

Peace War

can't go together
Either Talks or war.

FOREIGN POLICY

Not a set of
free-jerk reactions
- PRINCE has to be
cold blooded -
anger & ego not
interfere in policy
ultimate aim must
be: ppl's well being.

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⑧ GANDHI ON STATE

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- Gandhi believes that state is ANTI-THEORETICAL ^{against} to idea of Freedom.
- Gandhi is considered as ANARCHIST.
- His Ram Rajya is STATELESS SOCIETY.
- State is not compatible with idea of Non-violence. Even the smallest state requires the instruments of violence.
- State is not compatible with idea of Swaraj. Swaraj means SELF CONTROL.
- Acc. to Gandhi, State is a symbol of WEAKNESS OF MAN.
 Since man can't control himself, state is needed as external control.

It tries to form a state where there is freedom for both individual & importance given to society.

means he can't control himself so there is a need for state

skills
cl-15

GANDHI ON EDUCATION

Nayee Taleem

- Learn from Book of life rather than life from book.
 [Experience learning, phenomenological - Hannah]
- He told to focus on VOCATIONAL EDUCATION - EARN & LEARN
- Like PLATO, Gandhi believes Education to be LIFE LONG EXPERIENCE, hence person should be capable of financing one's education rather than depending on guardians/parents.
- Gandhi gave priority to FORESTRY, NURSING, HOMESCIENCE, HANDICRAFTS.

<u>AMBEDKAR</u>	<u>RAM RAJYA</u>	<u>Gandhi's TALISMA</u>
Community leader, not national leader.	Ideal state	think of a as privileged
Constitutional politics - Bad approach.	every man is in <u>self-control</u>	Load - with responsibility to serve ppl - no appetite
Didn't win even 1 seat	<u>concentric circles</u> (cooperative) - equal	but self control - enough
Not a leader in correct terms	<u>distribution of wealth</u>	for Need but not greed
No big success.	& power - decentralization (67)	

GHANDHI ON WOMEN

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→ One of the BIGGEST ACHIEVEMENT of Gandhi was Successful Association of women in National movement.

→ women played meaningful role in his CONSTRUCTIVE PROGRAMS.

x However, feminists believe that his approach was TRADITIONAL & PATRIARCHAL.

→ Acc. to him, SITA & DRUPADI should be the ideal for Indian women.

why? Both are symbols of MORAL STRENGTH.

Ravana couldn't touch sita bcoz of her moral str/character

[4] M.N. ROY

Critic of Gandhi
Kamraj Kumar
Philosopher

M.N. ROY is considered as REMARKABLE FAILURE by SUDIPTO KAVIRAT.

Why failure?

One of the most learned personality during Freedom struggle.

He can be considered as one of the few PHILOSOPHERS of Modern India.

However, he proved a complete failure in politics.

Contributions:

His biggest contribution is his PHILOSOPHY known as
'RADICAL HUMANISM'

IDEATIONAL JOURNEY OF M.N. ROY

There is a TRANSITION in ideas of M.N. ROY.

He started as a REVOLUTIONARY associated with

He believed that revolutionary method is the way to achieve freedom to India.

As a revolutionary, he was sent abroad to procure arms. He went to USA where he got an opportunity to attend lecture by L.L. ROY.

He was not impressed with INC's approach to deal with problems of masses in India. His search for satisfactory answer made him to know MARX.

To know MARX deeper, he went to MEXICO.

He became founding member of COMMUNIST PARTY OF MEXICO.

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Revolutionary →

Secretly

↳ abroad to procure arms but he went to L.L. ROY's LECTURE & embarrassed him with qns in front of Americans

↳ knew about MARX → MEXICO

↳ Came back to India

✓ supported MARX

✓ Critic of Revolutionaries

✓ Critic of INC & Gandhi

↳ well-known personality in

MARXIST PERSPECTIVE of COLONIAL ISSUES. SO LENIN called him

for COMMUNIST INTERNATIONAL

There too he argued with him

& tried to advise Lenin on MARX

& was ousted out of COMM. INT.

↳ Back in India - Joined INC.

sympathetic to Gandhi.

Tried to convert into Radical

party. But left INC in 1940.

By this time, he got recognition as a Major MARXIST INTELLECTUAL.

Between 1920s-30s, he became SUPPORTER OF MARX & CRITIC OF GANDHI.

He held that INC program is against masses, Gandhi is bourgeois leader. Gandhi is a weak watsky man looking for appointments with viceroy.

Gandhi's program of non-violence was actually violence against masses.

He completely disagreed with Gandhi's strategy for upliftment of poor like Revival of Gandhi.

He called Gandhi a man with Medieval mentality, a Reactionary who is trying to bring Religion into politics.

During this time, there was transition in his ideas also.

He was initially an admirer of MARX but gradually became CRITIC OF MARX.

Even when he was critic of MARX, he considered himself as MARXIST.

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Picked from universities
No ground reality
Pseudo Intellectuals
Even after Independence
continued foolish politics
Very confused lot
supported China in
1962 war.
(70)

Why left? India's join in ww-II
Critic of Quit India movement.
Supported British.

He told INC's ideas will support
Fascist & hence supp. British.

→ when in INC, he outcried
MARX.

→ He gave his new theory:

'NEW HUMANISM' →

'RADICAL HUMANISM'

→ 1945 - Radical Dem. Party
then partyless → Movement

→ No success in politics so
returned to philosophy.

CRITICISM: Opportunistic

RADICAL HUMANISM

Good but not suited for India

→ Rationalist

→ Build Indian society on
scientific basis & reject
caste, religion, etc...

Ex: GANDHI, JANKESH, etc.

Joshi H.N. ROY accepted he was
wrong before LENIN as his
data was wrong.

Real Name: Narendra Nath

Why Communism failed in India?

No indigenous model.

Reached only to elite &
not masses

Parasitically dependent on
Western concept of communism

His DISASSOCIATION with International communism started in 2nd COMMUNIST INTERNATIONAL, which was called by LENIN to decide what should be the approach of 'Communist International towards freedom struggle going on in colonies'. Since M.N.ROY belonged to India, a British colony & had the recognition of Marxist scholar, he was invited for policy making. M.N.ROY developed DIFFERENCES with LENIN & entered into debate with Lenin & was OUSTED from CI. What was Lenin's position?

Lenin proposed '2 STAGE STRATEGY'

1ST STAGE : Support nationalist parties in colonies. Like INC in India; KUOMINTANG in CHINA [Sun Yat-sen].

2nd STAGE : Once imperialists are ousted, Communist International will support Communist Revolution by masses to est. COMMUNISM.

What was M.N.ROY's view?

We should not support Nationalist party as it goes against the principle of MARX.

Not trust INC. like German bourgeoisie class, INC will join hands with IMPERIALIST powers.

Note: Sudipto Kaviraj charges ROY with GUILT OF HETERONOMY

Applying examples of other countries based on superficial understanding.

Acc. to him, COMMUNIST INTERNATIONAL must directly support Communist parties, Peasant & Workers parties.

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He held that masses in India were fully prepared for communist movement & there is no need of a stage strategy. However, later he acknowledged that his understanding was wrong which happened bcoz of wrong data of Indian situation provided by ABANI MUKHERJEE.

There is a transition in his ideas bwn 1930s-40s. He joined INC. He aimed to RADICALISE INC from within. He formed the LEAGUE of Radical Congressmen. During this phase, he became SYMPATHETIC TO GANDHI. He believed that Gandhi's program did help masses. During this phase, he became CRITIC OF MARXISM.

M.N.ROY'S CRITICISM OF MARXISM

He was basically a critic of SOVIET MARXISM

Main principles of Soviet Marxism:

- i) Historical Materialism
- ii) Dialectical Materialism
- iii) class struggle
- iv) Surplus value
- v) Revolution
- vi) Communism

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H.N. ROY criticised these principles.

Historical materialism is not scientific exp. of history. It is ECONOMIC DETERMINISM. It ignores the important roles played by IDEAS in shaping history.

He held that DIALECTICAL Materialism is not materialism but IDEALISM.

He rejected the view that history is a product of class struggle, rather held that history is a product of CLASS CO-OPERATION.

He held that surplus value is not bad. It is bad when not EQUITABLY distributed.

He rejected Revolution in the sense that Revolution means change in the mode of production. He held that real revolution is IDEOLOGICAL - change in mind of ppl & it should happen first.

Instead of Communism, we should strive to get RADICAL DEMOCRACY and COSMOPOLITAN UNION OF FREE PERSONS.

Though he criticised above principles of Marxism, he continued to assert himself as MARXIST & suggested that he is giving HUMANIST INTERPRETATION of MARX.

There is a transition in his ideas in 1940s.

1st he left INC because INC agreed to India joining WWII with Brit. He became critic of Gandhi's QUIT INDIA MOVEMENT & appealed to support British who were fighting fascist powers.



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In this phase, he formed his own RDP (Radical Democratic Party).
RDP was based on his philosophy known as NEW HUMANISM.
He wrote a thesis on New Humanism to explain the program.
However, he disbanded the party & started RADICAL HUMANIST MOVEMENT.
He renamed New Humanism as RADICAL HUMANISM.

RADICAL HUMANISM

⇒ Radical Humanism as described by N-N ROY is a
'PHILOSOPHY OF FREEDOM'.

⇒ Radical humanism grew out of dissatisfaction with existing
major philosophies.

↳ PARLIAMENTARY DEMOCRACY → Inadequate as it does not give
opportunity to masses for ^{lack of} direct participation in governance.
Hence, there is no real freedom until & unless there is
RADICAL DEMOCRACY.

↳ FASCISM → to be rejected as it SUBSUMES / submerges man
under collective ego of NATION.

↳ COMMUNISM → also not liberating as it SUBSUMES man
under collective ego of CLASS.

— Hence, we need a philosophy which gives real importance to
MAN AS AN INDIVIDUAL & which aims to achieve FREEDOM OF MAN.



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What is Freedom of man?

⇒ REAL LIBERATION from all sorts of Fears.

⇒ This includes:

▷ Freedom from Foreign Rule

▷ Political freedom

▷ Economic freedom

▷ Social freedom

▷ Freedom from Religion

⇒ Acc. to him freedom does not lie in choosing religion but freedom lies in MAN'S CAPACITY TO RESPECT RELIGION. that is what it tries to inculcate to others

⇒ Thus Radical humanism aims to liberate man even from supernatural fears. It targets AGAINST SUPERSTITION.

How to get this Freedom?

→ The Freedom will come from promotion of SCIENTIFIC RATIONALITY.

→ He looked at SCIENCE AS LIBERATING FORCE.

→ He believed that there should be promotion of SCIENTIFIC EDUCATION.

— Hence, he believed that INTELLECTUAL REVOLUTION / MENTAL revolution has to precede over political / Economic revolution.

What is the possibility of making people Rational?

Acc. to H.N. ROY every person is Rational.

Man is rational by Nature. Man can't survive w/o REASON.

Hence, there is always a possibility of promoting Scientific Rationality.

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what is the basis to say man is rational?

where is the reason of origin in man?

M.N.ROY does not believe in SPIRITUALISM or God.

He is a MATERIALIST.

He believes that Reason has "Naturalistic/Physiological origin"

physiological origin → Reason in man developed in his struggle for existence/survival.

Thus, he believes in EXISTENTIALIST CONCEPTION OF FREEDOM like SATRE.

Acc. to SATRE, Freedom is made up of 'PROTEIN'

He believes that since man is rational, there is hope for betterment of human society on the basis of Reason.

M.N.ROY suggested that we have to build our societies based on RATIONAL NORMS. Acc. to him ETHICS/MORALITY has Secular origin.

What is Ethics?

ETHICS is a set of principles which society found appropriate for the conduct of social life.

He rejects the view that religion is source of ethics. It is the REASON-SOURCE OF ETHICS.



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What is the message?

These social practices, cultural values which do not appeal Rational at present need to be REJECTED.

Society should be based on SECULAR RATIONALITY.

Thus, Radical Humanism as a philosophy has 3 COMPONENTS:

Freedom

Reason

Ethics/Morality

OBJECTIVE of radical humanism is: Attainment of Freedom in all possible sense of the term. Freedom is possible only on basis of SCIENTIFIC RATIONALITY by rejecting Irrational practices. Society should be based on SECULAR RATIONAL principles of ETHICS rather than Superstitions.

Acc to - N.N.ROY, Radical Humanism aims to establish HUMAN SOCIETY IN HARMONY WITH PRINCIPLES OF NATURE.

Radical humanism rejects Metaphysics, it believes in SCIENCE.

It also rejects DUALITY b/w MATTER & IDEA (Attack on Marxist approach).

Acc to him, ideas emerge during man's struggle for survival but later on become Independent reality on its own.

Radical humanism supports INTELLECTUAL REVOLUTION.

Human brain is most important Means of production. It produces the most important thing - IDEAS.



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The crisis of modern civilisation is lack of faith in innate rationality of man.

Like PROTAGORAS, he also believes that Man is a measure of everything. The progress of society to be measured by the amount of freedom it gives to man.

It is natural for man to be irrational. Man can't survive w/o being rational.

Radical humanism suggests the need for CULTURAL RENAISSANCE.

It suggests constant Research, constant Examinations of our values on light of Modern Scientific knowledge.

Radical humanism rejects Ignorance, Blind Faith, Fatalism (Doctrine of Karma).

Radical humanism has 2 features:

CRITICAL

CONSTRUCTIVE

Critical - Criticising the existing irrelevant modes of technique.

Constructive - Creation of order which gives highest importance for HUMAN FREEDOM.

Ultimate Aim of Radical Humanism

Creation of COSMOPOLITAN UNION OF FREE PERSONS

linked to each other with REASON & HUMANITY.

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M.N.ROY has given a thesis

- | | |
|--|--|
| In 1 st , 2 nd & 3 rd | Importance of Freedom |
| In 4 th , 5 th & 6 th | Humanist Interpretation of History. He has shown role of human actions & ideas |
| In 8 th to 11 th | Criticism of Soviet Communism |
| In 12 th to 22 nd | RADICAL HUMANISM |

SOURCE OF INSPIRATION

RENAISSANCE is the source of Inspiration.

Like Renaissance in west, there should be attempt to bring Renaissance in India.

Why called New Humanism?

Humanism is philosophy of Renaissance.

BUT M.N.ROY'S philosophy is NEW HUMANISM BECAUSE IT IS based on EXPERIENCE OF AGES.

Why called Radical Humanism?

It treats human being on RADICAL (i.e) ORIGINAL sense.
(i.e) Human being as human being & not member of caste,
nation or religion or class.

How to achieve Radical Humanism?

Formation of COMMITTEES. Through this there will be a
MOVEMENT to spread awareness.

DD documentary.



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(11)

26/9/18
Q76

[5] AMBEDKAR

Introduction:

- AMBEDKAR is the talented leader of DALITS in India.
- No other Dalit leader could achieve what Ambedkar could achieve for his Community → View of DHANANTAY KEER [most authentic Biography of Ambedkar]
- Ambedkar is also a controversial personality like SIR SYED AHMED KHAN.

⇒ ARUN SHOURIE in his book 'Worshipping False Gods' has called AMBEDKAR Anti-national. He has given following reasons:

Can't be called as he alone this is community interest

- ▷ Ambedkar opposed PURNA SWARAJ resolution of 1929.
- ▷ On 8th August, 1950 Ambedkar held that Depressed classes should be grateful towards British for improving their status.
- ▷ Ambedkar directed Dalits to stay away from
 - a) Gandhi's Harijan Sevak Sanghs
 - b) To stay away from SNC
- ▷ Ambedkar called PUNA PACT as HIMALAYAN BLUNDER. He wanted SEPARATE ELECTORATE for Dalits.
- ▷ Ambedkar criticised QUIT INDIA MOVEMENT as WILD VENTURE OF GANDHI.
- ▷ Ambedkar supported SINHA'S DEMAND for PAKISTAN.
- ▷ Ambedkar wanted Britishers to stay as he believed that if Dalits want to get developed it can only be done by Britishers.
- ▷ Ambedkar joined the Defence Advisory Committee formed by British as well as Viscount's Executive Council which was set up to gain legitimacy for British efforts.

→ Thus on above basis certain sections of Indian political class & Intellectuals call Ambedkar ANTI-NATIONALIST.

→ Like, SIR SYED AHMED KHAN, AMBEDKAR also emerged as the

Leader of the COMMUNITY rather than leader of NATION.

→ Ambedkar himself held that 'Between interests of Salts & Interest of nation, I will give preference to interests of Salts'

⇒ However, according to ARUNDHATI ROY & CHRISTOPHE JAFFRELOT, it will be wrong to call AMBEDKAR Anti-national.

→ Ambedkar represented the largest section of Indian society [Bahujan samaj], the person representing the largest section of the nation cannot be regarded as Anti-national.

→ On the status of India as a nation, Ambedkar's approach was as practical as that of Jyotiba Phule. It was difficult for Ambedkar to accept a society divided by castes as a nation.

→ The concept of nation acc. to Ambedkar is based on

TRINITY OF LIBERTY, EQUALITY & FRATERNITY. There can be no

nation w/o Fraternity.

↳ Inspired by French Revolution as there is lack of Brotherhood in them so it can't be deemed as nation acc. to AMB

However it does not mean that there was no desire in Ambedkar for India to emerge as a nation.

In his speech to CONSTITUENT ASSEMBLY in Dec, 1946 he held that:

'I know we are divided politically, Economically & Socially. we are a group of warring camps, I myself is a leader of one such camp. However, I am convinced that they will come when we will forget these differences & emerge as a nation'

Ambedkar believed that sooner we accept that we are not a nation better it is as atleast we will start thinking how to become a nation by understanding the reasons by which we are not a nation.

LIFE OF AMBEDKAR

- He belonged to the community of UNTOUCHABLES in Maharashtra. Hence he had 1st hand experience on what it means to be an untouchable in India.
- He was fortunate enough to get opportunity to gain western education. He earned a degree in LAW and started practising law in Mumbai.
- However, because of his caste nobody approached him for his services.
- Hence, Ambedkar realised that even when Salits are educated they will not be able to live the life of Dignity.
- Hence, he believed that UNTOUCHABILITY HAS TO BE ABOLISHED to abolish exploitation of Salits.
- He dedicated himself for the cause of Abolition of untouchability by raising awareness among Salits.
- ▷ He brought magazine MOOK NAYAK;
- ▷ He brought newspaper BAHISHKRIT BHARAT;
- ▷ He established Bahishkrut Hitkarni Sabha, All India depressed classes Federation which was renamed as REPUBLICAN PARTY OF INDIA.

INDIA - PAK

INDIA - SOUTH ASIA

Trust Deficit

LEADERSHIP CRISIS

Always on India
Best out of worst
after Gandhi was
only NEHRU.

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⇒ Ambedkar also adopted Gandhian technique of satyagraha.

He organised Nahad satyagraha asserting the rights of untouchables to take water from same well which is used by caste Hindus.

He was disappointed as he could not get the support of Gandhi for his satyagraha. Gandhi held that for the time being satyagraha should be used only against colonial authorities.

Ultimately Ambedkar felt that it is better for untouchables to take the help of British state on improving their status.

⇒ Ambedkar never believed in commitment of Gandhi towards upliftment of untouchables. One of the grievances of Ambedkar against Gandhi was that Gandhi never kept any fast for abolition of untouchability.

AMBEDKAR'S IDEAS

Ambedkar's main work revolves around Abolition of caste.

⇒ His most important work on issue of abolition of caste is "Annihilation of Caste" [book]

⇒ Ambedkar's analysis of caste can be discussed under following heads:

- 1) Concept of caste
- 2) Origin of varnas & untouchability
- 3) Criticism of Hinduism / Brahminism
- 4) Debate with Gandhi
- 5) Demand for separate electorate & compensation

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⇒ Ambedkar was not satisfied with explanations related to caste system found in religious texts. He attempted the scientific understanding of origin of caste on basis of ANTHROPOLOGICAL RESEARCHES. His important works in this issue include:

* caste in India

* who were shudras ?

* Origin of Untouchability

⇒ AMBEDKAR also rejected the Theory of Aryan Invasion.

As per Theory of Aryan Invasion:

▷ Upper caste has been the Aryans whereas

▷ 'so-called' untouchables were the original inhabitants often mentioned as DASAS or DASYUS.

there is no such historical evidence. It means all castes in India had common origin.

⇒ He rejected the view of MANU SMRITI acc. to which:

different varnas originated from diff. parts of VIKAT PURUSH as mentioned in RIG VEDA also.

In MANU SMRITI, untouchables are mentioned as CHANDALS

chandals are those who are the offsprings of shudra father and Brahmin mother. This shows the pollution of Brahmins by shudras. The entire concept of untouchability is based on PURITY & POLLUTION.

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⇒ Ambedkar has also explained the Origin of Shudras.

As per his theory,

who were Shudras?
Acc to Amb.

there were only 3 Varnas - BRAHMINS, KSHATRYAS & VAISHYAS.

Shudras were originally Kshatriyas. However, they were those Kshatriyas who did not accept the hegemony of Brahmins.

Hence Brahmins stopped Upamanyam Sansadhar for this group.

Upamanyam Sansadhar is linked to purity hence, they remain polluted.
it was believed that

AMBEDKAR'S EXPLANATION OF UNTOUCHABILITY

He has used the term 'DALITS', it comes from

Marathi word 'Dal' which denotes BROKEN &

Ambedkar calls Dalits as BROKEN MEN.

Acc to him, there used to be Tribal way of life & Tribal wars.

Gradually, some Tribes started settled life

when settled life started, Agriculture started

this started the practice of cattle rearing & not breeding cattles for food as it was not needed.

Initially, the main wealth used to be cattle but now it became food.

there were certain tribes which remained Nomadic.

these tribes continued to remain dependent on cattle even for food.

Many of such tribes were defeated & got scattered.

thus they became broken & became weak.

BEFF when guest
Gohanta (because he comes
to eat meat).

vegetarianism

was intro by Buddhism

Brahminism due to

settled society adopted

veg. & started

attacking who didn't

stop eating Beef

UNTOUCHABLES

Acc to Amb, they were

not part of Hindu

society like Shudras.

Hence needed

separate electorate

like for Muslims.

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Settled tribes did not include these tribes within their society. Since they lacked land, they were made dependent on the settled tribes.

There was a CONTRACT b/w those who were living in the village and those who were settled on outskirts of village.

Those on outskirts will 'WATCH & WARD' the security of people in the village and in return will get Food & shelter.

In Manusmriti, they are mentioned as 'ANTYAS' meaning 'Born on the last'.

Ambedkar does not accept the explanation & suggested that they were called Antyaja because they were living outside the village or in the end.

Acc. to Ambedkar, these (many of these) tribes have accepted BUDDHISM. Brahmins targeted them because of Anger because these tribes insisted on remaining Buddhist.

Hence, Ambedkar believed that practice of untouchability is also born of [ANGER & RIVALRY] b/w BRAHMINS and BUDDHISTS.

He even mentions that originally Beef eating was not prohibited. But, to regain the lost space, Brahmins stopped eating non-veg food. This made them claim Brahmins as PURE.

He even mentions that Isogamy was not prohibited among varnas. This practice was later started by Brahmins to show their exclusiveness.

Acc. to him, There is NO PURE BLOOD ON THE SUB-CONTINENT.

Intermingling of blood has already taken much before even the origin of caste system.

He does not consider untouchables as a part of HINDU SOCIETY.

Since they have been socially segregated, they should also be politically segregated. From INC, Harajan Singh

Acc. to him, Any amount of economic equality will not help.

No upliftment is possible w/o rejection of Hindu Social Order.

Hinduism as a religion & caste system as a social order has ruined Dalits.

He even believed that the Social order will ultimately ruin Hindus themselves. It will ruin India itself.

It is bco of Caste system where person's status is based on Birth, Hinduism cannot be 'MISSIONARY RELIGION'. Hinduism cannot go for CONVERSIONS like ISLAM or CHRISTIANITY.

He held that Hindus are not from a Nation they are segmented communities & warring tribes.

He held that Hindus are the RACE OF LOOSERS. They will continue to lose to other religions.

Thus caste system is not just responsible for the exploitation of Dalits but is responsible for the WEAKNESS OF INDIA AS A NATION.

bec even if they convert they don't know in which varna they have to be placed. When as system is already in both Islam & Christianity so they have to stay in their own place.



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Acc-to-him, HINDUISM is nothing but BRAHMINISM. It is the Hegemony of Brahmins.

The core idea of Hinduism is Endogamy. Hence, w/o ending Endogamy caste system can't end. ^{is harder to end caste system} End Endogamy then pure blood concept will end - end of Brahminism.
Hence, biggest anger of Brahmins is against inter-caste Marriage.

Acc-to-him, HINDUISM IS NOT A RELIGION BUT MADNESS.

He held that, 'I had no choice but being born as Hindu.'

^{Class vs Caste} However, it is on my capacity not to die as Hindu. The religion which force poor to remain poor, uneducated to remain uneducated, which allows man to touch excreta of cow but not touch fellow human being is Nothing but Madness.

In other societies Inequality is Social. In Hinduism, there is JUSTIFICATION OF INEQUALITY even on philosophy.

Acc-to-him, Hindus are not bad people. Their main problem is they are HIGHLY RELIGIOUS.

Hence, even Hindu social reforms would not be successful.

There is nothing in Hinduism except CASTE SYSTEM.

One cannot reject Caste being HINDU.

ANNIHILATION OF CASTE requires REJECTION OF HINDUISM.

Hence he held that there is a need to put DYNAMITE ON VEDAS & MANU SHRITI.

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GLOBALISATION

It has strengthened the
IDENTITY CONSCIOUSNESS.
↑ Communalism, casteism

Hence, Ambedkar appealed to Reject Hinduism.

He converted to Buddhism on 14th Nov, 1946.

He held that, 'I am disowning the religion of my Birth. I am reborn. I reject religion which treats me inferior'.

On the issue of CONVERSION,

There was disagreement b/w Gandhi & Ambedkar.

GHANDHI → If person is born in a particular religion, there is (a divine will) one can accept good things from other religion but one should not leave one's religion.

AMBEDKAR → wanted to convert. He even explored conversion in Islam & Christianity. But, ultimately found spiritual satisfaction in Buddhism.

On issue of VARNA SYSTEM,

There was disagreement here too.

GHANDHI → Varna system is Division of labour. It is a feature of even advanced societies. However, Gandhi rejected Caste system and Untouchability.

AMBEDKAR → Gandhi's description is too idealistic, Textual. Varna is Text, caste is context. In reality

INTELLECTUAL CLASS has always been Rulers. They just used Kshatriyas when they were not Rulers.

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BRAHMINISM

Started in GUPTA period

Caste strengthened in this period. Hinduism too came to be called so.

PROBLEM

Problem is not with Dalits but with Monkly of Caste-hindus.

Brahminism - Democracy x
Buddhism - Polity ✓

Even non-Brahmins act like Brahmins & hence the Hegemony prevails.

Brahminism & Capitalism

Appeals to be COMMON-SENSE to people. Hence won't go. Why attraction?

Due to EXCLUSIVITY of their habits, language.

PURITY - like German race, British race.

→ HONOUR KILLINGS to end inter-caste marriage as it will end caste system & Brahminism.

→ One wants to become better by putting off. Ppl won't find happiness in Equality.

Varna exist as caste. Caste is not division of labour but division of labourers. It is also not a sensible economic system.

Profession is not based on merit but on birth. Gandhi's impracticability is evident as he himself was not observing his varna dharma. Hence abolition of caste & Varna is same. Ambedkar organised Harijan sevak sanghs formed by Gandhi. He compared it with POOTNA (the mythological character sent to kill Krishna by nursing poison in form of milk)

21/9/18
Q-11

TODAY: MINT

By: SOUTH ASIA

AMBEDKAR had objections w.r.t. use of the word

HARIJAN

Acc to him, it is a misleading term bcoz it does not tell real status of untouchables in Indian society. It may push them into 'FALSE CONSCIOUSNESS'. Hence, he preferred to use terms

DALITS or DEPRESSED CLASSES.

DALIT REVOLUTION

Ambedkar has analysed the relevance of Marxist mode of revolution in Indian situation. He found that it was not appropriate.

Why? The Basic structure of Indian society is not economic - rather IDEOLOGICAL. BRAHMINISM forms the Basic structure & hence, just Economic upliftment will not give them a life of

DIGNITY.

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Hence, he suggested ANNIHILATION OF CASTE BY PUTTING DYNAMITE ON VEDAS & MANU SMRITI.

Thus, Dalits will have to go for building COUNTER-HEGEMONY.

He was influenced by LIBERAL SCHOLARS like JOHN DEWEY; a lawyer by profession, Ambedkar had faith in CONSTITUTIONAL METHODS.

Acc. to him, Society in India is more exploitative & hence the state can work for Dalits. He favoured STATE LED AFFIRMATIVE ACTION.
→ then State (so preference Constitutional approach) should help state for employment

In this context also, his view was different from GANDHI.

Gandhi favoured PANCHAYATI RAJ

was against STATE LED model.

→ their state if means persons not rational & not controllable more of natural state

Ambedkar found Gandhi's approach TOO IDEALISTIC.

held that Indian villages are 'DEN OF IGNORANCE' where caste system is more entrenched.
→ as the caste system is more entrenched

Modernists like NEHRU, AMBEDKAR favoured STATE LED approach.

Ambedkar knew that change in status of Dalits required the emergence of CONSCIOUSNESS among Dalits themselves.

Hence, he brought magazines, newspapers, established societies for generating awareness.

AMBEDKAR'S MANTRA for DALITS "AGITATE, EDUCATE & ORGANISE"



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Q1: Discuss Ambedkar's Idea of Social Justice.

"Justice is the 1st Virtue....." - RAWLS ^{order} ^{Liberty} ^{Justice} ^{Dignity}
_{↳ theory of Justice.}

⇒ The issue of Social justice has been not only the concern of political philosophers but political leaders also.

⇒ Ambedkar's idea of Social Justice has to be seen in context of peculiar form of INJUSTICES found in Indian society.

↳ The basic composition of Indian society has been based on caste.

↳ Acc. to. Ambedkar Caste system is GRADED SYSTEM OF HIERARCHY, where the life of people at lowest levels is like a hell.

⇒ Ambedkar belonged to the community of untouchables / ANTYAT / the most depressed sections.

↳ SOCIAL JUSTICE for Ambedkar meant a LIFE OF DIGNITY to this section of the society.

⇒ Acc to. Ambedkar, Social justice requires ANNIHILATION OF CASTE.

↳ Since caste is the basic structure of Hindu society, it also means REJECTION OF HINDUISM. For Ambedkar, Hinduism is not a Religion but Madness.

↳ Ambedkar knew that Caste Hindus will not be able to come out of caste system. Hence, the practical approach to Justice in Indian context would be 'COMPENSATORY JUSTICE'

⇒ He believed POLITICAL POWER ^{↳ in the form of separate electorates} is necessary for Empowerment of untouchables. Hence he advocated SEPARATE ELECTORATES.

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but ultimately succumbed to pressure of Gandhi & finally agreed for RESERVATION.

⇒ Ambedkar's idea of social justice embraced the concerns of India's SUB-ALTERN class, the Bahujin Samaj. It included concerns of:

- ▷ UNTOUCHABLES ▷ SHUDRAS ▷ TRIBALS ▷ WOMEN ▷ MINORITIES
- ▷ LABOURERS ▷ PEASANTS

⇒ It was his idea of social justice which inspired him as a law minister to bring Hindu Code Bill. This bill challenged the PATRIARCHY present within Hindu personal laws based on NANUVAD.
The special rights which minorities have in India can be attributed to Ambedkar's idea of social justice.

Q2: Compare AMBEDKAR & MARX

Q3: Discuss Ambedkar's Critique of Marxism

⇒ AMBEDKAR was influenced by MARX's idea of social justice which aimed at ending the exploitation of poor.

However, he felt that Marxist methods are not so relevant in Indian situation. [Brahminism - Basic structure...]

↳ He disagreed with Marx on a basic issues:

i) MARX's concept of RELIGION → Ambedkar did not agree that all religions are 'opium of masses'. Buddhism is not opium of masses. Perhaps, Marx did not know about Buddhism.



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↳ Buddhism as a religion has a lot for nourishment for human soul. Untouchables can embrace Buddhism as it will provide untouchables a SOURCE OF INSPIRATION, SPIRITUAL SATISFACTION and CREATION OF WORLD BROTHERHOOD.

↳ Buddhism is based on KARUNA (Love)

• SAMATA (Equality)

• PRASANA (Rejection of superstitions)

Ambedkar also disagreed with Marx on:

1] MARX's concept of STATE → He didn't agree with MARX's view that state is an instrument of exploitation. Society is more exploitative than state & hence he preferred AFFIRMATIVE ACTION BY STATE.

* If GHANDHI was "FATHER OF NATION"

AMBEDKAR was "FATHER OF CONSTITUTION"

* The 2 leaders had similar aims though their paths were different

* ARUNDATHI ROY addressed GHANDHI as SAINT &

AMBEDKAR as DOCTOR

where the Role of Gandhi ends the Role of Ambedkar starts



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A. Roy's summary
in Book:
Annihilation of
caste. [Outique
of Gandhi]

INDIAN NATIONALISM

Additionally: Role of women in freedom movement

a). Political

POLITICAL STRATEGIES

I. CONSTITUTIONALISM



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What is Constitutionalism?

What types of methods come under Constitutional methods?

Why Early nationalists adopted constitutional methods?

Critical evaluation of Constitutional methods.

Introduction:

→ There are diff. types of political strategies adopted by politicians or pol. groups to achieve political aims.

→ Constitutionalism is a political strategy based on philosophy of LIBERALISM.
constitutionalism liberalism both strategy to achieve their political aims

→ Liberalism is based on assumption that man is rational.

Hence political ends can be achieved by RATIONAL DIALOGUE.

There is no need of use of VIOLENCE for achieving political aims.

What methods come under Constitutional methods?

Constitutional methods can be called as INSTITUTIONAL METHODS.

States can provide diff. institutions like legislature, local government etc. for representation of people's demands, involvement of them in administration, free & fair judicial system for redressal of grievances.

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Constitutional Methods in India:

→ The idea of constitutionalism is itself an IMPORTED IDEA.

It originated in BRITAIN.

It was introduced in India by colonial masters. Britishers have introduced modern institutions like:

- ▷ Rule of law
- ▷ Modern judicial system
- ▷ Civil services
- ▷ Assemblies

many constitutional assemblies
British did, but coercive methods were used
Rather hegemony established 33% legitimacy achieved
(coercive method & 33% legitimacy achieved)
first use of position

→ Britishers did not rule India only by use of COERCIVE METHODS.

They tried to build HEGEMONY by doing certain good actions to Indians. To gain legitimacy of British rule, they incorporated Indians into assemblies & later into ICS.

[esp. after revolt of 1857]

→ Early Nationalists employed constitutional methods

like ✓ Bringing resolutions in assembly

✓ Sending memorials, prayers, petitions

✓ Appeals to Justice

✓ Protests.

Moderates have themselves used constitutionalism approach
(PPP method) Govt only gave
answers to them

→ Thus, constitutional methods differ from DIRECT ACTIONS:

- | | |
|-----------------------------|-----------------------------|
| ◦ <u>Passive resistance</u> | ◦ <u>Satyagraha</u> |
| ◦ <u>Non-cooperation</u> | ◦ <u>Dharna/Hartal</u> |
| ◦ <u>Boycott</u> | ◦ <u>Civil Disobedience</u> |
| ◦ <u>Rebellions, Mutiny</u> | ◦ <u>Terrorism</u> |

not against Govt
not against Govt

o Criminal actions

o Subversions (aiding foreign invasions)

Why Early Nationalists adopted constitutional methods?

① Ideological reasons:

Moderates
&
Western Education

Attracted to liberalism

PPP model

→ Most of them got western education & were impressed by the values of Liberalism.

→ Early nationalists even believed that British rule is

Blessing in disguise. They had great faith in British's sense of justice.

They don't
wonder British
to go rather they want them
to bring more reforms

→ Equality

As not in capacity
of people to handle
freedom. So they felt

That British is
only way where
they can improve
themselves. So British
rule will help in self
development

So that
reign of chaos
can be ended

→ M.G. RANADE thanked Brit. for introducing RULE OF LAW,

Heavenly
god
regd
to take again

He expressed that Brit. rule in India is DIVINE INTERVENTION

to eradicate events of misrule in the past.

→ SURENDRANATH BANERJEE appealed to British to introduce

the Institutions which are truly British in character so

that Indians can rejoice in permanent union with British.

→ DADABAI NAORJI held that British are JUSTICE LOVING PEOPLE.

Indians have to communicate their demand to the British in reasonable manner.

→ RANADE held that British rule is Source of inspiration

hope and confidence. Indians are fortunate that they are ruled by British.

Ass: Write short note on Drain of wealth theory.

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Practical

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① Pragmatic Reasons:

4→ GOKHALE acc. to him ^{means that intentionally violating law} const. methods ^{use power to directly achieve goals} were adopted as per circumstances. Direct action req. immense population & Indians were not ready for such action. ^{constitutional method does not work people are not matured completely for taking direct action}

4→ C.Y. CHINTamani acc. to him; before introducing Direct action we have to address internal divisions and disunity

CRITICISM OF CONSTITUTIONAL METHODS

* TILAK

Constitutional methods in face of ALIEN BUREAUCRACY is a POLITICAL SUICIDE.

Even Ambedkar said
If we follow other governments
then it's successful suicide.

* SRI AUROBINDO

Constitutional methods reflect 'INTELLECTUAL BANKRUPTCY' of the leaders. He believed that Indians will have to STRIKE AT THE ROOTS of colonialism i.e. Boycotting foreign goods and adopting swadeshi ^{means striking at economy so they will feel burden & leave India}

* JAWAHARLAL NEHRU

Constitutional methods will not work as India does not have constitutional government. ^{the govt which was not elected by people & the rules are being enforced by them without will}

Assessment by BIPIN CHANDRA

i) Direct action is possible only when masses are organised, unified & have common consciousness of common end.
the objective (exploitative) conditions of colonial rule

Direct action → mass struggle → common consciousness → common goal

CONSCIOUSNESS of common ends was missing ^{color w/d}
^{end to end}
^{responsibility}

→ where one person
knows about one
self & outside
factors
↓
ie y garden
prolonged
prolonged work.

Note: The 1st analysis of Imperialism/colonialism came with publication of book Imperialism, the highest stage of Capitalism by LENIN.

All the features of evil empire were not on surface.
So they gain some legitimacy

On Ideological
Base European
attitude towards
the land

as they thought
the masses currently
don't have potatoes

which were sent by moderators for
 numosuals are not ^{constitutional} ^{partially} ^{laws}

(100)

II. MILITANT NATIONALISM / STRATEGIES /

EXTREMIST WAYS

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who were extremists? why are they called extremists/militants?

⇒ The 2nd GENERATION OF LEADERS represented by LAL-BAL-PAL were called Extremists.

▷ They were dissatisfied with achievements of early nationalists.

⇒ The use of term Extremists / Militants is RELATIVE.

These leaders appeared Extremist in their demands & methods in comparison to earlier leaders who now appeared MODERATES.

What was the basic difference b/w Moderates & Extremists?

✓ Not much difference in terms of Goal.

Goal of both remained SWARAJ ^{as country was in making} with exception of AURBINDO'S ^{moderates} swaraj, other leaders wanted DOMINION STATUS OR SELF RULE ^{→ Ambition → freedom & universal spirit.}

↳ The only difference was that they were getting IMPATIENT.

Whatever reforms British have introduced in name of

INDIAN COUNCILS ACT appeared too little & too late & failed to meet the aspirations.

▷ No effective representation of Indians in law making ^{as they were not fair in viceroys council so not able to satisfy people's need.}

▷ Indians only got gradual rights to ask questions on

Budget & to bring resolutions.

↳ they can only discuss & ask for legislation but major power held with them.

↳ The main difference was in strategy.

→ Extremists favoured DIRECT ACTIONS like:

✓ Passive resistance ✓ Boycott ✓ Swadeshi

✓ National education ✓ National courts

→ TILAK rejected the method of petitions & asserted that

Swaraj is birth right of Indians. He justified PRAYADROH

(i.e) Right of people to resist an exploitative government.

EVALUATION OF EXTREMISTS

→ Extremist phase was the next logical step.

→ SWADESHI MOVEMENT can be considered as the successful movement led by INC.

→ Extremists could preserve the CREDIBILITY OF INC & created the BASE FOR LAUNCH OF GHANDHI'S MASS MOVEMENT.

Extremists form this base Gandhi's mass movement

⇒ Extremists have given STRONGER THEORY OF NATIONALISM

By Anand Mohan Ghosh

based on CULTURAL SYMBOLS. Unfortunately, it provided

opportunity to British to give COMMUNAL colour to

movement presenting INC as PARTY OF HINDUS

to defeat the Nationalist consciousness which emerged due

to Swadeshi, but introduced HINDO MORLEY REFORMS, 1909

giving SEPARATE ELECTORATE FOR MUSLIMS & thus laid the

statutory foundation of 2-Nation theory

Created a spiritual way to give high to nation
By cultural procedure
By Hindu to make them aware of Hinduism
Hegemony of Hinduism
which led to a nation

as the nationalism so they started growing so they want to control it so they follow Rule Procedure

Ass: short note on Swadeshi movement;

Tilak's concept of Swaraj

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III. MASS STRATEGY / GANDHIAN PHASE

- Q1. What were the unique features of Gandhian movement.
- Q2. Compare the strategies of Non-cooperation with CDM (Civil Disobedience Movement)
- Q3. Do you think QIM (Quit India Move) was most Ungandhian of all Gandhian movements. Substantiate your pov with arguments.
- Q4. How political & non-political movements of Gandhi combined to emerge as Nationalist movement (mass movt.)

GANDHI led one of the biggest mass movements in the world successfully.

Mass movements can be categorised into 2 basic types:

i) Uncontrolled mass movement:

FRENCH REVOLUTION was spontaneous, uncontrolled mass move.

ii) Controlled mass movement:

<sup>Sudden
can
overnight
change</sup> RUSSIAN, CHINESE REVOLUTION & ^{protracted revln} GANDHIAN movements are planned, directed & controlled mass movements.

We can also categorise mass movement in terms of STRATEGY:

- a) Marxist / Leninist movt: Characteristic is Sudden, OVERNIGHT comprehensive & achieve immediate overthrow of system. [Movts]
- b) Gramscian & Gandhian: Both were contemporaries & show unique convergence in concept of strategy. They suggested

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2. STAGE revolution in case of 'OPAQUE STATES' (when it is difficult to understand exploitative nature). Hence the movement has to be PROTRACTED movement ^{as they should understand}.

[Long drawn] known as WAR OF POSITION. Before coming at point of direct action or war of MANOEUVRE / FRONTAL ATTACK.

ACC TO. BIPAN CHANDRA,

Gandhian movt. was protracted movement with

ACTIVE & PASSIVE PHASES

Active phases → Mass agitations ^{28 year stage agitations}

Passive phases → Constructive programmes ^{to be true or head on unaffected area of movements of Educate}

He calls Gandhi's strategy as strategy of

S-T-S [struggle - truce - struggle] very effective strategy

Gandhian strategy was based on understanding of

MASS PSYCHOLOGY Masses have limited capacity to

participate. Besides being a psychologist, Gandhi was

Master strategist - Gandhi knew when to start and

when to call off the movement. His approach was

'Pro-Active' rather than REACTIVE

Pro-active Vs Reactive → ^{28 short term rather proactive active long term goals} India acting on Turkey re Gandhi Pakistan re Gandhi

In bigger context | Politics of opposition is reactive ^{React-er}
well planned | knee jerk reactions to small actions

He can create issues out of nothing. He did not wait for some actions to start movt, but it was of his choice

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*Good situation
But working
long term
strategy of Gandhi*

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Pro-active
Gandhian movement was pro active
in the sense Gandhi never let fall on
the court of enemy. He forced enemy
to respond. (Initiated by M)

It was always INITIATIVE OF GANDHI
the Time, place, issue - was all choice of Gandhi.
*(Gandhi's
movements are
completely preplanned
& they are not
passive)*

Gandhi was always offensive rather than defensive and

'Offence is the best defence'

Features of Gandhian strategy:

PROTRACTED, long

PRO-ACTIVE

OFFENSIVE

2 PHASES-

ACTIVE & PASSIVE

→ T-N-S

*सबसे पहले
हमें विचारना पड़ेगा
Struggle जो कि
मोमेंट्स में
So these are protracted*

He was EXTREMELY EXTREMIST

Ambedkar told of him: GRAMMAR OF ANARCHY

Leaders: Don't listen to officers but make officers listen

Gandhi did STREET POLITICS.

Reaction is not a
good strategy.
Politics can't be
successful if it is
reactive.

COMPARISON - NCM & CDM

Non-Cooperation Movement (NCM) [1920-22]

Significance:

1st Pan
Indian movement
of Gandhi was
Rowlatt Satyagraha

1st Truly Gandhian movement at pan-India level.

Why Gandhi started movt at that time?

The political environment was conducive to start the movement. People were looking for action.

What were reasons behind?

→ Rowlatt Act & Suppression of Civil Liberties

→ Extreme pain loss of Jallianwala Bagh Tragedy

→ Extreme disappointment & frustration loss of report of

There were
actually two
factoring commission
1882 - Education
1920 - Jallianwala
Bagh massacre

Hunter Commission

→ Jallianwala Bagh massacre

Massive support by British public for GEN. DYER.

→ Economic distress because of WW-I

→ Khilafat movement as an opportunity to bring Muslims

(It was however not a reaction against these reasons but best use of environment - Proactive)

Strategy of NCM

Gandhi said that if NCM is successful
can get Swaraj in one year.

Nagpur session of 1920 - INC adopted program of

EXTRA-CONSTITUTIONAL mass struggle led by Gandhi.

↳ forming them own

How Gandhi described NCM?

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Right to refuse cooperation with the ruler who misrules

Gandhi's promise was Swaraj in 1 year [Just to inspire masses. He knew it is not possible within 1 year]

What all were included in strategy of NCM?

✓ Surrender of TITLES & HONOURS

By Tagore & Gandhi

✓ Boycott of GOVT-SCHOOLS, COLLEGES, FOREIGN CLOTHES

✓ NO-TAX Campaign on case provincial congress committee approves

✓ Opening of NATIONAL schools, colleges, panchayat courts which had been

✓ Promotion of BHAD → Swadeshi & economy

Even promoted den of Swadeshi & Boycott movement

✓ Maintaining HINDU-MUSLIM UNITY → Khilafat

✓ Giving up UNTOUCHABILITY

(It is movement for sake of movement)

✓ strict adherence to NON-VIOLENCE

✓ INC to reach to NOHALLA levels

How INC described NCM?

A peaceful, legitimate protest for attainment of Swaraj

by Direct action rather than constitutional means #
↳ proactive action

22/1/18
d-78

End of the NCM:

Gandhi called off the movement abruptly after Chauri-Chaura incident on Feb, 1922.

What was the reaction for Gandhi's decision?

Gandhi came under HARSH CRITICISM not only by non-INC but also INC members. Even NEHRU questioned the rationale of calling off. Major criticism came from COMMUNISTS. They believed that Gandhi was fearful of masses acquiring power.

Analysis of BIPAN CHANDRA:

The real reason was that Gandhi wanted GRACEFUL EXIT.

WHY? By this time, masses were getting exhausted. There

were violent incidents in some areas. NAPOLA REVOLT in HALABAR.

This revolt would have taken communal colour. ^{In Kerala} LH-N (peasants) ^{muslim peasants}

Gandhi realised that boss of chauri-chaura, govt will have excuse to use of massive force. ^{So there will be no next movement, & people protest will get down.}

What will be impact of massive force? people will get fearful & it will be difficult to rebuild the movement.

ASSESSMENT OF NCM:

Movement was failure in terms of stated objectives & promises made by INC & Gandhi.

However, NCM was successful in the sense that Gandhi got all that he wanted. creating way of position.

What was Gandhi's intention:

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He wanted to test the CAPACITY OF MASSES for struggle.

He wanted to establish INC as party of MASSES and not only representing 'MICROSCOPIC MINORITY'

Gandhi wanted National movement to become 'MASS MOVEMENT'

(1-e) Multi-class movement rather than just middle classes.

There were some visible successes

Boycott of visit of PRINCE OF WALES.

Boycott of FOREIGN GOODS.

CIVIL DISOBEDIENCE MOVEMENT (CDM) [1930-31]

Significance:

First Example of Gandhian strategy.

(Master stroke of Gandhi - very controlled movement)

COMPARISON OF NCM & CDM

→ NCM can be comparatively called MILD w.r.t. CDM which was MORE PROVOCATIVE.

→ CDM was DIRECT CHALLENGE TO AUTHORITY whereas

NCM was just targeting ECONOMIC BASE of colonialism.

→ NCM was just NOT CO-OPERATING with state ^{by boycotting, swadeshi, Indian Education}

CDM was WILLFUL DISOBEDIENCE of authority & is like questioning the authority of state. ^{↳ not following the laws}

→ CDM was MORE OFFENSIVE than NCM.

→ Gandhi wanted British to use FORCE. It would've challenged the MYTH OF BENEVOLENT DESPOTISM.

⇒ In case state didn't use force, it meant COLLAPSE of state

In case state uses force, it meant COLLAPSE OF HEGEMONY of state.

⇒ Since the strategy of CDM has put colonial state on DILEMMA ^{Right as we gain war of position (no more tolerating in disguise)}

expressed by VICEROY as 'Damned if you do, Damned if you don't'

✓ It took time for them to decide Arrest of Gandhi.
(PRINCE IN DILEMMA)

the planned & anticipated the steps pro-active way.

✓ this gave way for Gandhi to complete his march.

⇒ Once Gandhi completed this march, similar marches were organised.

✓ It became impossible for state not to ARREST GANDHI.

✓ His arrest led to more RIGID PROTEST.

✓ Ultimately Govt had no option but to RELEASE GANDHI.

✓ this has shown the VICTORY OF GANDHI → bending to the requests of the revolution.

⇒ CDM ended on Gandhi-Irwin pact 1931, where govt. had accepted almost all demands of Gandhi.

✓ It has strengthened the:

▷ Credibility of INC

▷ Elevated INC with equal footing to Govt

→ given equal importance in RTE-2 as govt. has been

⇒ CDM is also an example of Gandhi's PRO-ACTIVE approach.

✓ Gandhi started the movement when he realised that the atmosphere is FAVOURABLE.

Why was atmosphere favourable?

Atmosphere was surcharged with ANTI-BRITISH feelings

✓ ECONOMIC HARDSHIPS due to GIED (Great Economic Depression)

✓ Simon Commission

✓ Death of Jata Lajpat Roy

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✓ Gandhi didn't stop hanging of Chagat Singh?

Nothing to do with non-violence commitment.

Gandhi wanted more anger from ppl & his death would achieve it & hit British state hard.

→ Capitalist perspective → New Communist viewpoint

11 POINTS DEMAND OF GANDHI

- 1) Abolition of SALT TAX
- 2) Total prohibition on sale of LIQUOR
- 3) Reduction of LAND REVENUE BY HALF.
- 4) Reduction of MILITARY EXPENDITURE BY HALF.
- 5) Reduction on SALARY OF HIGHER OFFICIALS.
- 6) Hike on TARIFF OF IMPORTED goods → to save local industry
- 7) Release of POLITICAL PRISONERS
- 8) Abolition of CID (Crime Investigation Department)
- 9) Licence to use ARMS IN SELF-DEFENCE.
- 10) Rationalisation of RUPEE-POUND-STERLING ratio
- 11) POSTAL TARIFF REGULATION BILL.



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QUIT INDIA MOVEMENT (QIM)

Also known as AUGUST REVOLUTION

Known as MOST UN-GANDHIAN. → Gave up his principles to attain the means

→ By this time Gandhi had achieved wrong position
just needed spark. Now it is wrong movement.

Why?

Least Controlled

Most Militant

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Gandhi allowed the USE OF FORCE FOR SELF-DEFENCE.

He held that use of force is justified against the stronger and well equipped aggressor.

Gandhi called for DO OR DIE but do not remain alive to see the country in state of SLAVERY.

Gandhi held that Nation survives when people are ready to DIE FOR NATION.

He mentioned that any delay in freedom would be INSURIOUS & HUMILIATING.

He made it clear that he will NOT CALL-OFF the movement

He permitted people to TAKE CONTROL OF POLICE STATIONS if needed.

He refused to condemn the VIOLENCE by people, justified it in the light of bigger violence by state.

INC in its resolution mentioned that:

- INC is not prescribing any restriction.
- Everyone is free to choose his/her methods
- Don't bow heads & suffer stroke but pull the sticks & defend yourself.

QIM is unogandhian in the sense that, upto now Gandhi was telling to HATE EVIL & NOT EVIL DOER. But now Gandhi made objective to throw Britishers out.

QIM was most spontaneous. Once top leadership was arrested, grass root leadership arose on its own. Common man became his own leader. (exactly what Gandhi wanted)

QIM reflected CLASS IN ITSELF $\Rightarrow$ CLASS FOR ITSELF.

It was Gandhi's 'WAR OF MOVEMENT', the direct attack.

Gandhi declared QIM as the 'last struggle of his life' (in political sphere)

Why Gandhi permitted use of violence?

Gandhi knew that any MASS MOVEMENT CAN'T BE

FREE FROM VIOLENCE.

He knew that there will be NO BIRTH W/O BLOOD.

Non-violence was just a part of Gandhi's strategy to

bring masses within the fold of National movement.

Strategy - bring masses within the fold of National movement. Safe to feel but not safe to feel. ACC. to FRANCIS HUTCHINS, Gandhi was after all, a POLITICIAN.

He was a strategist. Once he could bring masses into movement,

non-violence was no more needed.

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Response of other groups towards AIM:

AMBEDKAR

He called it MAD VENTURE of Gandhi

H.N. ROY

He held that Gandhi will strengthen FASCIST FORCES

HINDU MAHA SABHA

It called it INSURIOUS TO HINDU CAUSE

MUSLIM LEAGUE

They opposed it.

C. RATAGOPALACHARI

Within INC, he feared that it will lead to UNCONTROLLABLE ANARCHY.

REASON FOR PAK DIVISION

mainly BRAHMINISM.



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9th true period
of vacuum for 30-40 yrs
of influence 30-40
Revolution and Jan-Bhaskar
their heroes made people to
sacrifice the life for the
cause of nation

REVOLUTIONARY STRATEGY

What was Revolutionary Movement & its Importance?

There used to be Revolutionary movements at different phases.

We can't ignore contribution of revolutionaries

They have FILLED THE VACUUM whenever mainstream movt. was in passive phase.

They displayed REMARKABLE HEROISM, INSPIRED YOUTH TO SACRIFICE for motherland.

They have given the LOST PRIDE OF MANHOOD BACK TO Indians.

They could not get the support of INC.

They lacked resources, Mass base.

Yet, they could inspire people by their INDIVIDUAL ACTS.

It is to be noted that even INDIAN WOMEN have played role in the revolutionary movements.

Ex: PRITI LATA WADDEKAR, KALPANA

Revolutionaries in India were inspired by

B.C. CHATTERJEE's 'ANAND'

SACHINDRANATH SANYAL's 'Bandi Jeevan'

BHAGAWATI CHARAN VOHRA's 'the philosophy of Bomb'

IRISH Nationalists

RUSSIAN nihilists & revolutionaries



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Difference b/w REVOLUTIONARY & TERRORIST :

REVOLUTIONARIES → Don't go for INDISCRIMINATE KILLING of civilians
like Terrorists. They target the OPPRESSOR.

Hence, there is a need to make a difference b/w the 2 acts
where VIOLENCE is used.

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PEASANT MOVEMENTS

One of the WORST SUFFERERS of British rule were peasants.
Why?

British LAND SETTLEMENT POLICY.

British DESTROYED INDIAN HANDICRAFTS

↳ By bringing machine made goods from Britain.

The HISTORY of peasant movements / revolts goes prior to history of National movement.

The SUB-ALTERN SCHOOL OF HISTORIOGRAPHY represented by

South
Asian
Scholars
(Post colonialism)

RANAJIT GUHA

GYANENDRA PANDEY

Prof. IRFAN KABIR HABIB SUNIT SARKAR

have highlighted the role of peasantry.

One of the most well known PEASANT REVOLT was

INDIGEO REVOLT of 1860 documented by DINABANDHU MITRA
in his book NIL DARPAN

Sub-altern historians question the Nationalist narrative
that Gandhi organised peasants.

Acc. to. GYAN PANDEY, Peasant insurrection in India
was 'AUTONOMOUS' of intervention of outside leaders.

The way mainstream leaders dealt with concerns of peasantry
was just marginal.

*Ambedkar
of European
class*
INC never made the problems of peasantry as the core issue.

Acc. to. Ramajit Guha, INN (Indian National Movement) led by Gandhi was primarily ELITIST Gandhi wanted peasantry to make compromises with oppressors in the name of HARMONY BETWEEN CLASSES.

PHASES OF PEASANT MOVEMENTS

Uptill 1920s :

*1920s were the
inactive phase of the*

INC did not take peasant cause. Once Gandhi emerged, he did bring issue of peasantry on agenda of INC but his approach was CONCILIATORY *Intend to show that they care about them when they are upset.*

1930s onwards

*1930s were the
active phase of the*

INC started organising peasantry. However, KISAN SABHAS & PEASANT PARTIES were emerging on their own and also because of role of COMMUNIST & not entirely belong to INC.

In 1936 - ALL INDIA KISAN SABHA was formed under the leadership of SAHASTRANAND SARASWATI.
Their main demand was LAND REFORMS & REGULATION OF RENT.



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The 2 prominent movements of that time were

> PEASANT REVOLT IN TELANGANA

> TEBHAGA MOVEMENT IN BENGAL

It was inspired by COMMUNISTS, localised & autonomous.

Overall Assessment:

Peasantry in India couldn't play any concrete role either for themselves or freedom struggle compared to Peasantry in China. MAO himself was from PEASANTRY class, the organic intellectual of peasantry.

No such LEADERSHIP emerged in India.

They were DIVIDED ON CASTE & RELIGION.

There are many examples of spontaneous, localised revolts. But no all India level organised effort. This is also one of the REASONS BEHIND FAILURE OF LAND REFORMS EVEN After Independence.

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TRADE UNION MOVEMENTS

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- weak movement.
- Even after independence, there is no strong Trade union move.
- Trade unions have been JUNIOR PARTNERS OF POLITICAL PARTIES, as they LACK AUTONOMOUS character.
- Workers also remain DIVIDED ON CASTE & RELIGION.
- Situation has been worse than peasantry

Chronology of Trade Union Movements in India

- Emergence of MODERN WORKERS in 19th century
Boos of Intro of RAILWAYS, POST & TELEGRAPH.
- Organised LABOUR MOVEMENTS were started by
Philanthropists like S.S. BENGIALEE ; SASIPADA BANERSEE
- 1st Trade union / labour organisation was formed by
LOKHANDEY called 'BOMBAY MILL HANDS ASSOCIATION'
- There was a growth of socialist ideas in India because
of RUSSIAN REVOLUTION. Hence some leaders started
taking interest in organising workers.
 - o JATA LASPAT ROY had great concern for workers.
 - o CHANDHI too led protest of AHMEDABAD TEXTILE MILL workers.

→ In 1920 AITUC [All India Trade Union Congress]

was formed with LALA LALPAT RAI as 1st President.

AITUC was infiltrated by Communists.

ILO
-1921

→ Communists later formed their own organisation All India

Red Flag Trade Union Congress (in 1931)

Communists later again joined AITUC. They left again during 1930s.

They again joined AITUC.

→ Later INC left AITUC and formed on its own organisation:

called INTUC [Indian National Trade Union Congress]

in 1947.



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ROLE OF WOMEN IN INDIAN NATIONAL MOVEMENT

q1: What was the relation b/w Nationalist ideology & women issues?

Q2: Women movement during Freedom movement was dominated by Freedom movement or women freedom. Discuss.

Participation of women in politics during Freedom movement has emerged a new area of research in HISTORIOGRAPHY.

For long, the contribution of women remained NEGLECTED. despite being highly PATRIARCHAL SOCIETY women participated in Freedom movt. in MULTIPLE MODES.

There are examples where women could successfully protect their status in comparison to male counterparts.

Ex: BINBAI HORKAR who defeated British in GUERRILLA WAR.

RANI CHENAMMA could protect Independence of her KITTUR STATE.

During 1857 revolt,

RANI LAXMI BAI & BEGUM HAZRAT MAHAL played HEROIC roles.

Women got associated with INC. It was GANDHI who could use women resources in a skillful manner.

Women played key role in CONSTRUCTIVE PROGRAMS esp

SWADESHI / KHADI



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The prominent women leadership have been:

- * ANNIE BESANT
- * SAROSINI NAIDU
- * Madame CANA
- * SUCHETA KRIPLANI
- * RAS KUMARI ANRIT KAUR

We can give example of

* RANI GAINDINLIU, a NAGA woman who remained undeterred by colonial excesses & patriarchal barriers.

Besides participation in freedom movement, there were women leaders like:

- * PANDITA RANABAI
- * DURGABAI DESHMUKH
- * WASANTI DEVI
- * SUNITI DEVI

played role in social & economic empowerment of women.

& Important women organisations were:

1875, YWCA → Young Women's Christian Association

1927, AIWC → All India Women's Conference

Thus women played DUAL ROLE.



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Nationalist Ideology & Women Issues

Acc. to. SUNIT SARKAR,

Though women movement in India was started by men, women had been active participants in INC, yet the INC leaders were not full blooded liberals.

Women issues were never the core issues.

Grandhi's movement was using mostly women as RESOURCE for mass movement rather than upliftment of women as such.

Like issues of peasantry & workers, women issues were also on PERIPHERY.

We can see the PATRIARCHAL approach of mainstream leaders in women issues in the form of strong protest against AMBEDKAR'S 'HINDU CODE BILL' even by leaders like DR. RAJENDRA PRASAD.



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CHAPTER-11

SOCIAL MOVEMENTS

Civil liberties and Human Rights Movements

What are civil Rights?

Right which are considered necessary for leading a civilised existence are called as civil Right. Rule of law → for peace and order.
Ex-e.g. → Right to life, liberty, property, Equality before law, Right against arbitrary arrest are considered as civil Right. 01/11/2022

Civil Rights are based on the Philosophy of liberalism. The basic purpose of civil Rights is to check the arbitrary exercise of powers by the executive and to maintain the Rule of Law.

Spoke of Freedom Movement have asked only basic rights

India Freedom Movement was not just a freedom Movement or National Movement. It was one of the largest civil Rights Movement. Early Nationalist demands basic freedoms like - Freedom of Press, greater representation in Assembly, agitation against Rowlatt Bill was also an example of civil Rights Movement.

Pt. Nehru was one of the prominent civil Right Activist on 7 Nov-1936 Indian Civil Liberties Union was established at the initiative of Pt. Nehru.

Ravindranath Tagore was made President and Camajini Naidu was made working President. Pt. Nehru promised that there will be no Black Law in Independent India. (236)

Nehru had said that any law which is undermining civil liberties will not be accepted.

Ex - pressurised election

Constitution of India is a Revolutionary document

It is perhaps the first Constitution which

incorporate the spirit of Human Rights In India

P.R. are also available for non-citizens. Indian

Constitution also has a scheme of social & Economic Rights. It was unfortunate that the provision

related to Preventive detention law has been

incorporated in the Constitution and that too in Part-III of the Constitution.

→ 14, 20, 22, 23, 24, 25, 26, 27, 28
which had been unsuited in various respects

Art. 22 ~~part~~ provides certain protection to the person detained under preventive detention. However these

protections are just for the name sake. In other

countries preventive detention law are applied only during Emergencies like-war. But In India

Preventive detention law can be implemented even

during normal times. The trend has been the misuse

of preventive detention law against Political opponents.

to curb Political dissent. India even continued

with the colonial law like Sec. 124 A dealing

with Sedition. Sec 124 A outlaws any speech

written or verbal, sign or visible representation

or otherwise which aims to bring hatred, contempt

or excite or even attempt to excite disaffection

towards Govt. established by law in India.

→ 28 countries even preventive detention only during emergency not which India not normal or emergency time

→ A.K Gopalan misused by government

But proper boundary was not extra to justify

In above case the penalty that it is non-bailable, non-compoundable cognizable offence which may result into for 3 year or life imprisonment with

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or without fine.

The govt. of Pt. Nehru became the 1st govt. to use preventive detention law. which was used against the Communist leaders like A.K. Gopalan.

There has been the decline of Rule of law and the rise of Police state or overdeveloped state in India after Independence. There was a growth of Executive Highheadedness, Corruption. Towards 1970s we see the beginning of the new phase of civil right activism in the country. By this time the Nostalgia of Freedom Movement was over, Economic failure of the govt was on surface. There was growth of Anti-price rise agitation. Jaiprakash Narayan called for Total Revolution. He even appealed to Armed forces not to obey the order.

Govt. imposed emergency even on the ground of Internal disturbance. Govt. called for committed Bureaucracy and committed Judiciary. Emergency was the darkest hour for India's Democracy. It was a trial period for democracy. Fortunately democracy survived. Not only democracy survived, it has strengthened the democracy in country. There was prohibition of civil rights organization like Citizen for Democracy, Association for Democratic Reform (ADR) People Union for Civil Liberties etc led by lawyers like Shanti Bhushan who preferred the Path of Judiciary to ensure the Rule of law. After emergency Judiciary also became an active participant in India's Civil and Human Rights (238) Movements.

2nd phase Since 1970s the
Today the 1st Rule of
Law decrease in freedom

leads to decrease in
accountability leads to
increase in corruption &
formation of police state

2nd phase During Indragandhi
Regime due to Economic &
Political problem Emergency was
imposed & civil rights were
declined & opposition leaders
were arrested in name of preventive
detention.

Later due to this there have
been rise of civil liberties
Civil Right Orgs.

During Emergency & was
almost able to help the
people (Habeas corpus etc.)

After this Judiciary started
being effective and in civil
Human Rights etc.

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Human Rights Movement in Country -

From 1980's around the world there has been growth of the consciousness of Human Rights. In case of India also a new phase of activism started. Civil society working with Judiciary has led to the beginning of new phase of Human Rights Activism. Activist Judges like P.N. Bhagwati Institutionalize PIL. PIL proved a revolutionary step in providing access to justice to the marginalized section.

PIL power 20/60
made 20/8 10/1
V case 20/8 10/1
10/2/10/1 10/1
→ PIL helped
HR.

S.C. which has been earlier reluctant with respect to directive principle became the champion of Social and Economic Rights. It has given wide & substantive interpretation to Right to life to include Rights like - Right to Education, Health, Clean Environment and Right to life not just Animal existence but to live with dignity.

Globalization has increased the no. of advocacy groups in India. Govt. of India have also establish Institutional Mechanisms like NHRC, Right to Information.

Globalization of Internl organ pressure
on S of Institutions start 20/10/00
such as NHRC, RTI

UNHRC conducts - Universal Periodic Review (UPR) of Member Countries. Uptill now there have been 3 UPR of India (2008 & 2012).

have
ONHRC → 2 just become
like a toothless tiger.

GOI has not been able to meet the targets. It has taken up after 1st Review. Some of the prominent Human Rights concern in India are - (239)

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- ① large no. of Under trials → ^{25%} for legal aid ^{not} ^{not}
- ② Poor situation in Prisons → ^{25%} Prisons & ^{not} low standards
- ③ Human Rights violation by members of Armed forces in Insurgency affected Areas [AFSPA]
- ④ Extremely Slow Judicial system
- ⑤ Presence of Colonial law like IPC sec-124 ^{sedition law}
- ⑥ Misuse of Preventive detention laws against Political opponents ^{civil rights being misused}
- ⑦ Caste & Religion based violence and exclusion
- ⑧ Negative sex Ratio
- ⑨ Hunger
Contn. National Security Act, Dalits being discriminated, female infanticide

Above analysis show that Human Right activism has not resulted into any qualitative Improvement. India's commitment towards protection of Human Right is more of a Rhetoric than Reality

What are the weaknesses in Human Rights Movement

Acc. to prof. Upendra Baxi There is no Human Right movement in India. What we find is not Human Right movement but Human Rights Industries.

Advocacy group employee Management Graduates rather than Social Activists. These organizations Act with corporate approach rather than the attitude of social service. They lacked legitimacy in the country. Because their approach have been biased. They have raised issues like Human Rights violation by members of Armed forces but hardly talk about Human Rights violation of by militant organization of innocent civilians or killing of members of Armed forces, paramilitary forces by militant.

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Human Rights movement
Not industry of graduates
might graduate this society
rather than social activists
with more corporate style less
social service attitude.

25% atrocities committed by
armed forces ^{not} ^{not} ^{not}
25% of funds ^{not} ^{not} ^{not}
25% ^{not} ^{not} ^{not}

Nandita Hakpar
(3rd India's
Human Right
activism limit
of 2000.
2000-2003
Anti National &
Anti State
2000-2003
Future of HE
& zero tolerance
towards

→ AFSPA
2000-2003
30 State
legitimacy
2000-2003
NHRC & Power
2000-2003
People's range
for grievance
redressal

→ Human
Rights
Culture
into various
reforms
2000-2003
Police reform
Police, NHRC
etc.

Acc. to Human Right Activist Nandita Hakpar Human Right movement in India has to work within the defined limits. Indian state does not tolerate any activism going beyond the periphery of Nationalist discourse. Whenever govt. adopts zero tolerance towards Terrorism it ends in zero tolerance towards Human Right.

It is to be noted that so long India will continue to suffer threats to territorial integrity, there will always be a justification with the govt. for laws like AFSPA. However to enhance the credibility of India, it is necessary that govt. brings reforms in NHRC, give greater powers to NHRC with respect to inquiring on Human Right violation even by the members of Armed forces. Govt. has to ensure discipline among law enforcement Agencies. There is also an urgent need for Police Reform, Prison Reform, Judicial Reform, Criminal Justice system Reform.

Environmental Movement

Revolve around Two issues

Development Democracy

In North Env. movement → by full stomach
(Educated middle class)
In South (India) → Empty stomach
(STs - who are largely affected)

Environmental Movement revolve around the issue of development and democracy. Environmental movement in India as around the world have challenged the model of development. In case of India, environmental movement are the movements by the weakest section of the society. The major

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Participants are tribal and people whose life is dependent on Nature. India has a long history of environmental movement. The tribal revolt against the British Colonialism ~~where~~ ^{were} earliest environmental movement. Ex - Santal movement.

One of the noted environmentalist in India Ramchandra Guha has made comparison between Environmentalism in North and South. Environmentalism in ^{Northern} Western countries is led by the scientist whereas environmentalism in South is led by the poor and ignorant. Environmentalism of north is full stomach whereas environmentalism of south is empty stomach. We have to salute the fighting spirit of tribals in Odisha who dare to challenge Global Giants like Vedant & POSCO. Indian Environmental movement challenge the development strategy of the Indian state.

Ramchandra Guha has analysed Indian Environmental movement in 3-phases

Phase-1 70's ⇒ In his Book The Unquiet woods He traces the origin of modern environmental movement to the Chipko movement in 70's in Central Himalayas where women played the prominent role. Environmental movement has added a new dimension to India's democracy. It also poses ideological challenges to the dominant notions of meaning context and patterns of development in India. In 70's environmental movement was seen as "Interloper". At that time India was aspiring to catch with the western countries. Conservation of Nature was considered as the luxury of Rich Nations. Guha also call 70's

against the commercialisation of the forest.

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as An Age of Environmental Immorality. During 70's environmentalists like Sunderlal Bhaguna, Chandrasekhar Bhatt were seen as CIA Agents.

Phase-II

old fashioned social guys

80's $\Rightarrow$ 80's is marked by the growth of Environmental consciousness. Environmental issues started getting media attention. Prominent environment journalist like Anil Agrawal, Nagesh Hegde, & Shekhar Pathak could bring attention of the govt. In 1980 GOI has set up Department of Environment which was later on upgraded into full fledged Ministry.

Phase-III

In 1990's there was growth of professionalism in Environmental Movement. The positive aspect was professional scientist and social scientists started taking environment as an area of research. Indian Institute of Science in Bangalore started Centre for ecological science.

on the other hand there has been the growth of NGOs including Foreign NGOs. Environmentalism got more complicated. Environmental degradation have increased many times with the introduction of New Economic Policy. Reforms have been neither pro-poor nor pro-environment and it is one of the major reason for Rise of left wing Extremism.

due to new Economic Policy

Environmentalists were earlier attacked as CIA agents but now dismissed as 'old socialist guys'

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1980's due to media effective Role able to make people conscious of Environment later led to formation of Dept of Env.



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EIA had been diluted which is leading to more environmental damage

It is unfortunate that Ministry of Environment made project clearances a formality resulting into high level of Air pollution and depleted groundwater

Acc. to Ramchandra Guha - Polluted skies, Dead Rivers, Disappearing Forest, Displaced Peasants & Tribals is what we see around us 40 years after Chipko movement. India today is a Basket case of Environmental Tragedies. In his Book The Pissured Land

The Pissured Land; An Ecological History of India

co-authored with Madhav Gadgil. Ramchandra Guha advocates empowerment of people, proper valuation of Natural resources and knowledge dissemination. In their another Book

Ecology and Equity they have highlighted the use and abuse of Nature in Contemporary India and have offered the critic of developmental Model followed since Independence

Gadgil committee on urban ghats & riparian forests

along with Sustainable Development

Ramchandra Guha has identified 3 strands in Indian Environmental movement

Crusading Gandhians - They challenge the development model and suggest alternative approach based on Indian tradition

They don't want development based on Western model rather they want deep rooted Indian traditions

Appropriate Technology - It represent those section which focus on Technological solution to Ecological issues.

Technology to solve environmental problem (EV's, solar etc.)

Ecological Marxist - They are working at grassroot level and support Radical democracy.

community level Sustainable Development

We can say that it is unfortunate that today it is believed that technology is a solution to human problem but technology cannot be a substitute to a political will & social action. What is required is not change in technology but change in value system.

Sumita Nandan of Centre of Science & Environment has also analysed Indian Environmental movement. She categorises Indian Movement as "Utilitarian Conservatism" and western movement as "Protectionist Conservatism". She gives the concept of New Environmentalism. It is wrong to think Environmentalism is anti-development. New Environmentalism requires that we look at development & people differently. Acco to her environment is not about protecting tigers or planting trees, it is about democracy. We have to have the mode of development which make people as custodians of Natural resources. New Environmentalism calls for ideas without dogmas and idealism which is practical. She has highlighted the following weaknesses of environmental movement. The biggest weakness is "Fire fighting approach". They have not been able to strategise themselves. Environmental Activists may have been successful in closing few plants or Industrial Units but they have not been successful in changing the development policy in India.

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Presented to
East Technological
change in
Social action
Political will
Social action
Success & failure

Environment
anti development
India env
Utilitarian
conservatism
Protectionist
conservatism

Sumita Nandan
Centre of Science & Environment
Fire fighting approach
Environmental Activists
Industrial Units
development policy in India



Till environment does not become the issue of electoral democracy, its impact is going to be limited.

She also mentions the challenges faced by the environmental movement in India

- ① Lack of Resources
- ② Lack of Expertise
- ③ Bureaucratic Apathy
- ④ Corruption
- ⑤ Chronic Capitalism (Mining Barons are MP & MLAs)
- ⑥ Global Environmental Rules are now being shaped by the countries of North rather than South.

Acc to Sunita Narayan Environment is not just about ecology, it is about social ecology.

Vandana Shiva & Jayant ~~Bhat~~ Bandopadhyaya
In their article 'Political Economy of Ecology movement' suggest that development activity in India proceeded on resource intensive path. It had seriously disrupted ecological stability and life support system which have been maintained through centuries. It is in this context that environmental movement has emerged in India.

Women Movement in India

Women Movement in India was started by liberal men like Raja Rammohan Roy and Ishwarchand Vidhyasagar.

British govt. has also brought legislations like widows Remarriage Act, Prevention of sati Act, Sharda Act → increasing the Redding Age of marriage

There was a growth of women organization in different parts of the country.

Gandhian movements were not directly aimed at women concerns yet they brought consciousness among women and ended the stigma with respect to the participation of women in public sphere. The most prominent organization during freedom movement was "All India Women Conference" set up in

The achievement of the organization was Sharda Act 1929 and Lady Hardinge College in Delhi.

After Independence we can divide women movement into 3 phases

Phase-I Uptill 1970's - Aparna Mehta calls these years as 'Grey years' of women movement.

Why grey years?

There was greater activism in women movement before independence. The activism was stopped after independence. It was thought that there is no need for movement against indigenous govt. Govt. will automatically take care of women concern.

Constitution of India is a revolutionary document

in many sense. It has given equality of status to women, equal rights including Right to vote.

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activism govt. & against
indigenous govt. & women
concern some thing
C.S. & Movement & etc.

Phase II 70's & 80's → Phase of Revival & Activism

UN declared 70's as Decade for women. It has directed the govt to prepare the report on status of women. GOI had set up a committee to enquire the status of women in India. The report was

published with the title Towards equality 1974. It was an eye opener as it brought shocking fact with respect to women like - declining sex ratio, Gender based violence, discrimination and declining participation of women in Political & Economic sphere. It also recommended to constitute watchdog body like National Commission for Women.

It has resulted into changing the approach of govt. towards women. The approach was changed from welfare to development. There was growth of women organization including organization of Muslim women like - Majlis, Awaaz-i-Niswaan, organization of Dalit women like - All India dalit women conference.

80's was full of activism. The prominent issues in 80's were

- ① Increasing no. of ~~poor~~ dowry death
- ② Mathura Rape Case
- ③ sati at Deorata (Raj)
- ④ Shah Bano Judgement

Approach of govt also changed from development to empowerment. Since 6th Five year Plan govt has introduced, gender component in each plans. (248)
Gradually govt has also introduced Gender based Budgeting.

Phase-III

1990's -

By 1990's some new trends emerged.

① The growth of Feminist Movement. The nomenclature of women organization changed. They are more inspired by radical feminism. The new name adopted were-

① Saheli (Female friends)

② Vimochana (to elaborate on brief)

③ Mamushi (Humans)

④ Jagaree (Awakening)

② Towards 1990's women movement started getting divided on the lines of Caste & Religion. Initial solidarity was lost.

From 1990's onwards Indian Politics is getting shaped more by Caste and Religion and thus women issues also get mixed up. women have been divided by religion

Overall assessment of Women Movement -

Acc. to Madhu Kishwar, the only achievement of women organization has been some bizzare pieces of legislation. political representation
Basic Necessity

Acc. to Neera Desai and Usha Thakkar women movement faces following challenges

① Challenge of Identity

① Women issues are not just women issues

② Division on ideological line along with Caste & Religion.
so far they have never presented any charter of demands.

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Short note on women Reservation in Parliament and Assemblies.

The issue was discussed even before Independence.

View of Pt. Nehru - He opposed Reservation

why?

It compromises merit.

If introduced, can't be rolled back.

View of Sarojini Naidu - she opposed Reservation

why?

It will impact the confidence of women.

women can be elected on the basis of their merit.

View of the Committee Setup by GOI:-

Towards Equality Report 1974 → after enforced

opposed Reservation in Parliament and Assemblies
though favoured reservation in local bodies

why opposed?

Its approach was reformative rather than Radical.

women issues are not just women issues.

It is wrong to think that Man cannot represent the interest of women.

In India women movement was started by progressive men.

Both men & women should work together for the cause.

Ila Bhatt of ~~SEWA~~ SEWA

she opposes women Reservation and suggest that govt. should focus on Economic empowerment (250)

Shirine Rai. - Feminist scholar -

she also opposes reservation because it does not serve the purpose. She gives the example of Pakistan. Pakistan National Assembly has reserved seats for women but it does not mean that it has resulted into improvement in the status of women.

But it hasn't resulted into any improvement of condition of women in Pakistan.

Prominent women Politicians of all Major Parties like Sonia Gandhi, Shushma Swaraj and Brinda Karat favour women Reservation.

Ministry of Panchayati Raj has conducted the study on reservation of women in Panchayat. It has shown positive consequences and it becomes the basis to introduce reservation in Parliament & Assemblies.

Currently 14% of MPs are women.

Laura Keenan feminist scholar supporting women reservation on following ground.

- ① women representation has been stagnant far below the proportion. For most of the year it has not been on 67%.
- ② women are not elected does not mean that they are not talented.
- ③ All men who are present in the Parliament are not there in Parliament on the basis of merit or efficiency.
- ④ women are not able to get elected because of the social environment which remains patriarchal and hence Catalyst like Reservation are needed. (251)



Conclusion-

Women reservation is needed. It will make our Democracy inclusive in Gender term. It will be an empowerment measure. However it is going to be one of the measure. Women empowerment also requires educational empowerment and most importantly economic empowerment.

PLANNING & ECONOMIC REFORM

① Nehruvian & Gandhian Perspective

Role of Planning in Public sector

Green Revolution

Land Reforms

Agrarian Relation

Liberalization and Economic Reform.

Gandhian Approach to Development

Gandhi was not an economist in conventional sense nor he has given any systematic views on the model of development to be adopted by India. We get the blueprint of Gandhian idea of development in his Book Hind Swaraj. He was critic of the western model of development and believes that if other also adopt same model, atleast 9 more lakh are needed. The fundamental idea governing Gandhian approach to development was the Principle of Non-violence and Swaraj. Non-violence even towards Nature and minimization of needs. The 3 pillars of Gandhian approach were economic growth.

Economic Growth

Redistributive Justice

Manate Regeneration.

Gandhian approach towards the way of life can be understood on the basis of his Concept of 7 p's.

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7-Sins of Gandhi

- very important*
- ❶ wealth without work
 - ❷ Pleasure with Conscience
 - ❸ Knowledge without character
 - ❹ Commerce without Morality
 - ❺ Science without Humanity
 - ❻ worship without sacrifice
 - ❼ Politics without Ethics

At the time of Independence, Gandhians like S. N. Aggarwal, Sriman Narayan have proposed Gandhian Plan. The key ideas of Gandhian Plan were

❶ Reform of Agriculture

This will address ~~hard~~ Hunger and Unemployment. Govt. should focus on land Reforms, co-operatives and Rural Credit.

❷ Revival of Cottage Industries

It will not only provide supplementary Income, Khadi was the way to address the requirement of clothing.

Thus the focus of Gandhian Plan was to fulfill the basic necessities as a priority.

There is a misunderstanding that Gandhi was against Machines & Industrialisation. Gandhi was not against machines, he was only against the imitating the

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western model in Indian situation. His concerns were

- ① Machines should not pitted against Human Being
- ① Mechanization result into accumulation of wealth and increases exploitation.

Thus Gandhian approach was to make Indian villages a self sufficient entities. He was for the revival of village Republic as he believed that India lives in villages. Without Revival of villages, the goal of Swaraj remains incomplete.

Gandhian approach was not adopted. we can see the consequences of the neglect of Gandhian approach. The economic model which we have adopted to 1. Catchup with western countries has been unsustainable full of conflicts. The developmental model has resulted into imbalance growth and widening of the gap between India and Bharat.

Nehruvian Model

Nehru was also not an economist. Nehru was modernist. He was impressed by the achievements of USSR. He wanted to make India a modern and scientific society. He described his philosophy as progressive socialism and wanted India to be a society based on socialist pattern. Nehru's real approach towards the development strategy can be understood from 2nd Five year plan which was based on Nehru-Mahalanobis Model.

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Features

① Investment in Heavy Industries.

why?

- ① It will promote capital formation
- ② It will make India Independent of the Foreign imports of the essential goods
- ③ India can exercise more autonomy in other areas and protect itself from bargaining by western countries.

② Nehru introduced centralize planning. Despite the fact that centralised planning goes against the spirit of federalism.

③ Nehruvian model neglected consumer Industries. Indians were to make sacrifices in short term for a better life in long term.

④ Nehru was not against Agrarian Reforms but he believed that Industrialization will create more demand for Agricultural goods and Industrialization will provide fertilizers, equipments for promotion of Agriculture.

⑤ Nehru knew that his model will create shortages of the basic commodities hence he introduced Physical control on Rationing and Fiscal control on administered pricing.

⑥ In order to avoid income disparities, Nehruvian model had put state in the commanding heights of Economy and kept private sector weak to check accumulation of wealth. (256)



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- ⑦ Public sector will not only address the concentration of wealth, it will also be providing employment.
- ⑧ Nehruvian policies could not address the structural weaknesses of Indian Economy. Rationing has resulted into black Marketing. Public sector were not working on economic logic it was producing poor quality goods at a higher price.
- ⑨ Nehruvian model was import substitution and export promotion. However India could not produce such manufactured goods which can be exported.
- ⑩ Nehruvian model resulted into India becoming "Licence Permit Quota Raj" which ultimately made India an Inspector Raj or Over developed state.
- ⑪ Successors of Nehru have not made correction despite understanding the weaknesses. They rather continued with more populist policies like - "Gharibi Hatao".
Gharibi Hatao remained rhetoric in pre reform period. As good as 45% of Indian population was living below the poverty line.

★ Read
Introductory
★ Chapter of
Eco Survey ★

Planning and Public sector

Planning is a feature of Socialist Countries. The idea of planning is to determine the priorities and to go for the best possible use of resources. The objective of planning was higher growth and balanced development. Planning has resulted into state achieving the commanding heights in the economy. PSU's and other public sector was the major service provider. Public sector with the exception of few PSU's started showing the weaknesses of the model. It developed certain structural problems like - overmanning, low work ethics, low capacity utilisation, excessive expenditure, fiscal deficit, Absence of rational pricing policy and negative Rate of Return.

Above policies became unsustainable. India came under the financial crisis. Country was left with the foreign exchange which could pay the Bill of Imports only for a week. The credit of India was in question (Sovereign Debt Crisis). Ultimately, India was forced to change.

Acc. to Vimal Jalan former RBI Governor, PSU's were like old family silver where family had to spend more to keep shining the silver.



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Liberalisation of Indian Economy

Indian Reforms are called "Stealth Reform".

NRI → Non-Reliable Indian

Effects:

- poverty alleviation in absolute terms though the people have been uplifted deprivation had increased.
- Hunger & malnutrition had increased.
- It has increased Regional Imbalance.
- Sectoral imbalance, Agriculture decline.
- Service sector led growth had been jobless growth.
- feminisation of poverty.
- Environmental degradation.
- Irresponsible looting of Resources.
- India found easy to introduce 1st stage reforms means structural reforms like reducing fiscal deficit, monetary policy reforms. However, India is finding difficult to introduce 2nd stage reforms i.e. factor market reforms like labour reform, land Reforms, land acquisition.

India was known as "Caged tiger". It was predicted that if cage is broken then India will run at the speed of free tiger. It showed the potential of Indian economy which has been caged by populist policies. It is unfortunate that India took so long to make structural adjustment. India waited for crisis to happen. One of the major situational factors which has accelerated the crisis was Gulf war and disintegration of USSR.

Acc. to Amartya Sen - Contrary to the prediction the spirit of tiger was not as it should have been. There is a lack of consensus among scholars as to whether external factor or internal factor led to the change in the Economic Policy. There is also a debate on the consequences of new model.

Acc. to Bimal Jalan it is good that at present there is no debate over the desirability of Reform. Now all major parties agree that there is no alternative.

Current state of liberalisation.

Acc. to Economic survey 2016-17 There has been a remarkable transition from closed and listless economy to open and thriving economy. Progress is not only qualitative, it is measurable. Survey has evaluated liberalisation on the basis of 4 standard measures

① Openness to the trade.

In comparison to the size, India is trading with International Economy, more than expected. (259)



⑫ Openness to Foreign Capital

Despite Capital Controls, the net inflow of Foreign Capital is as normal as any other emerging economy. India has received FDI at annual rate of \$75 b which is not far short of what China was receiving at the height of economic boom in mid 2000.

⑬ Extent of PSU's

Contrary to the myth that India has large PSU, India has significantly roled Public sector including in sectors like civil aviation, telecom and Financial Services.

⑭ Govt. Expenditure

Contrary to the opinion that there is overbloaded expenditure by govt. in India, the expenditure is not more than what is normal for the Country in accordance to the level of development of the Country.

To sum up India is a normal emerging market pursuing the standard Asian Path of Development. Since 1960 there is 4-5% per Capita Increase in Income.

Acc. to survey Achievement is remarkable as it has been achieved ~~ex~~ under extremely competitive Democratic system. It is achieved even in a situation when govt. policy making is severely constrained [500 Activism]. However survey mentions about ineffective redistribution, welfare schemes suffer from considerable miscalculations. (260)

Impact of liberalization

Acc. to Montek Singh Ahluwalia - Econo in his article
Economic Reforms a Retrospective view

Reforms have done well in some areas and have neglected some areas.

① Reforms and poverty alleviation - The percentage of the population living below poverty line in 1983 was 44.5% and the absolute no. of poor was 323 m.

② In 1993-94 immediately after Reform, there was marginal increase in no. of poor below poverty line which became 43.5% and in term of no. 404 m.

③ Between 1993-94 to 2004-05 - Based on Tendulkar committee estimates.

Poverty declined from 45.3% to 37.2%.

In term of number there was an addition. It became 407 million.

④ Between 2004-05 to 2011-12 - There is a faster decline from 37.2% to 21.9% (based on Tendulkar Committee) for the first time even absolute no. decline from 407 m in 2004-05 to 269 m in 2011-12.

Even 269 million is a huge number and the situation of people just above poverty line is also not qualitatively very different. We do not have good record in delivering basic services like education, health, sanitation, clean drinking water.

If we want to reduce poverty to the truly marginal level, we require 6% rate of growth of economy for next 20 years. with unskilled population and

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unhealthy population, we cannot achieve the target. The another failure of Reform is that it has not resulted into growth of employment opportunities and whatever employment has been created is of bad quality.

Indian Economy has moved into middle Income status. India is bound to face challenges of getting stuck in "Middle Income trap" if we have not designed our reforms carefully. We suggest

- ① first tackle Corruption
- ② End Red tapping
- ③ Invest in Human Capital
- ④ Reform Factor market
- ⑤ Inclusion by job
- ⑥ Rehabilitate state Capacity

Views of Amartya Sen

Unleashing the tiger has not resulted into tiger like ~~print~~ ^{print}. The question is not ~~overall growth~~ but overall growth pattern. It has not resulted into corresponding transformation in the living standards. Progress on Social Indicators have gone down in comparison to pre-reform period. Stagnation in Agriculture. The growth of jump in service sector had not resulted into the benefits at the ground level because people lack skills.

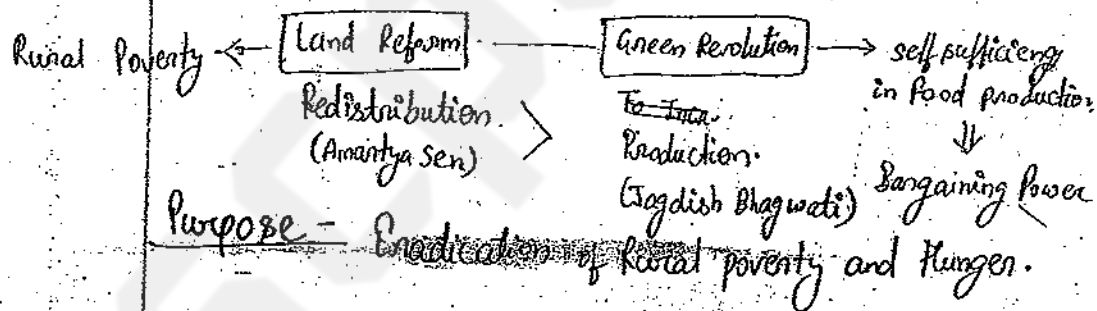
There is also increase in poverty in so called Bimaru States. The problem of Hunger amidst

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plenty exist. He appreciates China as China has invested in Basic Human Capabilities and has been in a position to take the benefits of Globalization.

Bimal Jalan Emerging India, Economics, Politics & Reform
There is no doubt that reforms release creative energy, accelerated growth and productivity but India's record in social indicators is among the bottom countries. It would be grave mistake if we do not go for critical Reform.

Land Reforms and Green Revolution



Philosophy of Land Reform

Based on socialist idea of Redistributive Justice.

History of Land Reform

There was a huge participation of peasant in National movement and land Reform was one of the promises of Congress.

Acc. to Daniel Thanner India is the most interesting case (263)
Study of Land Reform considering the largest body of

Land Reform legislation and extremely large no. of poor and hunger.

What does land Reform Indicate in India?

In case of India, land Reforms meant Institutional Reform (State led) aiming at addressing the concentration of wealth and giving land to landless.

Constitutional Provision

① Directive principles Art. 39 b & c makes it a constitutional obligation on Indian state to address the concentration of wealth and economic resources.

② 44th Amendment Act has repealed Right to property.
③ 9th schedule introduced by 1st Amendment Act contains large no. of land Reform legislation.

Types of land Reforms -

1. Zamindari abolition

This is the only successful aspect of land Reform. However success is farmed because most of the Zamindars got heavy compensation became ~~tenants~~ tenants, brought land under self cultivation and investing the capital in Rural Industries like Rice mill.

2. Tenancy Reform

Idea was to give security to tenants. Tenancy Reforms are also comparatively successful. The most successful effort has been in Kerala and Operation Barga in West Bengal. Tenancy Reform benefitted Intermediate Caste.

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3. Land Ceiling

Land ceiling was very crucial for land distribution but land ceiling remain one of the most weakest aspects. Law with loophole came into existence. People protected their land by dividing joint family, benami transfer and even gave formal divorce to the wife to protect land.

4. Distribution of surplus land

Distribution of surplus land was the most important aspect of land reform to address poverty. One of the vision of land reform was land to tillers. However there is very limited distribution that has taken place even govt. up till now has not been able to distribute whatever they have acquired.

5. Consolidation of land holding and establishment of co-operatives

It was the next logical step. Even co-operative movement has been a failure. Whatever co-operative movement has come into existence for e.g. In Maharashtra it is not co-operative but Joint stock company of rich farmer.

Since 1990's the type of developmental model India has adopted, has adversely impacted even the interest of rich farmers. Agriculture has been worst affected by liberalisation. Agricultural growth has stagnated. Rural Areas are suffering from the problem of Hunger and Malnutrition even when procured grain is getting rotten in warehouses.

Causes of the failure

1. lack of political will
2. The presence of dominant caste in Congress
3. lack of organize Peasant movement in the country
4. lack of land records
5. Corruption

View of Scholars -

Gunnar Myrdal calls India a soft state and that is a reason that even person like Nehru failed to achieve success in land reform.

Atul Kohli - state in India lacks political and organisational capacity to confront the power of propertied class. He gives the example of Kerala and West Bengal where land reform could be successful because of the ideology of political party and because the base of communist party was among poor. On the other hand despite rhetoric Congress continued to be the Party of dominant class.

Francine Frankel. The accommodative politics pursued by Indian state has jeopardized the radical agenda.

Sudipt Kaviraj and Pranab Bardhan both believe that state in India expresses the interest of Bourgeoisie classes. There has been unenthusiastic

implementation because of disproportionate influence of propertied classes.

we can also apply the concept of overdeveloped state given by Hamza Alavi in Indian context

Suggestions-

- ① The importance of land reform and any redistributive strategy have lost the imagination. In contemporary times it appears an outdated approach. Hence there is a responsibility of intellectual class to bring the agenda of land reform in public sphere and matter of public reasoning.
- ② It is the responsibility of civil society to organize peasants and landless labourers to create pressure on govt.
- ③ GOI should start taking the issue seriously because failure of land reform, failure to address rural poverty and hunger has resulted into the left wing extremism.
- ④ There is a need to strengthen legal machinery, address loopholes, maintain land records, utilize NRI for identification of beneficiaries.
- ⑤ Govt. can constitute Lok Adalat to dispose of the old legal disputes.
- ⑥ Inherent Agricultural land transferred for non agricultural uses.

Green Revolution

Purpose

To make India self sufficient in the production of food grains.

Philosophy -

Production centred approach based on the philosophy of Capitalism. It results into the use of high yielding variety seeds, Fertilizers, pesticides, implements. Thus it is capital intensive. It also cause intensive use of land.

Green Revolution started in 1961 as intensive agricultural development Programme (IADP) ~~later on~~ Initially 14-district were selected on experimental basis and later on extended to 114 district in the form of intensive agricultural area programme in 1965.

Outcomes

It make India self sufficient in food grain production. Since there is a substantial increase in output, it is treated as a Revolution. Agricultural growth increase at the rate of 3-5% per annum which was an encouraging rate of growth considering Colonial period.

Acc. to V.K. RV Rao - The gains of green revolution came at the substantial social and political cost. It has increased the gap between Rich & poor. (268)

It has increase Rural indebtedness because small & marginal farmer had to borrow to purchase implements and seeds. It has reversed the process of land reform. Small and marginal farmer actually lost the land.

Acc. to Economists like A.S. Bhatla & A.K. Chaddha green revolution has increased the agricultural wages, total income by 4 times and has strengthened the bargaining power of workers.

On the other hand Economist like Hanpara, S.S. Goyal suggest that there was no increase in the real wages, there was inflation in the rates of food grain. There has been decline in living standards. Mechanization displaced labour. It also resulted into the migrant labour. It started creating social unrest. It destroyed traditional dependence between a farmer and labourer.

Rudolph & Rudolph - They have analysed the political effect of green revolution as it gave rise to Bullock Capitalist, strengthened the role of caste in Indian Politics.

Other scholars like ~~F.K. Dikshit~~ T.K. Oommen, Utpa Patnaik, Pranab Bardhan, all focus on the poor distributive aspect giving rise to frustration and unrest.

Vandana Shiva in her book Violence of Green Revolution published in 1993 mention about the negative impact (267) on society as well as on Nature.

Acc. to former President K. R. Narayanan if we will neglect the task of land reform, it will give rise to counter revolution which has already started in Rural areas. Green revolution should not end up giving rise to Red Revolution.

Analyze the Political Economy of growth and distributive Justice in India - Structure

- (i) India is a welfare state
- (ii) Directive Principles (specially Art. 39 b & c)
- (iii) Indian state adopted the role of developmental state under Pt. Nehru
- (iv) However India's achievement with respect to eradication of poverty and human development indicators has not been encouraging. There is a lack of regional imbalance & inclusive growth
- (v) Political scholars have analysed the politics of economic growth in India. Some of the prominent views can be expressed as
 - (a) Hamza Alavi - has suggested that Post colonial states negotiate on behalf of the 3 propertied classes.
 1. Foreign Bourgeoisie
 2. Indigenous Bourgeoisie
 3. The Feudal Class.
 - (b) Gunnar Myrdal - emphasise on Poor capacity of India, calls India as A soft state.



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③ Atul Kohli mentions the problem of the crisis of governability faced by Indian State. Crisis of governability is a result of lack of stable alliances, poor capacity and poor policies.

④ Francine Frankel suggests that Indian state pursues accommodative politics which jeopardised its radical agenda.

⑤ Sudipt Kaviraj suggests that Indian state serves the interest of the Bourgeoisie class.

Conclusion:

Thus above analysis highlights the class character of Indian state and lack of will and capacity.

• Rudolph & Rudolph call Indian state as "polymorphous" like Hindu god hence it keeps on balancing different sections of the society.



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Party system.

Political parties solve the problems of representation
Introduction → Political parties are essential institutions for representative democracy. Political parties perform various roles.

- for e.g. →
- ① Formation of government.
 - ② Formation of opposition.
 - ③ Political education.
 - ④ Political socialization.

*Laski → political parties are essential.
Gandhi → partyless democracy
Republic where people are not free
M.N. Roy → parties are essential
J.P. Narayan → social movements*

On one hand, there are scholars like Laski who believe that political parties are essential for democracy, there are leaders like Gandhi, M.N. Roy and Jai Prakash Narayan who believed in partyless democracy.

*Party system emerged
Parties came into existence
So does the parties relevant system*

What is party system?

Party system is not based on number of parties but it is based on no. of parties having systemic reference.

for e.g. - At the time of Independence, there were multiple parties but Indian party system was known as one party dominant system.

Even currently South Africa → one party dominant

Q. What are the unique features of Political Parties in India and how they differ from parties in the Western countries?

Acc. to Zoya Hassan - Political parties in India reflect many unusual features.

Ideology Based
Parties are
of 5%

Base not level
connect to top 50%

Political parties &
Business are intertwined

- ① No concern for ideology there is a growth of infatuation with all parties.
- ② Instead of Policy oriented parties are office oriented.
- ③ There is a disconnect between People and Parties.
- ④ There is a greater connection between Political Parties & corporate groups including among the Communist & Socialist Parties.
- ⑤ Some parties have unique nomenclature.
Like → AIADMK.
- ⑥ None of the party has any grand design.

view of Paul Brass

Indian parties reflect many paradoxical features. They are products of modernisation. There is a blend of Western Bureaucratic structure with Indigenous Political practices and Institutions.

Political parties lack Intra party democracy.

↳ Govt Hierarchical Party
↳ Influence from K. Ramaswami
↳ Western countries etc.
There is intra party democracy.

View of Yogendra Yadav

Political parties in India are going through the process of Institutionalization as well as deinstitutionalization. on one hand their reach is increasing but on the other hand the depth & intensity of the voters have been declining.

The Role of political parties has got reduced to the instrumental act of voting and they have overlooked the broader agenda of democratization & Nation building.

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Nature of Indian Party system -

Q- Discuss the changing nature of Indian party system.
Do you think party system impacts the functioning of Federalism?

Indian party system has passed through 7 stages. ^{cooperative federalism is possible when there are same party in both state & centre}

Stage-I Uptill 1967 $\Rightarrow$ Congress system. ^{during Indira Gandhi regime}

Stage-II From 1967 - till 1977 $\Rightarrow$ Breakdown of Congress system.

Stage-III From 1977 - to 1979. $\Rightarrow$ Two party system. ^{as Congress - R & Congress (O), formation of Janata Dal.}

Stage-IV From 1979 - to 1989 $\Rightarrow$ Emergence of multiparty system.

Stage-V From 1989 till 2014 $\Rightarrow$ Multiparty system (or) Age of coalition politics.

Stage-VI Since 2014 $\Rightarrow$ One party system. ^{led to emergence of federalism in 10th Finance Commission.}

Q. $\rightarrow$ What was Congress system? What were the reasons for the emergence of Congress system and the decline of Congress system?

Q. Discuss the current state of INC and what can be the future prospects for the grand old party?

Congress system - At the time of Independence, India had multiple parties but Indian party system as described by Morris Jones used to be known as One Party dominant system. Later on Rajni Kothari has coined the term "Congress system". Congress system shows the dominant status of Congress. No other party with the exception of Kerala & Kashmir could form the

govt till 1967 even at the state level. Rajni Kothari calls congress as "Party of Consensus" and other parties as "Parties of Pressure".

Good National freedom fighters & Bobbi
Main leaders & Good from all sections of
society.

Why ~~Part~~ Congress was Party of Consensus?

Rajni Kothari calls congress as Rainbow coalition. Congress itself was a grand coalition congress programme could incorporate the interest of the different sections of the society.

Why opposition parties were Parties of Pressure?

Opposition party main role was to pressure the govt & they never succeeded in obtaining power @ former govt.

The status of opposition parties was like Pressure groups. They were located outside the margins of the Party system.

Unique feature of India's one party dominant system.

India's one party system Govt. it never moved towards authoritarian rather they always followed democratic method & consensus.

Unlike China, which has non democratic one party system, India's party system retained democratic character. Though other parties were outside the margin but they assured that the ruling party does not become Autocratic.

Reasons for the Congress system.

→ Modern National movement.
→ Became mass party.
→ Congress rejected communalism & Communism.
→ Congress was under Gandhi.

Hegemony of the congress was because of Its role in the National movement. Congress became Mass party under the leadership of Gandhi. Congress maintained Centrist Agenda. Congress rejected communalism as well as Communism.

There was a role of Pt. Nehru in maintaining congress system. (164)

What was the Role of Nehru?

- ⇒ Nehru maintained democratic intellectual climate within the party
- ⇒ Nehru promoted Freedom of speech & expression within the party, culture of toleration and accommodation.
- ⇒ Nehru showed sensitivity towards Minorities.
- ⇒ Most importantly Nehru could convince Indian Masses that Congress is critical for the survival of Nation.

stage-II

Breakdown of Congress System

Breakdown started in 1967 when Congress lost majority in 9 states. In 8 states for the first time non-congress govt. came to power and in the 9th state congress could form govt only in coalition.

Why decline of Congress system?

Internal & External Factors.

Internal Factors → Deinstitutionalisation of democracy

within the Party

Mass leaders govt & sideline to R. Now we have only who are not mass leaders & surviving on 20/60

- ⇒ Concentration of power in the hands of single leader
- ⇒ Lack of Intra-party democracy. Intra party election have not taken place since 1972.
- ⇒ Congress lost the touch with grass root leaders.
- ⇒ Central (Top) leadership was dependent on 'loyalist'. There was no scope for internal criticism and dissent.

1972 ended intra party democracy 2005 2nd Jan

Heavily from BJP's outlook 2005 2008 2014 2019 since National movement

2012 2013 policy work out 2014 2015 2016 2017 2018 2019 2020 2021 2022 2023 2024 2025 2026 2027 2028 2029 2030 2031 2032 2033 2034 2035 2036 2037 2038 2039 2040 2041 2042 2043 2044 2045 2046 2047 2048 2049 2050 2051 2052 2053 2054 2055 2056 2057 2058 2059 2060 2061 2062 2063 2064 2065 2066 2067 2068 2069 2070 2071 2072 2073 2074 2075 2076 2077 2078 2079 2080 2081 2082 2083 2084 2085 2086 2087 2088 2089 2090 2091 2092 2093 2094 2095 2096 2097 2098 2099 2100

External Factors → As suggested by Yogendra Yadav ~~decline~~
of Congress is linked with the deepening of democracy.
First democratic upsurge has resulted into OBCs coming
out of the party, second democratic upsurge resulted into
dalits coming out of the party.

→ Today Congress remains the party of minorities & scheduled
Castes Communities
Tribes

At present Congress social base comes from minorities and even
in 2014 election 35% of minority votes had gone to Congress.

The causes of the breakdown of Congress system also
include green revolution and state reorganisation. This
has resulted into the strengthening of OBCs and the rise
of regional parties.

Present status of Congress

Acc. to Subas Palashikar - Congress is not in the state
of decline rather 2014 election mark the death of Congress.
The number of seats which Congress got in 2014 election
is even less than the no. of seats Congress got after Emergency.

Congress social base as well as territorial base is
shrinking. Congress has been reduced to the level of
party of minorities. In present elections Congress even
lost the Congress state like Delhi, Haryana, Maharashtra
Assam.

At present Tamil Nadu, U.P., Bihar, West Bengal, Jharkhand, A.P.
Sikkim are non-Congress state.

U.K., Himachal Pradesh, Rajasthan, Karnataka, ~~AP~~, M.P. &
and Kerala are the state with Congress presence.
(166)

Subas Palashikan has given 3-phase in the life of Congress

Phase-I → Phase of dominance - Till 1967

Phase-II → Phase of confrontation - Till 1987

Phase-III → Phase of Survival - From 1987
(minority govt formation)

He mentions that the result of 2014 marks the death of Congress.

Future Prospects -

views of Khatap Bhanu Mehta ⇒

Congress should lead majority minority complex. Congress should know how to make strategic alliances. Instead of party of defence, congress should emerge as the Party of Transformation. Party should go back to the role of organizing social movements and should not restrict itself to Electoral calculus.

Majority sec's
supra caste vote Bank
case Party
Previous role of Social movement
B. Datta
Party development
first as political party

Q. Discuss the nature of party system in India since 1989.

Context -

Politics does not operate in vacuum. Parties also do not operate in vacuum. Party system gets influenced by multiple factors internal and external. Indian party system is also changing in context of the changing external and internal developments. India which was known as One Party dominant system got transformed into multi party system. From 1989 the Era of coalition Politics started. From 1974 itself we see the process of fragmentation and Regionalization.
(167)

Fragmentation of National Parties

Congress, Janta Party and the rise of Regional Parties.

Q. Discuss the factors giving rise to the phenomenon of fragmentation and Regionalization and what have been the impact of regional parties on Indian Political system?

Causes for the Rise of Regional Parties . B. Shreedharan

1. There are Institutional Factors

① Delinking of Parliamentary and state legislative election
It has given opportunities for regional parties for mobilisation of people on local issues.

⑩ India's Federal system - State govt. deal with those issues which are of day to day reference. This also gives advantages to the Regional Parties. The leaders associated with Regional parties are in greater contact with the people at grass root level.

④ Linguistic Reorganisation of states have given rise to the dominant caste forming their own regional parties.

2. Social and Economic Pact - Green Revolution gave
rise to the intermediate caste asserting their power
even in political sphere. Next Economic gap had been created

⑩ The deepening of social cleavages as a result of continuous mobilisation of people on ethnic grounds.

(iii) The growing politicization of Religion. Shirsana → Rites in Bombay

(19) The growing consciousness about rights & democracy

Inst. Factor
(168) (169) The suspension of democracy & introduction of emergency has also led to the fragmentation of Congress and

Parliament Elections
State Legislative Elections
ವಿಧಾನ ಸಭೆ - 1990
Sabbagga had been a favorite
for regional parties in govt.
(Ex: TDP - 1990)

State govt not doing what they say
to Day activity & support
Policy. 2000. 2000. 2000. 2000.
connect to road.
En = CMK, 2000 = T.N

7.12

The strengthening of Regional Parties.

B. Shreedharan → Factors

Consequences -

Regionalisation of Indian Political party system has resulted into both negative as well as positive consequences

① It led to the rise of Coalition Politics

② Coalition Politics in the absence of healthy coalition culture have given rise to

③ Policy Paralysis They were not able to pass any policy without any consensus

④ Increased role of money & muscle Power

⑤ Politicisation of the Post of speaker

⑥ decline of Parliament

On the other hand Regionalisation has resulted into

① Our democracy becoming more representative

② Regionalisation has strengthened the Federal axis of Indian Political system. It has strengthened the bargaining power of state/govt.

Some of the other consequences include -

① Regional issues dominate over national concern

② Greater Role of state even in Foreign Policy.

Ex: Srilankan → Tamil problem
→ restrainer → dispute



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Q. The Unique features of India's coalition culture. Do you think coalition govt. is desirable for diverse country like India?

Define Coalition Government

Coalition govt. is the feature of Parliamentary form of govt. It emerges in the situation of hung Assembly in Parliament.

Analysis of Coalition government - Riker

Riker has explained coalition as "power sharing arrangement".

Is coalition govt. unique to India.

It is not unique to India, it is a regular feature of countries in Continental Europe.

History of Coalition in India

→ Coalition is not new to India. Coalition govt. were formed ~~in~~ even in 1937.

→ Congress itself was a "grand coalition".

→ Even Janta Party was a coalition of many non-congress parties.

Congress itself a
Grand coalition
diff leaders from
diff sections
whereas state level
coalitions after
assembly elections
don't state govt.

Coalition Politics has become a regular feature at National level from 1989 onwards but it has been a regular feature at the state level since 4th general elections.

Coalition Politics at the state level has been more mature than the coalition politics at Union level. Kerala & W.B. give one of the best examples of mature coalition culture.

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Unique Features of Indian Coalition Culture

Bidyt chakravarty

① Acc. to Bidyt chakravarty Coalition in western countries are "Coalition by design" whereas coalition in India are "Coalition by political calculations" still searching for design.

Ex = Karnataka
CM → Kumaraswamy (for political calculations they don't want BJP in power)

② Coalitions are power sharing arrangements and hence in western countries we see minimum winning coalition however in India "Over-sized coalition" have been formed.

Ex: 26/6/2008
Partner coalition
held power minimum majority

③ In western countries ideological convergence has been taken into account but in India Rainbow coalition have been formed.

Diff. ideologies
are in coalition
Ex: INC, CPI, etc.
Not formed coalition even though their ideologies are diff.

④ In case of India Negative Coalitions have been the regular features. Coalitions have been formed not to run the govt but to stop someone else from coming to power. Once that objective is achieved it becomes difficult to maintain the solidarity as there is little ideological coherence.

Negative coalition
where they want to stop other from forming govt
Ex: Karnataka, Goa, Manipal etc.

⑤ The core (main) party has not followed the practice of consultations with the partners of coalition.

Consequences of Coalition Politics in India

Unfortunately there have been more negative consequences of coalition politics. The problem does not lie in the coalition but problem lies in India's coalition culture.

Some of the negative consequences are

① Policy Paralysis

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b. Decline of Parliament

c. Decline in the dignity of speaker

d. Judicial Activism

e. Presidential Activism

f. Frequent Election

g. Money trading → 2003 mts 95% 2000

h. Defection → Party & sympathy

i. Increasing role of money & ^{muscle} muscle power

j. Increasing use of ethnic mobilisation

k. Weakening of the institution of PM

l. Increased in Corruption

Is Coalition desirable for India?

The bigger question is if coalition avoidable in a country like India.

Since Coalition is not avoidable in a country like India with huge diversity, it is more important to think how to make coalition work rather than thinking over the desirability. Coalition itself is not bad. Coalition makes democracy more representative & consociational.

however coalition may impact National Interest if country does not have healthy coalition culture. Hence we have to think how to bring healthy coalition culture. We can learn from the countries like Germany which promote coalition culture we can incorporate some of the features found in Germany rather than basing India's Parliamentary system entirely on

"West Ministerial Model". In Germany chancellor

enjoys a stronger status in comparison to the PM of British Model. Since the major problem of coalition

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Politics is Political instability. Hence we can institute the system of Constructive vote of no-confidence. We can also think of Japanese model where PM is elected by the members of lower house.

India should institutionalize the practice of Steering Committee or the regular consultative mechanism with all members of coalition. If one party goes for greater transparency, there will be less scope for bargaining by smaller parties. There is a need for Reforming Anti-defection law.

There is a need to strengthen such mechanism which can check corruption among the members of Parliament.

There is a need to bring electoral reform which can reduce the influence of money & muscle power, the influence of Caste & Religion in Indian politics.

There is a need to introduce ethics in politics. Ethical conduct

Note India's coalition culture come nearest to the coalition culture of Italy.

Status of Left Parties in India - Praful Bidwai

in his Book - Phoenix Movement: Challenges confronting Indian left suggest that the decline of left is an old story. It is surprising that left in India could never take route despite the prevalence of mass poverty in India. It is also surprising that youth in India is attracted towards Right rather than towards left.

(173)

George Reality

despite such enormous poverty & mass unemployment, the left workers & leaders are not able to mobilize the masses. They are always looking for a new leader. They have not lost for a moment. Another mass left united front is being formed in India.

2014 election showed the worst performance of left. Left has got just 12 seats and the vote share of 4.8%. Only 3% of the agricultural labourers and only 5% of the workers voted for left. The best performance of the left was in 2004 when they got 64 seats.

Initially left was the major opposition to the Congress. Its vote share was double the vote share of Kisan Tana Sangha (Rightist). Today Rightists are in position to form govt. on its own, BJP has given at least a temporary halt to the coalition politics but unfortunately left has got completely marginalized. There have been following problems with Indian left.

(i) Because of their shifting stand during freedom struggle left could never gain the trust of Indian masses.

(ii) Neither then nor now left has ever presented any serious understanding of the peculiar circumstances of Indian politics. They are still dependent on the imported doctrines.

(iii) The principle of democratic centralism which does not allow decent and internal debate has been the factor for weakening of left. Left in India also has high command culture.

(iv) Left leaders do not have grass root base. Most of them have been picked up from universities.

(v) Left Agenda was initially hijacked by INC and now hijacked by AAP. Congress was a better version of Indian form of socialism and AAP is a better version of new left.

(174)

Runaway
Shifted
Indo-China war
Left didn't
change attitude
Tension problem

Leftist
ground level work
Central level work
also connect
SB connect
centralised leadership

Left & grass root power
entirely missing
SB rather weak
On: Kanchan Kumar

- (vi) There is a lack of internal solidarity among the left parties.
 (CPI, CPM, CPI(M) etc. were parties but divide and rule as resulted from 1980s onwards)
- (vii) The main feature of the left politics is politics of social movements or Radical democracy but left has confined itself to the electoral politics.
- (viii) Left in India has not done the politics of class or development, it has also done the politics of Religion and caste.
- (ix) Globalization has made left ideology redundent. Left ideology does not meet the ambitions of youth in India.
- (x) Left Foreign Policy is completely redundant. Left has taken up the Foreign Policy left by the Congress. Today the strongest advocate of non-alignment is not Congress rather Indian left.
 (non alignment 30s 40s 50s 60s)
- (xi) Left Foreign Policy is based on Anti-globalization, anti-Americanism and pro-chinese stand.
- (xii) Left also lacks leadership. For 2014 elections none of the left leaders was among the top 10 preferences for Prime Ministerial Post.
 (Leadership has proper building today)
- (xiii) Globalization has created foot loose workers hence it is difficult to build the organize trade unionism.
- (xiv) Left lost in w.s. because the left govt. in w.s. used force on his own constituency and favoured its adversarial class (corporate class).
 (swifted from the left to support the corporate)

Suggestions

Indian left needs introspection. It is much better if they go back to the original idea of left politics: i.e. building of social movement, Radical democracy, organising the exploited sections of the society and working for their Rights.

Rise of Right

From 2 seats in 1984 to 282 seats in 2014, there is no question on the rise of Right in Indian Politics.
28 seats to 303 seats

Thomas Blom Hansen in his book

Saffron wave ^{book} have explained the phenomenal rise of BJP and the forces of Hindutva.

Millan Vaishnav also suggest that there is a big change in the electoral behaviour of people in India. For long Indian Politics was based on the Agenda of Secularism and Minoritism. The present Indian Politics is a rejection of both minoritism and congress version of secularism and the assertion of majoritarianism in combination with the concern for good governance and development.

Statistics - ① 1984, BJP got 2 seats and 7.4% vote share.

② 1989 BJP got ~~88 seats~~ and a vote share of 11.56%

③ 1991 BJP got 120 seats and a vote share of 20.95%

④ 1996 BJP got 161 seats and a vote share of 20.8%

⑤ 1998 BJP got ¹¹² ~~112~~ seats and a vote share of 25%

⑥ 1999 BJP got 183 seats and a vote share of 23.07%

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- ⑦ 2004 BJP got 138 seats and a vote share of 22.16%
- ⑧ 2009 BJP got 116 seats and a vote share of 18.8%
- ⑨ 2014 BJP got 282 seats and a vote share of 31.5%
- 2019 BJP got 303 seats & a vote share of 37.7%

Causes of the Rise of BJP

- ① Decline of Congress (Ramdas Gandhi)
- ② Demise of Left
- ③ Organizational strength till grass root level. They have very good grass root level development for various sectors they have various wings
- ④ Nationalist Rhetoric [Way of influencing people on the name of nationalism] by Chauhan, Jagan morcha, Uda morcha, etc.
- ⑤ Globalisation
 - ① NRI's provide huge support for BJP policies
 - ② Globalisation has given rise to ethnic politics worldwide
 - ③ The rising fear of Islamic Fundamentalism
 - ④ Economic policy which matches to the globalisation
 - ⑤ The growth of middle class in India.
- ⑥ Strong leadership.

View of Thomas Blom Hansen

Acc to Hansen - Rise of BJP is not a religious phenomenon nor it is a strictly political phenomenon.

It is happening in the backdrop of the democratic transformation taking place in the country. As lower

castes and OBCs are mobilising themselves, the amorphous

Indian middle class became anxious. Even lower

class Hindus got attracted towards BJP majoritarian

Rhetoric constructed in the frame of Nationalism

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No program
BJP Hindu Caste
w + Nationalism
confront
15% vote 2014

Continue
New
mobilise
class



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cultural pride, order, development and leadership

James Manoj - with the decline of Congress, people were left with two options left (or) Right.

None of the left leadership in the top list of PM.

left ideology lacked imagination, left also lacked leadership. Right appeared to be a better option from all perspectives.

Jeffrelot.

Christophy ~~Jeffrelot~~ - The sense of insecurity among the Hindus as Congress policies were seen as minority appeasement. Congress which was once an umbrella party has been reduced to the status of party of minority.

Congress & 25% Minority Party 80% who don't Hindu in minority of Identity & others. So shifted to other parties.

History of BJP.

Jana Sangh - political wing of RSS.

It is a succession of Jana Sangha formed in 1951 by Shyama Prasad Mukherjee. The other prominent leader was Pt. Deendayal Upadhyaya.

BJP Govt form 2014. BJP rather they want to act as opposition for better functioning of democracy.

Objective -

Party believe that strong opposition was necessary for democracy so they wanted to give strong challenges to Mohorvian Consensus.

Jana Sangha

~~BJP~~ was the part of Jana Party govt. There were objections over their association with Sangha. Hence ~~BJP~~

C. Jana Sangha came out of Jana Party and formed

BJP on 5-April-1980. BJP is influenced by

Cultural Nationalism

Gandhian Socialism

Positive secularism.

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unlike Hindu Mahasabha positive
Secularism of BJP aims at giving equal protection
to all religions.

Integral Humanism of Pt. Deendayal Upadhyaya

Acc. to Pt. Deendayal Upadhyaya - western ideas are not
suitable for India because they have not been part
of India's history. India should adopt modern science
but not the western way of life. He gives the example
of Japan which has modernized without adopting
Western Culture.

Integral Humanism is a philosophy based on Indian
way of life. It is a philosophy which integrates
mind, body and soul.

3rd Front

3rd front currently it may
seem insignificant but it have
high amount of vote share & consisting
by the regional parties & coalition
of various societies. They can act as
strong coalition partners to
attain govt power.

3rd front is a fluid category, it's combination keep on
changing. It is primarily the collection of Regional
Parties. 3rd front is not insignificant, it continues to
hold significant percentage of votes, it has dominant
presence at the state level. Since 3rd front represents
OBCs as well as other sections like - Muslims, Dalits,
3rd front is always a significant force.

3rd front has also formed govt. at the Union level 2 times.

In 1989 National Front govt. was formed with the
support of BJP.

United Front govt. in 1996 with the support of Congress
and CPI(M)

UVA NDA
UNPA

3rd Front could never provide stable government.

Why?

It has never been stable. It emerges before election and dissolves after election.

In 2008 3rd Front formed United National Progressive Alliance.

In 2014, 14 parties formed 3rd Front as an alternative to corrupt Congress and Communal BJP.
RJD, SP

However 3rd Front was dissolved within 24 hours.

Problems -

1. Too many leaders
2. Oppportunism
only concerned with the issues in small scale & not worrying about the important things.
3. Too Parochial in their approach. Lack
4. lack Nationalist Agenda.

AAP Phenomena

no product it is a phenomenon

It is the New Left

AAP had formed due to globalization
→ urban phenomena
→ awareness had increased
→ inequalities increased
→ democratic consciousness
→ Anti corruption, Anti Party Ideology etc.
→ Intraparty democracy
→ Bottom up approach
→ not for power but for change

AAP is a byproduct of Globalization. AAP Phenomenon is not unique to India, the other parallel example are

Tahreek-i-Insaf in Pakistan, Syriza Party in Greece, Workers Party in Brazil, People's Movement in Hongkong.

AAP is also considered as Urban Phenomena. Globalization has resulted into the increase in inequalities.

Globalization has also resulted into increase in democratic consciousness and awareness of Good governance.

AAP was formed in 2012. AAP emerged out of Anti-corruption movement. AAP describe itself as Anti-Politics and Anti-Ideology. AAP is against Power Politics.

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Acc. to them they are joining politics not for power but for change. They need power to change the system from within because pressure from outside has not work. AAP rejects high command culture. AAP goes for bottom up approach. AAP stands for intraparty democracy.
No two member of the same family can contest election or can become the member of executive Council.

Members have Right to Recall the member of executive Council.

Regional Parties: Milan Vaishnav
rise of Reg part is an eternal theme on Indian pol sc.

Reg party operate within limited geoq area
sep. linguistic mix religious

Due to diversity it is natural R.P. role
No of Regional part is much larger
have been spelt kash oriss Panj.

qq = Reg is imp basis of party bid
unless alternative secular basis of lay
flowish. They are fixtures.

Lack of Bal R.D.

Syrai - "Regional Parties & emerge
embedded pattern of party pol in Ind.
R parties are rooted in Reg griev.
Should not be seen as byproduct
of regionalism rather ph in its own
right - ling states, dec of congress
unhcr dev, inc level of mobility
onset of new go.

Paul Brass & traditional caste pol to
dem. mass pol (181)

Paul Brass

fragmented
paralysed
has shaped
led by
erosion of the
light
mould in
which
onst is
framed

anyone very imp
for plural democracy

Pressure Group / Interest Group

Pressure group ⇒ Techniques

Interest group ⇒ Purpose

Pressure groups are known as "invisible empires"

Pressure groups are considered as integral component of pluralist democracies. Every democracy recognizes freedom to form associations.

Pressure group politics is most influential in USA.

Pressure groups are not very powerful in the countries where parties represent the specific Ideology.

for e.g. ⇒ Britain where labour party is assume to take the interest of the working classes.

Bez of globalisation
pressure groups have
lost relevance

Pressure groups in India have also not played every effective role. However since 1990s there is a growth of pressure group politics in India. One of the earliest studies on pressure group politics in India has been done by Rajni Kothari.

India is not a host
of the pressure
groups are communal
groups. No secular
pressure groups are
seen in India.

Acc to Rajni Kothari Pressure group has been the agents of modernisation, reservoir of leadership. In India communal pressure groups have been more dominant. However pressure groups did not enjoy much legitimacy in the eyes of the people, the pre-dominant status of congress party didn't allow pressure group to gain primacy. In fact the status of other political parties were just like pressure group. Hence Rajni Kothari call them (Parties of Pressure).
(18/2)

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Rudolph & Rudolph have also analysed the role of Caste association.

Myron Weiner in his Book Politics of Scarcity ^{Book} has highlighted the role of communal pressure group.

Christophy Jaffrelot has studied the role of RSS in Indian Politics. ^{Saffron wave}

Acco to Prof. Anand Chakravarty - Govt. of India should have shown greater Accomodation towards Pressure groups as many pressure groups has been banned under UAPA ^{① UAPA} If govt. had accomodated them it would have been easier to address the alienation and secessionist trend. <sup>Pressure group
Hence, UAPA
& UAPA Act Ban
on Civil Liberties
Freedom of
Expression</sup>

Robert Hard Grave and Stanley Kochanek highlight the changing nature of pressure group in India.

<sup>State is dominant &
powerful &
pressure groups are weak.</sup>

Since 1990s Pressure group politics is shifting from State dominated pluralism to more powerful pressure group politics. Pressure group started gaining legitimacy as a result of liberalization and Globalization. Govt. of India have incorporated different interest groups in Policy making Institution.

like ⇒ NAC, NSAB. and now NITI Aayog.

There is a substantial increase in the power of Business groups. Business groups are the part of the delegation ⁽¹⁸³⁾ to Foreign Countries. The tradition of organizing

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Exam theory
where pressure groups
& NGOs are
influencing the
policy making
Ex: RCEP

Parallel Business Summit along with Political Summit
have become the Regular feature. There is greater
presence and influence of foreign lobbies and advocacy
groups.

Communal Pressure group

Pressure group of Corporate sector

Pressure group of Rich Farmers

All continue to play the dominant role. India still does
not have dominant women organization, Environmental
lobbies, Student Unions, Trade Unions continue to be
The junior partners of Political Parties and many
pressure group primarily of left wing have been banned
under UAPA.

State continues to be a dominant actor in India. At
times state has been not tolerant towards certain
pressure groups. Recently there was a highly disputed
report of IB which has pointed that many NGOs are
having anti-national propaganda and their activities
have been detrimental to India's growth.

Some NGOs have
turned into corporate
so their funds are coming
from foreign & forcing
govt to influence policy

Social and Economic Profile of Parliamentarians and Members of state legislature

Why to study Profile?

Parliament is a mirror of society. Profile of parliamentarians
give us many valuable indication about the nature of
society and the changing direction of the society

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Profile of parliamentarians
politics also change
because of changing
approach towards
the voting pattern

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There is no difference in profile of Members of Parliament and state legislature. ~~There~~ There is no difference in the profile of members of Upper House and Lower House.

Upper House $\Rightarrow$ Peter Sober.

Lower House $\Rightarrow$ Peter drunk

Congress $\rightarrow$ itself was a grand coalition of diff people from diff societies

Shankar & Rodrigues $\rightarrow$ have divided the ^{changing} profile of MP's into 3-phases.

1st Phase - Till 1967 -

7/11/1967

In term of caste - Brahmins dominated the Parliament.
OBCs, women and minorities were under represented.
Representation in proportion of population for the members of the scheduled caste and scheduled tribe communities insured their presence.

In term of education most of them were graduates from foreign universities including the members of scheduled caste community.

In term of profession - lawyers were more in number and the 2nd position was of Agriculturalist.

2nd Phase - From 1967 - 1989

1st democratic upsurge
OBC's had come out of Congress

2nd - Dalits
Came out of Congress

The Phase of Transition.

As a result of state reorganisation, Green Revolution and deepening of Democracy, there was a rise of Intermediate caste / a Phenomena described by Yogendra Yadav as 1st democratic upsurge.

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- Now OBCs became the most dominant section.
- In terms of Profession - Agriculturalist were in majority and the 2nd was of Social service in numbers. Earlier professionals were joining politics and so politics was not a source of income and now the trend started where politics became full time profession. Trend started because of JP movement and Jay Gandhi Youth Congress. Youth entered into politics at the time of Career Formation.

The no. of graduates from Foreign Universities have declined. Nothing changed as far as the representation of minorities and woman is concerned.

Representation of women got stagnated to 8-10% of the peak.

3rd Phase - From 1989 - *People from low social class.*

The Phase of Plebianisation

Prof. Yogendra Yadav explain through the term of 2nd democratic upsurge.

Parliament continues to be dominated by OBC in terms of profession by Agriculturalist & social worker.

Not much change with respect to women & minorities.

No. of graduates have increased

Since 1990's there has been too much presence of the person from Criminal Background. A phenomenon known as "Criminalisation of Indian Politics." (186)

*as the condition
parties had more
money & muscle &
money power both
also increased*

Profile of 16th Lok Sabha -

27% → Agricultural Background

24% → Social workers

20% → Business Background

Most educated Lok Sabha

75% → Graduates

42% → Post Graduates

17% → Non-metric

In term of Age group.

The average age group is 50-55 years

58% are First Time

Highest representation of women so far → 11.3% ⇒ 44.8
62 women mps

Highest no. of persons with Criminal Background -

16% mps → accused of heinous crimes

currently 50%.



Electoral Behaviour

The study of electoral behaviour is a result of the growth of Behavioural Movement in Political Science.

Acc. to Millan Vaishnav The study of electoral behaviour in India is a challenging task because of size & diversity. We can also put forward the argument of Kenneth Arrow.

Kenneth Arrow has given "Impossibility Theorem."

"In case of election, it is difficult to determine the preference when voters have more than 3 choices. Still India is a very interesting case study of the electoral behaviour."

It is a big puzzle as to why Indian vote? and vote in such a huge number and when despite voting nothing gets translated into any concrete achievement as far as governance and development is concerned.

Mukulika Banerjee and her team has conducted ethnographic survey of Indian voters. Survey gives many interesting findings.

- ① Many voters consider that Act of voting is an assertion of their Citizenship Right and duties.
- ② Elections are the time when Power inversion takes place.
- ③ People think it is better to choose and reject those who govern them.
- ④ Some vote out of the feeling of revenge.
- ⑤ Some vote because of the members of their caste or community is standing (188)

fed + leg
we cannot describe Electoral Behaviour just by theory rather it should be calculated by Behavioural movements (Includes Surveys etc)

Even though 70% of votes goes wrong how is vote decided?

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vi) Some vote because they think that Election Commission is doing great job.

vii) Some feel the edifice of democracy in India will collapse fearing that mean democracy may collapse.

Poor & illiterate people who are not effect of policies & they are the one who knows about the poor votes & secret.

Acc. to the study Poor are more sophisticated and Strategic voters than the Rich. Poor have higher dependency on governance, welfare provision. They have been found to be more aware and understand the value of their vote than the educated middle classes who vote for not anything in return but as a duty towards Nation.

gives duty they will vote not expecting as much poor expect

Acc. to LokMITI a part of CSIS.

we can see following trends in India's electoral behaviour

CSIS → Centre study of develop societies

Caste and Religion remain the major long term determinant.

Incumbency holding of an office for the power which one is hold

Corruption and Anti-incumbency does not matter
No difference in the preferences of Man & woman
Rural & Urban.

Acc. to Yogendra Yadav - People in India are moving from Identity Politics to Identity Plus Politics.

includes development & Good Governance

Assessment of Indian voters

(a) Assessment of voting behaviour of Indians

Prannoy Roy, Ashok Lahiri, David Butler in their book titled India decides show that the voting behaviour of Indians is many times more mature than the voting behaviour of the voters in western countries.

Acc. to Prof. M.P. Singh - The credit for success for India's democracy go to the great common sense shown by ordinary voters in India.

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Ministry of Panchayati Raj have started Panchayat Yojana & Mahila Sashaktikaran Abhiyan. Such mission and movement should continue for the empowerment of woman.

Short note on Grassroot Movement

Through the views of some scholars-

Acc: to D.L. Sheth - Grassroot movements or micro movements have become active in different parts of country since 70s. They represent disparate struggles of economically marginalised and socially excluded sections of the society. Many micro movements have combined together to form National level Alliance to fight against Indian states on the issues of Globalisation. There is an impression that Indian state is increasingly getting aligned with Foreign Capital. Micro movements are countervailing forces against global political and economic power.

Micro movements
since 70s
National level
alliance
form in
to influence
Indian state

Rajni Kothari - mentions the rise of micro movement is a symbol of the dissatisfaction with representational politics and institutional decline. There is a decline of Parliament and disconnect between people and their representative. There is a decline of political parties. Political parties have long abandoned movement aspect of politics and have reduced themselves to the electoral machines. Political parties operate at the grassroot level only at the time of election. Trade unions in India have been the junior partners and bargaining counters of political parties.

For congress
prevail
should go again
for social movements

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These micromovements led by the educated middle classes have emerged in India.

Smitu Kothari. Acc. to Smitu Kothari globalization have revived the grassroot movement around the world because of the destructive forces of development. Globalisation have also promoted the growth of movements for peace, Human Right and movements against corruption.

Anurita Basu suggest the growth of grassroot movement in India is because of capitalist model of development on one hand and the availability of democratic state on other hand.

Ranjitha Mohanty has suggested that grass root movement have served following tasks.

- ① Replaced the exclusionary narrative of State led development with counter narrative of inclusion.
- ② Expand non-party political spaces for social actions.
- ③ Public space is constantly democratize.
- ④ Renegotiating People's relationship with the state.
- ⑤ Site of the reconstruction of modernity through the discourse of citizenship & Rights.



Topic in Syllabus

Judiciary

Enlarge Role and Actual Record

Q. - Define Judicial Activism, what are the causes for the rise of Judicial Activism and what have been the consequences of Judicial Activism?

Q. Explain the difference between Judicial Review, Judicial Activism and Judicial Overreach.

Q. Critically evaluate the Role of Supreme Court towards fulfilment of its constitutional Mandate.

Q. Why Pratap Bhanu Mehta calls Judiciary a Paradoxical Institution?

Q. What do you understand by politicisation of Judiciary and Judicialisation of Politics? Is India a case of Judicial Sovereignty and Judicial Democracy?

Q. Discuss the major areas of reform required in India's Judicial system.

Introduction

Acc. to Lord Bryce - "There is no better Test of the excellence of the govt. than the functioning of its

Judicial system"

Above statement clearly shows that the efficient Judicial system is an integral component for good Governance which is a precondition of Development.

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study show direct correlation between efficiency of Judiciary and economic growth.

Efficiency of Judiciary & Economic growth

what is the Role of Judiciary?

In a democratic country like India Judiciary is considered as the Institution which ensures that Democracy does not get converted into tyranny of Majority. Hence Judiciary is given the power of Judicial Review which ensures the Rule of law in the Country.

To prevent the country to convert to tyranny by ensuring Rule of Law

Nature of Judiciary under the Indian Constitution

Acc. to Granville Austin "Once political Revolution was over in 1947, India started with the second revolution i.e. Social & Economic Revolution"

Acc. to Bhatap Bhanu Menta Constitution of India is itself a revolutionary document. Constitution became the basis for transformation of Traditional society into a Modern society. Indian Revolution was supposed to be led by the state.

Acc. to Pt. Nehru Constitution of India does not envisaged passive Judiciary, it actually looks Judiciary as an active participant in India's Social Revolution.

what are the grounds to suggest that Indian Constitution does not create a passive Judiciary?

Art-36 - In Art-36 Judiciary also comes within the (194)

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definition of state" Hence Judiciary can also be a measure for the achievement of the directives given in Part-IV of the Constitution.

Art. 141 - As per Art. 141 the law declared by S.C. shall be (binding on all Courts) within the territory of India.

It means Constitution empowers Judiciary to declare the law. Above provision implies that so long legislature does not make the law, the law declared by S.C. will be treated as law.

for e.g. - Till Parliament has not brought the law on (sexual harassment) of woman in work places Mishakha guideline issued by S.C. were to be treated as law.

Q. Discuss the nature of Judiciary created by the Constitution.

Acc. to the Constitutional Experts, Indian Constitution creates the strongest Judiciary in the world. Constitution not only creates strongest Judiciary but also "freely Independent Judiciary".

Powers of Supreme Court

Art. 129 - As per Art. 129 S.C. is a court of record. As a Court of Record, the orders of S.C. are to be treated as law in all Courts and as a Court of record it has power to punish for its contempt.

Art. 137 - Review Petition.

Only S.C. can review its order. There is no other (195)

Due process of law only in interpreting Art. 21.

Indian Judiciary is Super legislative

Super Constituent Assembly.

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Authority on Court over S.C.

Art. 142 - Power to do complete justice

In case of any matter pending before S.C., it can issue any order or decree for the purpose of doing complete justice and it shall be the responsibility of the other two branches of govt. to get its order implemented.

Art. 144 - The law declared by S.C. is binding on all Courts.

Art. 144 - All Authorities, Civil & Judicial within the territory of India shall Act in Aid of S.C.

Jurisdiction of Supreme Court

President & Supreme Court

① Federal Jurisdiction - Art. 131 (In case of dispute b/w any two states then they will go to SC)

② Advisory Jurisdiction - Art. 143 (Power of President to consult Supreme Court)
→ Binding on SC only on the treaties existing before the commencement of Constitution

③ Writ Jurisdiction - for enforcement of P.R.

④ Appellate Jurisdiction - S.C. has been made the highest court of appeal for the sake of uniformity. However it is expected that Appellate Jurisdiction remains restricted and S.C. should not be overburden. Hence Appellate Jurisdiction is a discretionary power of S.C. and requires a certificate by High Court except in a situation where H.C. has given death sentence, life Imprisonment or Imprisonment of 10 years or above.

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when they are high level of punishments on records of High Court
can go to Supreme Court

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Civil certificates-

↳ Substantial question of law of Public Implementation.

Res Judicata

special leave petition is used when a person have doubt over the decision given by HC/tribunal.

Functions, Functionaries & Finance

Uppendia Bakshi & Chatterjee

S.C. has Appellate Jurisdiction in civil matters, Criminal matters and matters related to the interpretation of the Constitution. There is also a provision for special leave petition where S.C. can grant permission for petition against any order of any court or Tribunal except the Courts of Armed Forces.

Independence of Judiciary (S.C.)

1. System of Appointment

It is very difficult to remove a judge of S.C. & H.C. ^{Imprec}

2. Salary & Allowances are the expenditure charged upon the Consolidated fund of India.

Assessment of Supreme Court in India

There is a difference of opinion among the scholars with respect to the role played by S.C. in India.

On one hand ~~scholar~~ scholars like Uppendia Bakshi appreciate the role of S.C. in strengthening democracy in India. Acc. to Uppendia Bakshi S.C. is doing chemotherapy of the Cancerous Indian Politics. Acc. to him Judiciary has ensured the rule of law and has strengthened the rights for people in India. It is for this reason S.C. has become "S.C. of Indians".

Surveys show that the most favourite Institution of Indians is Judiciary.

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Ranap Bhanu Mehta mentions about "Post Democracy".
Post democracy means the ~~strengthening of~~ the power
of non-elected Institution. like S.C., CAG, E.C.

The scholars like Ranap Bhanu Mehta take extremely
critical view about the S.C. in his article.

"India's Judiciary: The Promise of Uncertainty."

He calls Judiciary as "self perpetuating, paradoxical
and highly politicized Institution."

Influenced by
Political Environment

Judicial Activism
Judges

BCJ decisions
keep on changing

Lavanya Rajamani is also critical of Judiciary as
she suggest that Judiciary in India prefers to
play the role for which it is ill equipped and
neglects the role which it is required to play.

Ranap Bhanu Mehta in his book co-authored with
Derek Kapoos titled Public Institutions in India
has given following assessment of the role of S.C.
S.C. has by enlarge played a significant and even
pivotal role in sustaining India's liberal democratic
Institution and upholding the rule of law. S.C.
is one of the World's most powerful Judicial body
yet precisely because of this its career has been
and remains overshadowed by Irony and
controversies. Its role has been both positive
as well as problematic for Indian Democracy.
He has Analysed the role of S.C. in upholding the
basic liberties. S.C. has actually upheld the basic
liberties but its record in questioning govt. law

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related to preventive detention and govt. action. preventive detention have not been satisfactory. S.C. did protect the freedom of speech & expression but has given "leeway" to the govt. actions, banning books to appease orthodox sections of the society.

S.C. second in Areas of ^{Core Justice} substantive Justice upholding Rights like - Right to health education, ~~Gen~~ shelter needs to be appreciated

PJL has become an important vehicle for extension of Judicial Power.

Public Interest Litigation

Acc. to Pratap Bhanu Mehta Judiciary is supposed to uphold the rule of law. Judiciary is the guardian of the Constitution. There are many instances where Judiciary has protected the Constitution but in the process Judiciary itself has gone beyond the Constitution and acquired the power which has not been given to it by the Constitution.

Judiciary went so far that it has taken the power which was not given in the Constitution

Constitutionalism is not a dogma. It is a process. It is a way of life. It is a way of thinking. It is a way of acting. It is a way of being.

Acc. to him "Constitutionalism does not result from the act of Judiciary" Constitutionalism actually results when people develop overlapping consensus over democratic culture.

Judiciary in India does not work on any ^{important principle which influences many things} overarching principle. Hence there is an uncertainty in Indian judicial system. Most of the Judicial decisions are Artifacts of Individual Judges. (199)

The unpredictable nature militates against the
spirit of Constitutionalism.

He also talks about the phenomena of Politicisation
of Judiciary and Judicialisation of Politics.

Judiciary in India is itself a Political Institution.
The judgements are delicate political balances.

Judges attempt to balance competing political
aspiration.

for e.g. - Many of its Judgements are not based
on legal principles but on political requirement.

Judiciary has strengthened its position vis-a-vis
other two branches of govt. Judiciary has played
its cards more smartly than the other two
branches. In the words of Pratap Bhanu Mehta

"Judicial Power in India creates itself and
destroys itself".

Judiciary has gained popularity at the cost of
other branches of govt. It has used its image
to strengthen its power. At times Judiciary
has protected erring judges in the name of
Judicial Independence.

Pratap Bhanu Mehta suggest that "India represents
the classical case of Judicial Governance". Judiciary
have not remained indifferent with any major
issue of public life. "Judiciary is less concerned
(200)

Judiciary
Noted also that
Executive does
organise itself
for self preservation

with performance of its own duties rather than
stigmatisation of executives? Judicial Activism
has hardly resulted into any real change in the quality
of life.

Prof. Upendra Bakshi in his article "Unfair to
Justices" has defended the role played by Judiciary.
There may be some judgement which may be based
on sentimentalism rather than reason, as in some
cases Judiciary may have gone wrong but overall
Judiciary has contributed to the deepening of democracy
in India and protection of liberal order.

To conclude, we can say that the record of Judiciary
has been comparatively better in comparison to the
other two branches of the govt. Some of the landmark
Judgement of S.C. includes the judgement in
Keshwanand Bharti case which has protected the
sanctity of the Constitution.

Art 368
Basic Structure

Acc. to Zia Mody "If Judiciary has not given the
doctrine of Basic Structure, democracy would not
have survived and India would have gone to the
same path like other 3rd world countries where
democracy collapsed and dictatorship came into
existence."

Due process
of law

S.C. in Menaka Gandhi case has given the Due process
of law and since then there has been much better
protection to P.R. and of life and liberty.

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Judiciary in order to fulfill its constitutional obligation under Art. 32A that it is a duty to provide free justice and legal Aid, Judiciary has ~~introduced~~ instituted the system of PIL.

Q. What is Judicial Activism and how Judicial Activism differs from Judicial Overreach. Discuss the desirability of Judicial Activism in Indian Situation.

23/10/2019
What is Activism?

The concept of activism can be understood by applying the concept of chemistry. Electron moving in his orbit gets extra energy and jumps into the orbit of the other. Similarly in case of Institutions when they get extra energy and go beyond their constitutionally mandated limits and interfere into the orbit of the other is called as activism by that branch.

Thus Judicial Activism is when Judiciary go beyond the constitutional mandate and intervene in the sphere of legislature and executive. Judicial Activism is not unique in India it is a universal phenomena. Similarly Activism is not unique to Judiciary. In India we have seen activism by legislature, executive, CAG, CCI at different times.

What are the conditions which give rise to Judicial Activism?

① Written Constitution (2022)

↳ for every federal country there is written constitution

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to uphold the fundamental rights
& will go to change laws made
by Executive or Legislature

- ① If a Constitution contains a scheme of f.p.
- ② If a Country is a part of Global Human Rights Reg.

what are the Unique factors in India?

- ① Overreach by executive → Bonapartian State
- ② Decline of Parliament
- ③ Coalition Politics → Started after 1967 after the 1st Democratic uprising
- ④ Passivity on the part of other two branches of govt.
- ⑤ Globalization
- ⑥ Growth in Corruption
- ⑦ Civil society activism → Environmental movement
Communal movements
Social movements
- ⑧ Emergency and violation of Rights
- ⑨ Constitution of India itself provide for Activist Judiciary
- ⑩ Political culture where judges enjoy lot of respect
- ⑪ Personal preference of Judges → Collegium → Where Judges are
Chosen by Judges
- ⑫ Indian Public romanticising Judicial Activism.

Indian public are
accepting & encouraging
few of them as heroes
for judicial activism.

Idea of Judicial Activism.

Judicial Activism should be differentiated with similar
concept like Judicial Review.

Judicial Review is
in the
sphere
where
executive
& legislature
are concerned

Judiciary only
can't do
business review
of govt. actions
& actions
of govt.
It is
not
the
business
of
Judiciary
to
do
this

Judicial Review - Judicial review is the Ordinary
function of Judiciary otherwise it will be called as

means have
not going
out of
policy
it was
in constitution
from
which
mentioned

Passive Judiciary However when Judiciary does not
limit itself to the task of Judicial Review and also
suggest what should be the law and starts taking
the responsibility of implementation. It can be called as
Activism one of the extreme example of Judicial
Activism has been the Doctrine of Basic Structure

given in Keshwanand Bharti case

- In Keshwanand Bharti Case Judiciary has gone beyond the Constitution, Judiciary has invented the concept of Basic structure and not assumed the Role of legislature but the Role of Constituent Assembly. Similarly the way Judiciary has interpreted the term consultation in context of appointment of Judges and has declared 99- Constitutional Amendment invalid.

NTAC → National Judicial
Appointments Commission

There is a difference in Judicial activism and Judicial overreach. However the difference is subjective. Today Judicial activism has developed consent in its favour. Those actions of Judiciary for which there is a consent are called as Activism whereas those actions where people feel that Judiciary should not overstep can be considered as overreach. It will vary from person to person.

If there is a consent then called Judicial activism. When we consider it as overstep then can be termed as overreach.

For eg. with respect to Judiciary's decision of Interstate River linking project some section considered it as desegable and so treated as Activism which has become normal whereas many consider the judiciary has overstepped because Judiciary does not have expertise in this matter.

At times Judicial highheadedness is often use. Judicial highheadedness would mean that Judiciary is not using its power in the right context.

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for e.g. No. of times Judiciary has issued the writs of Court notice against Journalist to protecterring Judges.

Judiciary
Protects
Journalists
from
misconduct

Is Judicial Activism desirable?

There are two schools of thought

Need to conventional school
Judiciary should not involve in
law making but involve in
those which hold state
Expenditure

① Conventional school/Approach.

Lord Jowett,

Former Justice Bhargava, Former Justice Katju

Acc. to Lord Jowett it is indecent for Judges to make law, Acc. to former Justice Bhargava, Judiciary neither has expertise nor resources to micro manage the Administrative Leviathan.

Acc. to Katju "Judges should tell if there is one, don't make if there is none."

Law is not made by Judges
Law is made by Legislature

② Contemporary school

Justice Reed of USA,

Former Justice P.N. Bhagwati, Legal Activist Karpana.

Kannabiran

Legal Activist,

Acc. to Justice Reed. Interpretation is always a creative function. Judges always make law when they tell the law. Interpretation is never a photographic function.

Acc. to former Justice P.N. Bhagwati - Gone are the days when it was considered indecent for Judges to do activism. If Judiciary doesn't go for activism, it means Judges are trying to escape from their responsibilities. They are preferring to live in the comfort zone unaffected.

no more
not considered
as indecent rather
it's been promoted

by Public Criticism.

Des:

Legal Activist

Acc. to Kalpana Kannabisen the era of ^{Excessively concerned about minor rules} pedantic legalism is over and the era of Judicial activism has started.

Desirability in case of India:

"Matter of Debate"

The critics of Judicial Activism includes. Katju, former P.M. Manmohan Singh; Pratap Bhanu Mehta is critical of Judicial activism on no. of occasions but he is not against judicial activism in those situation where decision has strengthened democracy and protected Rights.

Prof Udaya Bakshi is an admirer of Judicial Activism and considered it as chemotherapy.

Though it seems that in some cases Judicial activism was not needed but in most of the cases in India Judicial activism is seen to be blessing in disguise.

Judicial activism has acted as safety valve. We can imagine a situation where Parliament is in decline, Executive is either not fulfilling its duty or not acting in its arbitrary way. If Judiciary has closed its door, the only option left was Revolution in India with People.

Judicial Activism in India has protected

- ① Safeguard of the Constitution
- ② strengthened Human Rights
- ③ Tried to address corruption
- ④ Filled the gap when there was Blig Paralysis
- ⑤ Tried to bring electoral reform
- ⑥ Has strengthened Substantive Justice in context of
- ⑦ Right to Education, Right to Food

Acc. to Bhikhu Parekh - India emerges as a case of 'Judicial co-governance'. He also suggest that India is an example of 'Judicial sovereignty'

Pratap Bhanu mehta suggest that India is an example of "Post democracy" where there is a greater consent for non-elected Institutions.

Conclusion:

To conclude we can say that Judicial Activism has benefitted the country but it does not mean that country should be run by judges. Judicial Activism can be a Medicine but it cannot become Daily Bread. Hence it is necessary that other two branches of govt. should start fulfilling their responsibility instead of criticism of Judiciary.

when there is
policy paralysis
or other scenarios
then it can act
as a medicine
but it should not
be interfering
frequently in the
working of executive
legislature



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Judicial Reforms

Acc. to Lord Bruce: There is no better test of the excellence of the governance than the functioning of its judicial system. It is said that "if the lamp of Justice goes, it will be difficult to imagine the amount of darkness."

(which means it acts as a safety valve)

To quote from Bible "You are the salt of the Earth. If ~~Earth~~^{salt} loses its savour from where the Earth will be salted."

Why Reform?

Studies show the direct relationship between Judicial Reform and Economic growth. Judiciary is the most important Institution of grievance redressal. If Judicial system is not effective and efficient the only option left is revolution.

What Reforms are needed in Indian Judicial system?

① Speedy delivery of Justice

It is said that Justice delayed is Justice denied. Indian Judicial system is notorious for excessive and unnecessary delays. It is said that if a person has filled a suit in Indian Court, it is not necessary that his grandson will get the order.

The classical example is Arya Samaj Case.

⑩ Tackling Corruption:

Corruption of any branch of govt. is unacceptable. Corruption of Judiciary is unthinkable. It is unfortunate that corruption in Indian Judicial system has increased many times. It is not just limited to sub-ordinate Judiciary but now it is reaching to Higher Judiciary.
For eg. → In Gaziabad Provident fund, many judges of High Court and even Supreme Court is accused.

Institutional Reform.

There is a need to reform the system of appointment and removal of Judges. There is a need to increase the no. of Court. There is a need to strengthened the Capacity building programme of Judges.

who are the stake holders ?

⑪ Union Govt.

⑫ Judiciary

⑬ Bar Associations

⑭ Civil Society.

Responsibility of Union Govt. The biggest responsibility of Union govt to create Infrastructure, provision for Capacity Building of Judges, Review outdated laws, Reform Criminal Justice system, Police Reform, Reform Code of Civil Procedure and Criminal Procedure.

Effective / judicial impact assessment, Recruitment of Judges

⇒ Judges to population ratio in India is lowest. It is around 10.5 Judges per Million population.

⇒ Many posts remain vacant in High Court and Supreme Court because of lack of consensus between Judiciary and Executive.

⇒ Govt. has to increase physical infrastructure as well as manpower. Govt. in India has been an Active litigant. It is good that Govt. has brought new litigation policy which restricts govt. being active litigant.

⇒ Govt. need to take step to create Gram Nyayalayas. Though Gram Nyayalaya Act has been in existence since 2005 yet only handful of Gram Nyayalaya has been inacted. Gram Nyayalaya Act, 2008 → to reduce the burden on the courts

⇒ Govt. should actively promote alternative dispute resolution system.

⇒ Govt. should also promote legal literacy and strengthened legal Aid.

There is a need to introduce Plea Bargaining as suggested by Malimath Committee.

by the defendant pleads guilty to a lesser charge in exchange for a more lenient sentence or an agreement to drop charges. There are many areas where govt. and Judiciary need to work together.

for e.g. ⇒ Reducing the no. of vacations for the Judges. System of Appointment and Accountability.

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10.5:

1,000,000

Reducing the overburden on the judges.

National Litigation Policy

formulated by Ministry of Law & Justice to bring down litigation from govt. agencies by making them more responsible in filing cases. This is to save the time in resolving pending cases time for 15 years to 2 years. Prosecution in litigation have to be accelerated.

Gram Nyayalaya

Village level fast track & easy access to justice system in rural India. Currently not functional. Reason out country best of financial constraints & reluctance of lawyers, police & other officials.

Role of Judiciary-

Special leave
Petitions for
review, retrial
and reconsideration
Normal Business
of the court
Active role in
social and economic
justice
Functions of
the judiciary

Judiciary should also take steps to reduce the no. of cases which are pending. Judiciary can restrict itself from accepting large no. of appeals and specially under Special leave Petition. At time Judiciary has been accused of doing activism at the cost of its Normal Business. Higher Judiciary should take steps to check the cases of corruption.

⇒ on one hand Judiciary take initiative to bring transparency and accountability in the functioning of govt. but on the other hand Judiciary is reluctant with respect to its own accountability.

⇒ S.C. is reluctant to bring the office of CJI within the scope of RTI. ^{As it is not acceptable to come under the reach of RTI}
_{But in recent Delhi court judgement had given that CJI should come under surveillance of RTI. Along it gave power to Secretary Class}

⇒ Judiciary has also not been supportive of govt. proposals like - "Judicial Standards and Accountability Bill" on the name of Judicial Independence.

⇒ Judiciary has to enforce discipline among the Judges and take corrective steps.

They should
implement
model code
of conduct for
lawyers from
Bar Association

Role of Bar Association

One major reason for excessive delays is the Malpractices by lawyers. There is a need that Judiciary and Bar Association together formulate model code of conduct for lawyers. There is a responsibility of civil society to promote legal awareness.

strengthen alternative dispute redressal system. i.e. Civil society should provide legal Aid. Lok Adal

Other suggestion includes the more no. of Fast track Court, e-governance and Capacity building of Judges.

Reform in system of Appointment of Judges in Higher Judiciary

Constituent Assembly debate-

Constituent Assembly considered 3 options.

① Appointment by Executives, which is most common practice around by the world.

② Appointment by Executive and ratification by legislature as found in USA. It was reject because of possibility of Politicization of Judiciary.

③ Judges appointing Judges for the sake of Judicial Independence.

Ambedkar rejected the proposal as he suggested that there cannot be "Imperium in Imperio" i.e. "State within state". There has to be checks and Balances.

Which system was accepted - ?

Appointment by executive but Executive was not given free hand to check Politicization and for the sake of professionalism. Hence appointment only after the Consultation with Higher Judiciary.

to avoid politicisation of judiciary. so president appoints judges on the advice of senior judges.

who govt will select the people to be judges

in USA Judiciary members are selected by the constitution where approach by executive is ratified by legislature.

which is followed in our constitution

So he said that in Indian constitution assembly should select the judges

Thus Constitution maintained a fragile balance though it seems tilted towards Judiciary. Balance is only depend primarily on the intention of executive.

System in Practice

In practice, the system where judges appointing judges have come into existence and the role of executive have been reduced to the rubber stamp.

Evolution of Collegium system.

Executive overreach

① Immediately after Keshwanand Bharti Judgement Justice A.N. Ray was appointed as CJI superseding 3 senior-most judges.

② In 1977 Justice Beg was appointed as CJI superseding Justice Khanna.

Law Commission has suggested that selection on basis of seniority should be based on merit criteria.

Above two actions of the executive were seen as an attempt of executive overreach. Though there was no prohibition on executive and even Law Commission has suggested that seniority alone should not be the basis for appointment of CJI rather Merit should be the criteria. However the manner and the timing in which executive gave merit as the basis was flawed.

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Cases Related to Appointment of Judges

① Sankalchand Case 1977

In this case S.C. was to interpret the meaning of the term consultation used in Art. 217 dealing with transfer of Judges of High Court (213)

In this case S.C. held that Consultation does not mean Concurrence - agreement or compulsory agree.

⑩ S.P. Gupta Case - 1981

Known as "1st Judges case".

S.C. again held that Consultation is not Concurrence.

⑪ S.C. advocate on Record v/p Union of India Case - 1993

Known as "2nd Judges case".

S.C. overruled its view and held that Consultation means Concurrence.

It gave primacy to the opinion of C.J. C.J. was to give opinion after consultation with 2 previous most Judges.

⑫ 3rd Judges Case

Presidential Reference to S.C. 1998

President's Sc

Under Art. 143 Neither S.C. is bound to give nor govt. is bound to accept. But S.C. took the undertaking as a pre-condition to give opinion. whatever will be the opinion, it will be binding on executives.

Features of Judgement

- ① Consultation means Concurrence.
- ② C.J. would consult 4 previous most Judges ^{collegium}.
- ③ For appointment concurrence of at least 2 Judges is need which must include C.J. To create the balance it was mentioned that if 3 Judges disagree and C.J. and 1 Judge agree then also name will not be recommended. (2/14)

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1st Judges case
Recommendation
by the C.J.
is merely
consultation

S.C. with
collegium
gives suggestion
to President
which is
binding on
executive



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⑩ In case executive returns the name for reconsideration it will give the reasons ~~reasons~~, will be considered by Collegium, if Collegium sends the name again, Executive has to appoint.

Problems in Collegium system

Inefficiency S.C. is already overburdened and hence it was difficult to allocate time as a result many posts in many high courts remained vacant which has increased the delay in delivery of Justice.

Lack of Transparency There have been allegations that merit have not been the criteria rather caste, religion, family ties have been prevailing "Uncle Judge Syndrome". No. of times Bar associations have objected against the appointment of person.

whether allegation was correct or not but still it was necessary that the system should be transparent. It is said that "Ceaser's wife should be above suspicion".

National Commission for the Review of Working of Constitution (NCRWC) under M. Venkat Ch.

had recommended the creation of NJAC. However it has issued guidelines that it should not be done in a manner that it compromises the Basic structure of the Constitution.

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Executive
pro
Burden
Passed under
the Constitution
amendment
repealed by
the Supreme
Court
which gave
rise to
Collegium

Kept it in
Basic structure
by saying it's independence

Global Trends -

In most of the countries there is a shift towards Independent Appointment Commission.

for e.g. → Australia, Canada, UK, S. Africa.

Govt. of India have also brought 99th Amendment Act which has been struck down by Judiciary.

99th Amendment Act

Purpose of NJAC

- ① Appointment of CJI
- ② Appointment of other Judges of S.C.
- ③ Appointment of Justices of H.C.
- ④ Transfer of Justices of H.C.

Function of NJAC

NJAC will prepare Memorandum of Procedure (MoP) which will determine the parameters for the appointment with respect to merit & integrity.

Composition of NJAC

- ① CJI As a Chairperson
- ② Two senior most Judges of S.C.
- ③ Law Minister
- ④ Two eminent persons.

Process of the selection of Eminent Person-

selected by 8 member committee comprising of PM, leader of Opposition & CJI (216)

which & may
will be selected
based on
merit & integrity
rather than
Seniority.

UNION PARLIAMENT

Q. Discuss the appropriateness of Parliamentary democracy. Should we shift towards Presidential system or direct democracy?

Q. What do you understand by decline of Parliament? What are the causes of decline of Parliament and consequences?

Constituent Assembly has considered all the 3 options for the form of govt. to be adopted in India.

Monkey & dog parliament analogy
[Gandhians] were proposing [Party less democracy]. Gandhi was critic of Political Party because they pursue [unethical politics]. They pursue [party interest] in the name of [National Interest]. Parties result into concentration of power.

However modernists like Nehru & Ambedkar rejected the idea of direct democracy. They also rejected the proposal for presidential system and preferred representative democracy and Parliamentary form of govt. for following reason *Quota British govt*

→ Experience
→ day to day accountability
→ legislative

(i) [Experience] with the working of Parliamentary system.

(ii) Parliamentary system is [more accountable]. Govt. is accountable to legislature on [day to day basis].

(iii) Parliamentary system is [more democratic] because Parliamentary system results into cabinet form of govt. or collegiate executive or [Plural executive].

(iv) Parliamentary form of govt. is better considering [India's diversity] because different groups can



be represented.

Western scholars were apprehensive about the possibility of success of Parliamentary democracy in India from the very beginning.

Why they were apprehensive?

diversity, lack of democratic culture, Economic

The type of social & economic conditions required for the success were absent. One of the earliest work on Indian Parliament and Parliamentary democracy is of Morris Jones. Morris Jones in his book.

Parliament in India give following reason for his apprehension against the working of Parliamentary democracy.

- ① Western in origin
- ② Lack of enough experience citizens are not motivated for democratic culture
- ③ Scale of diversity as it was borrowed
- ④ Social cleavages which automatically result into adversarial democracy rather than consensual democracy.
- ⑤ In traditional society like India, power becomes very important for survival so there will be an extreme competition in politics for power.

Morris Jones has highlighted the following weaknesses of the working of Parliamentary democracy during the time of Pt. Nehru.

- ① Lack of opposition in the country
- ② Lack of Independent thinking among Backbenchers.

- III) close relationship between govt. & party
- IV) Concealed dictatorship of Nehru.
- V) Social environment in the country.

caste
Religion

We can discuss the evolution of Parliamentary democracy in following Phases.

Phase-1 $\Rightarrow$ uptill 1960's - Nehruvian Phase

give reasons given by Morris Jones.

1st democratic
upswing
in 1960's

Phase-2 $\Rightarrow$ from 1960's - 1990's - Beginning of the decline and disillusionment with Parliamentary democracy

- i) Death of Pt. Nehru,
- ii) Breakdown of Congress system.
- iii) The beginning of defections.
- iv) Indira Gandhi started concentrating power in her hand.
- v) Decline of Cabinet system
- vi) Rise of Regional Parties
- vii) Growth of Corruption
- viii) By this time idealism of National Movement was over
- ix) Failure of govt. on Economic front.

There was a rise of social movement in 70's :
Anti-price rise agitation, chipko movement.

Jai Prakash Narayan called for 'Total Revolution'

Govt. has imposed Emergency even on International

It appeared as if the experiment of democracy

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is over. Emergency was the trial period for Parliamentary democracy. Fortunately democracy survived. However extremely adversarial politics started. There was a growth of Regionalism in the country. Breakdown of law & order situation in North East Punjab, J&K

Phase-3 → from 1990s - Greatest Amount of decline

In the words of vice President Hamid Ansari - Parliament has become "Federation of Anarchy"

debates are raucous, informed debates are rarer.

Ruling Party & opposition meet as two warring groups.

Pratap Bhanu Mehta and Devesh Kapoor in their book "Public Institution in India" mentions that

Criminalization of Politics has made Indian Parliament a self-serving institution. Due to criminalization of politics

Shankar and Rodrigues in their book on Indian Parliament give following reason for decline of

(i) Plebianization of Indian democracy

(ii) Coalition Politics → forming connection with lower class

(iii) Lack of Responsible opposition → instability in govt.

(iv) Lack of electoral reforms → in India recently it led to one party system

(v) Presence of Criminals in Parliament → where they have started using parliament powers to secure money

(vi) Politicization of the Post of Speaker → giving biased decisions

(vii) Problem of Defection

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Neo Liberalism
Constrains the govt

dictators they
cannot hold the ruling
accountable.

- (ii) Increasing amount of Corruption
- (ix) Globalisation has taken away the scope for Policy making
- (x) Lack of training and Capacity Building among Parliamentarians
- (xi) Poor functioning of the Committee system
- (xii) Disruptions in Parliament
- (xiii) Increase in no. of ordinances

World Bank has given 5 parameters to evaluate the working of legislature

(i) Financial - Parliament is a supreme institution of accountability of the govt. Hence Parliament's financial accountability on cost to the country have to be evaluated

How much parliamentarians
comply with a Rules
of procedure

Conduct of parliamentarians

(ii) Compliance - Parliament is a supreme institution of law making in the country. There is a need to assess how much Parliamentarians comply with the rules of procedure which they make themselves for the conduct of Parliament.

(iii) Efficiency - we have to evaluate the efficiency of Parliament in terms of quality of work, time invested and cost involved

(iv) Effectiveness - How much presence of the institution felt in the country.

(v) Relevance - How much qualitative improvement the institution is bringing in the life of the people

How much
its influencing
the people

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⑩ Sustainability - If institution in. rise or decline

For stock market

On the basis of above parameters, the report of functioning of Parliament and legislature is not very satisfactory. However it does not mean that Parliament in India has not done any great job. Parliament has brought many landmark legislation like - Right to Education, Right to food, Right to employment, RTI

It is to be noted that despite all unfavourable situations Parliamentary democracy have survived in the country. Massive Participation of people in the election shows that there is the trust of people in the institution of democracy in the country. Indian democracy is maturing. However to make India realize its potential, it is necessary that Institutional reforms are implemented. The most urgent of all reform i.e. mother of all reform

i.e. Electoral Reform should be done with urgent urgency to arrest the decline of Parliamentary democracy.

Though there has been suggestion for introduction for Presidential form of govt. because of Political instability, however it is neither possible nor desirable what matters is not the institution but the persons working in the institution.

Presidential system may not be a good option because with the exception of USA in no other country it could maintain its democratic character. However there is a need to give serious thinking towards.

In other countries without proper civil society it may develop into fascism

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direct democracy

Acc. to prof. like - Deepankar Gupta & Neeraja Gopal Jajal, we should be seriously thinking about movement towards direct democracy. The question is not whether we should have direct democracy or not but how and when.

short note on the Role of opposition

Opposition is an integral component of the parliamentary form of govt. In parliamentary system opposition enjoys certain rights & privileges like - Right to ask questions, bring motion. Opposition acts as check & balance.

recognizing the importance of opposition, opposition in Britain is called as His Majesty's opposition. In India also there is a statutory recognition to the leader of opposition in both the Houses. He enjoys the status of the Minister of the Cabinet Rank. leader of

opposition is included in the screening committee in the appointment of Important posts. The role of opposition has not been satisfactory. Initially opposition lack strength. In the Congress system opposition was acting outside the Margins. with the breakdown of Congress system, strength of opposition started increasing in numbers. However, opposition could not play effective role because of lack of solidarity. Since the beginning of Minority governance and coalition politics, there is a considerable growth in the power of opposition. However, opposition have not played a satisfactory role. opposition is a major factor for

lack of training & capability

Even though they are included in screening committee But they lack training & capability

On Solidarity - Support of one group to another

the decline of Parliament and Ordinance Raj in India. Opposition does not follow Parliamentary ethics. The Parliamentary ethics is opposition should have its say but govt. should have its way. Opposition in India has often sabotage the functioning of the govt. Because of extremely adversarial politics, opposition even does not support the right policies of the govt. Since political parties do not differ with respect to policies, they prefer not to debate rather walk out of the Parliament. Opposition does not take interest in the Standing Committee of Parliament. Opposition have preferred the role of Investigative agencies instead of Parliamentary committee. They prefer Joint Parliamentary Committees an Indian innovation to investigate scams.

opposition was not able to provide effective role rather they always sabotage functioning of govt.

they outrightly go against the govt. Even its good policy.

Parliament committee is not effective role play really is.

Reforms

- (i) Electoral Reform check the entry of criminals & influence of Money Power
- (ii) Reform the Institution of speaker and adopt the British system of Once a speaker is always a speaker
- (iii) Reform Anti-defection law and make a balance between interest of a political party and privilege of freedom of speech & expression for Parliamentarians
- (iv) Codification of Privileges for Parliamentarians to define the limit and check Judicial Intervention in Parliament
- (v) Training & Capacity Building of Parliamentarian → so they can increase the accountability
- (vi) Ensure the minimum working hour of Parliament → for effective proceedings
- (vii) Make Committee system functional
- (viii) Media should also patronize the positive role done by Parliament.

UNION EXECUTIVE

Q. Critically examine the position of President. To what extent it is appropriate to say that Indian President is a Rubber stamp.

Q. What is Presidential Activism? Give examples of Presidential Activism and desirability of Presidential Activism.

Q. What is a co-habitation? How does co-habitation impact the smooth functioning of Parliamentary form of Govt.

Q. Examine the impact of Coalition Politics on the Institution of PM.

What is Role of President Acc. to the Constitution?

Acc. to Art. 54 President is the Head of Union Executive.

All executive action of the Union are taken in the name of President. President shall take action in accordance to the Constitution.

President Acc. to the Theory of Parliamentary form of Govt.

In a Parliamentary form of Govt. There are two Heads.

① Nominal Head or Titular Head

② Real Head

① Mean Head

Why two Heads?

① There is a uncertainty with respect to the tenure of govt. hence for the continuity of the administration President is required.

acts as Emergency
Beacon of light

② Since Parliamentary system is based on Party Politics, it is necessary for symbolic purpose to have a Head who can be treated as neutral like Queen in Britain.

Nature of the Institution in India

Nature of the Institution in India differs from the Nature of the Institution of British Monarch for following reason.

① Britain is Monarchy and India is Republic.

② Britain is Unitary form of Govt. and India is Federation.

Hence in case of India because Institution is elected, we cannot say that it will be completely neutral as in case of Britain. Similarly President is also the representative of the states at Union level.

Indian Institution deviates from British Institution in following ways

① Elected → Indian president is elected

② In Britain king enjoys Absolute Autonomy however in case of India President can be Impeached for the violation of the constitution under Art. 61

Inconsistencies in the Original Constitution with respect to the position of President -

① Art. 74 Before 42nd Amendment Act, it was not mandatory for the President to Act on the advice of com.

Later changed
By 42nd amendment

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whereas in Parliamentary system, he should be a nominal Head or Rubber stamp.

① In original Constitution even for Constitutional Amendment Bill, it was not binding for the President to give assent to.

② There is a inconsistency with Art 61 and Art 361. Art 361 suggest that President & Governor shall not be answerable to the Court of law for any Act performed as their official duty. However Art 61 makes President accountable to the legislature for the violation of the Constitution.

③ Art 60 deals with the Oath of President. President takes the oath to protect & defend the Constitution.

④ In case of India President has been given power to send messages to both Houses of Parliament which is a feature of Presidential form of Govt. In Parliamentary system President should communicate with the Parliament only through the Prime Minister.

Consequence of the Confusion (Ambiguities) -

Dispute emerged between 1st President & 1st P.M. over Hindu Code Bill. President Rajendra Prasad was not in favour of Hindu code Bill, He asserted that Indian Constitution does not create a Rubber stamp President as in case of Britain. He asserted that President has discretionary power and President has responsibility to defend the Constitution. Ultimately controversy was resolved with the intervention of 1st Attorney General M.C. Setalvad who held that In India President does not have any Real power because we have adopted Parliamentary form of Govt. (228)

Later on S.C. in its Judgement in Shamsher Singh Case and in Ram Jawaya case held that President and Governor are mere Constitutional Head.

4th Amendment Act 1971 has made it mandatory for the President to give assent to the Amendment Bill.

42nd Amendment Act, 1976 further settled the controversy by Amending Art. 74 which made it mandatory for the President to Act as per the advice of COM. Thus clearly establishing that in a Parliamentary form of govt. President is a figure Head and he is supposed to be a Rubber stamp.

Acc. to Constitutional Expert 42nd Amendment Act has done Right Amendment with respect to the office of President.

Acc. to James Manon - Constituent Assembly lacked the understanding with respect to the Nature of the Institution they are creating and they have left provision on time to settle the controversy and expected that healthy Conventions.

42nd Amendment Act has put Conventions Black & white.

42nd Amendment Act also bring clarity as to what does it mean when constitution mention impeachment of the President for the violation of Constitution.

In case of President, violation of Constitution means when President does not act acc- to advice given

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by COM Headed by P.M.

It is to be noted that as per sec Parliamentary form of govt is a basic structure of the Constitution.

44th Amendment Act

44th Amendment Act again unsettled the issue. It gave partial discretion to the President. Now President can send the advice back but only once.

Acc. to the Constitutional experts 44th Amendment was not desirable with respect to the Institution of President. It was politically motivated because non-congress parties were always in favour of stronger President. Situation may arise where President belong to the different party and PM belong to different party. Then the President may be used to check the PM.

What is the Actual Position of President?

The actual position of President is best described by former President R. Venkateshraman. R. Venkateshraman was the President when coalition era started. He gave and coalition govt give discretionary power to the President. President R. Venkateshraman has established healthy conventions to minimize the scope of discretion. He used to call himself a "Copy Book President". He held that "President in India is like an Emergency lamp which comes to power only when the main switch is off."

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Q. What is co-habitation? Give illustrations and the consequences.

Co-habitation is a term used in French political system. In France there is a Semi Presidential form of govt. Co-habitation is a situation where president belong to the different party and PM belong to different party. In such situation the relationship between President and PM is not as smooth as it should be.

In case of India also there have been occasions of co-habitation. Co-habitation has created a situation of 'Presidential Activism'.

Acc. to James Manor, many President in India have been activist President. If we take the example of Dr. Rajendra Prasad, despite belonging to the same party, he was activist President.

Giani Zail Singh was also criticized when he used poCKET veto over the Bill proposed by Rajiv Gandhi govt with respect to Amendment in Post office law.

President K.R. Narayanan was one of the most activist President.

for e.g. - He was the 1st one to reject the recommendation for imposition of Art-356 in context of state of U.P.

② Against the tradition of President reading the speech provided by the Ministry on the eve of the Republic day, he preferred to give interview on Doordarshan.

③ He insisted to read his own speech rather than provided by MHA on the occasion of the visit of U.S. President

Bill Clinton.

A.

APJ Abdul Kalam - was not just an Activist President he was Populist President. It is not expected for the President to have such a high level of engagement with the Public. It may result into the development of Alternative Centre of Power.

Constitution of India has created a very delicate & balance between President & P.M. PM is the Real Centre of Power and President's position is the Position of dignity.

Acc. to Bagehot there are two executives in British system

① Real Executive

② Dignified

Acc. to Bagehot the Role of Queen in British system is to act as the Friend Philosopher and Guide of the Govt.
Guide

Art. 78 of Indian Constitution established the fine balance. It mentions the Duties of PM towards the President.

PRIME MINISTER

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Role of PM in Coalition Govt.

Evolution of the Institution of PM in India

Nature of the Institution -

In a cabinet form of Govt. PM is considered as the Captain of the ship of the state. He is considered as keystone of the Cabinet Architecture. He is appointed by the President but other Ministers are appointed on his recommendation. Other Ministers are on the Pleasure of President which means pleasure of P.M.

In practice we find two models of the relationship between PM and COM.

1. Primus Inter pares - First among equal

In case of India when Pt. Nehru was PM and Sardar Patel was Home Minister, the situation of Pt. Nehru was of first among equals.

2. Inter stellas luna Minores - Moon Among stars

After the death of Sardar Patel, the position of Pt. Nehru was like moon among stars because there was no other Minister who had the Charisma at par with Nehru.

The concentration of power in the office of PM kept on increasing even after Pt. Nehru. As the position of PM kept on becoming stronger, the position of COM kept on (233)

becoming weak. It was during shastri, the power started shifting to PM from Cabinet Secretariate. With Indira Gandhi the Institution of PM started developing the features of the Presidential form of Govt. she has undermine the COM and has greater reliance on Personal Advisor. It was one of the factors for the weakening of the Congress Party. Trend continued under Rajiv Gandhi. Congress party suffered largest no. of defections. Since 1989 we see the beginning of Coalition govt at the Union level as a regular feature. Coalition govt. is a fragmented govt. Coalition is a bargain. Coalition govt. weakens the position of PM. In coalition govt. even the smallest faction can punch beyond weight. A=

Acc. to Professor M. P. Singh in Coalition Politics, there is not one PM but many PM.

The position of the former PM becomes weak. He is reduced to the Manager of the Coalition.

Institution is shaped by no. of factors like Personality factor, political environment, political culture. Though Coalition govt. weakens the position of PM but it is not necessary. It depends upon the Personality and the Political skills. we can give the example of Vajpai who managed large no. of parties and has provided the 1st example where coalition govt. completed full term. Even PM Manmohan Singh could provide great leadership and could run the govt. for complete term in UPA-1. It is because of this reason that his govt. got the mandate to run the Country.

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again. Unfortunately he could not provide the same leadership in 2nd term. No. of times he has expressed the problems because of lack of Coalition Dharma.

Above analysis show that the position of PM will not be as powerful as in case where his party enjoys majority in the House but it is not necessary that it will necessarily result into the weakening of the Institution.



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National Commission for women

1974 : UN celebrated as international year of women -

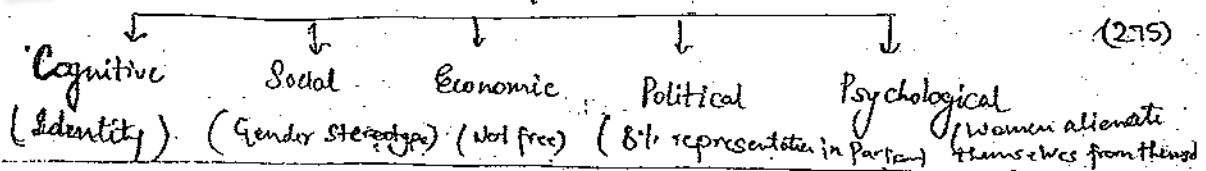
India also made a committee on Status of women in India and came out with a report "Towards equality report". It fired into women movement in India. The

- Women in general, have been subjected to exploitation and repression by our society. In this regard, the year 1974-75 was celebrated as the International year of women. The world conference of the international women's year happened in Mexico city in 1975. The conference resulted in 'Declaration of Mexico' in the equality of women and their contribution to development and peace. This mandated participating countries to draw a status report on the condition of women in their country. This led to the release of 'Towards equality report' by committee on status of women in India. The 1974 document is said to lay ^{the} foundation of women's movement in independent India highlighting discriminatory socio-cultural practices, political and economic processes.

The findings of the report opened the women's question for govt., academia and women's organisations. The report proved to be an eye opener on the conditions of women by talking about development and democracy from a gender perspective. It led to women sensitive policy-making and stress on girl education.

Women suffer from - womb to Tomb or Cradle to grave. There is always problems of

Manifestation



Constitutional provisions - 15(3), 39(B), 41(A), 47

Importance of NCW; PRI, 1993

Women are regarded as 'most vulnerable section of our society'. They do not fall in minority group or backward classes. But, in a patriarchal society they are heavily disadvantaged. In this regard a NCW was constituted under National Commission for Women act, 1990, to aid the legislative and judicial processes to empower the women.

The Section (3) of NCW act provides for the constitution of this Commission. This section lays down that the Commission will have one chairman, 5 ~~vice~~ members from numerous field and a member Secretary who shall be an adept in the fields of management Organisational structure, Sociological movement, or a member of the civil services of the union. All the members of the Commission are nominated by the president of India on the recommendation of Council of ministers. There needs to be one member each from SC and ST.

Functions :

1. The commission is expected to review the development of women under the union or the state govt to study the reasons for the deprived status for women and suggests remedial actions necessarily.
2. To take up the cases for violation of these, constitutional provision provided for development and protection of women.
3. Take part in planning mechanism of socio-economic development of women.
4. Enjoining the authority of civil code, the commission can summon anyone and can also receive evidences, can force anyone.

to be a witness in any case.

5. Take suo moto action or notice on matters relating to the deprived status of women.

- The Section (10) Clause (1) of this act provides a 14-point directive which can be divided into 4 heads:

1. Safeguarding the rights of women
2. Study of problems faced by women and make recommendations to eradicate these problems.
3. Evaluating the status of Indian women
4. Funding and fighting the case for women's rights violation.

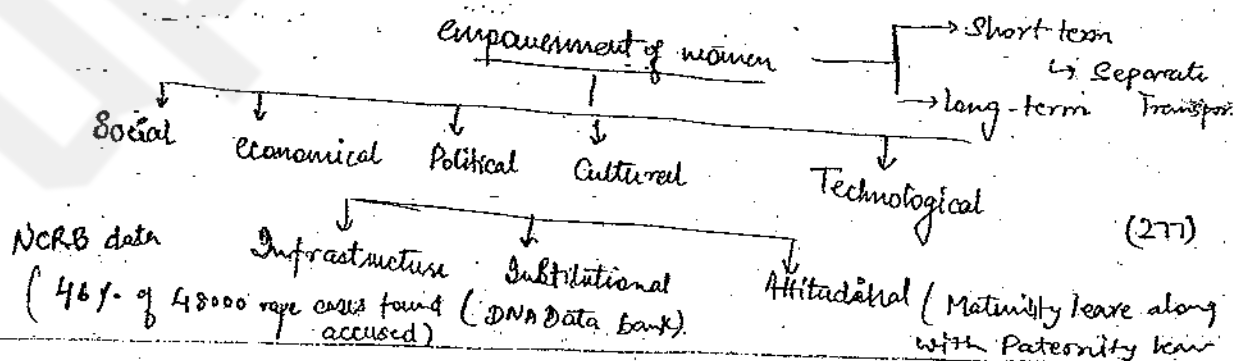
Powers of the commission:

The commission while examining any matters has the power of any civil court and can exercise it in particular in respective matters

1. Summoning and enforcing the attendance of a person
2. Requiring the discovery or production of any document.
3. Receiving evidences on affidavits
4. Requisitioning any public record from any court or office.
5. Any other matter which may be described.

Lacunae:

The national policy for women 2001 called for advancement, development and empowerment of women. Also the charter for NCH caused empowerment for women but Commission at best is actually engaged in just the protection of women.



- NCW deviates from the goals under National policy for women 2001, which is 'to create change in societal attitude to get support from all for the upliftment of all.'

1. Collaborative approach & synergical relationship with the male counterparts - train women and engage men in different courses involving women problems.
2. NCW only has female member.
3. It gets funds and functionaries from the govt which as a watchdog body devoids them from being critical against the govt.
4. NCW has never raised significant role with regards to grievances related to AFSPA.

Political:

1. ~~NCW~~ The politicised nature of NCW is evident when it took a pro-govt stand in Gujarat riots.
2. NCW has become a body to distribute patronage and a body go caught in contradiction of different processes.
3. The scope of NCW gets limited to the inclination of its chairperson e.g. On the one hand there have been call for NCW for a liberal social attitude while on the other hand ^{by} chairperson has suggested that Indian women should not imitate west in case of public undecentation of a young girl in Guwahati. (wearing short cloths)

Institutional:

1. There are two centres of power which often conflict with each other one is the chairperson and the other is member secretary.
2. Bureaucracy continues to hold greater power.

The second conflict is b/w NCW and MoWCD. NCW has ^{been} often criticised for its stand on sexual violence in Gujarat, the Mangalore pub case.

- Note: These observations are based on a study sponsored by VGC and conducted by Centre for women development studies.

3 Cells of new

Consulting legal Civil Code
functionaries

- (1) It has recommended amendments to Hindu Marriage act, Medical termination of pregnancy act and Indian Penal code on adultery to make it a civil offence.

Way formed:

2. The committee composition & funds should be independent from the Govt. to allow for real 'watch-dog' mechanism.
3. etc.

3. It's recommendations should be made mandatory.
4. The Commission of ...

4. The Commission should hold ~~consider~~ consultative mechanism with

Other sections of the society like NAOs and Civil services.

National Commission for Minorities

Who are minorities? - "UN sub-committee on prevention of discrimination against discrimination and protection of minorities defines minorities as "non-dominant" groups in population wishing to preserve their ethnic, religious or linguistic tradition which differ from the rest of the population."

- The GoI has notified Muslims, Sikhs, Christians, Parsis, Buddhists and Jains as minorities in India.
- It is to be noted that in India we do not have a set definition for a policy to define minorities.

Why have minorities emerged?

- Years of migration, Conquest, Aggression, Imperialism has created minorities in the almost all countries of the world. This started with these phenomena and got accentuated by globalisation.
- Minorities have been subjected to persecution in different countries e.g. Jews under Hitler ^{in many cases} and they have been significantly alienated from the national population which drives an identity clash. In these regards, talking about minorities issue becomes important not only for the national government but humanity in general.
- In a UN report on "freedom of religious belief in India" authored by Asma Jahangir, the observation made were:
 1. It praised the legal system in India and the Constitutional provision to protect minorities in India along with its commitment to protect Secularism. (280)

however, it highlighted some problems like

- (i) poor implementation of laws at state level
- (ii) Attack of majority fundamentalist on the christian minorities

Approaches towards minorities :

1. Homogenization or Assimilation referring to unity in uniformity or the 'melting pot' model.
2. Multicultural which is also understood as 'Unity in diversity' or 'Salad Bowl' model. This approach recognises the special rights of minorities.

Approach by India : The constitution of India has recognised special rights of minorities at the time of it's framing. The GoI has established the statutory commission of minorities and several committees like Sachar committee and plan of action such as the 15-point Programme by PM in 2006.

- The National Commission ^{for minorities} conceived by Mo in determination presented by Home affairs in 1978. Major reason was that MHA felt a feeling of insecurity and inequality among those belonging to minority community.

- Sachar ⁽²⁰⁰⁶⁾ committee on the socio-economic status of minorities in India pointed out that muslims largest among the minorities lag far behind the fruits of development. $\frac{3}{4}$ th out of all minorities are all muslims. Statistics presented by the committee :

- (i) Nearly 85% of Muslim children in age group 6-14 years have either never attended school or have dropped out.
- (ii) Only 4% graduate and only 1 out of 20 of them are PG holders.
- (iii) They are 13% in IFS, 3% in IAS, 4% in IPS and 4.5% in Railways which highlights that the people from (281)

Muslim community are not getting proportional representation in Indian Services.

(N, 98.7% of them are in the lowest level of jobs. -

Why have Muslims remained backward as highlighted by Sachar Committee?

1. Muslim community reside in a compact area and wish to avail education facilities in localities specially for girl child.
2. They are uncomfortable, shy away and still confined to Madrasa (SPQEM)
3. Settlement in very unhygienic areas, low living conditions and believe in self-employment because of confinement.
4. A psychological fear, alienation from the rest of the society inhibits integration, this results into poor educational outcomes lower employment opportunities and they are the victims of unorganised sector.
5. They do not avail the banking or the insurance system (Islamic Banking)

Recommendations by Sachar Committee:

1. They should be connected with ICT, to connect them throughout the world and make them aware about the banking facilities.

Q National Committee of Minorities:

Composition: It is a multi-membered body where all the members are from minority community with one chairperson, one vice-chairperson and 5 members to be nominated by GoI from persons of eminence, ability and integrity.

The commission was constituted from NCM act 1992 and derives its powers and functions from this act.

- The 1st ever minorities commission was formed in 1960 in OP. by the congress govt under Dr. Sampurnanand. The
- The congress govt. in Bihar established a multi-membered minorities Commission in 1971 and a state minorities high powered Committee was set up in Gujarat in 1977.

Functions:

1. Evaluate the progress of development of minorities under the union and the states.
2. Observe the working of the safeguards provided in the constitution and in laws enacted by the parliament & state govt.
3. Make recommendations of the effective implementation of safeguards.
4. Attend specific complaints regarding deprivation of rights and safeguards of minorities.
5. Conduct studies, Research & Analysis on the issues related to socio-economic and educational development of minorities.
6. Make periodical or special reports on any matter pertaining to minorities.
7. Any other matter which may be referred to it by Central govt.

Powers:

1. Summoning and enforcing the attendance of any person from any part of India and examining him/her on oath.
2. Requiring the discovery and production of any document.
3. Receiving evidences on affidavit.
4. Requisitioning any record or copy from any court or office.

5. Issuing commissions for the examination of witnesses and documents.

Less Important Concerns / Lacunae:

1. Commission is to be given constitutional status at par with the National Commission for SCs and STs.
2. It is not enough that they are given the power to monitor. The commission recommends that the power to investigate the working of safeguards should also be given.
3. It is not enough that they have the power to look into the complaints but the commission also recommends that they must have the power to inquire into the complaints along with it.
4. It is not mandatory for Union & State govt to consult the Commission w.r.t. the matters for development of minorities as in case of NC for SC/ST.
5. It is alleged that the top response of govt towards these recommendations has been lukewarm.
6. Like NCW since this commission is constituted by nominated members, commission performs under the political edulity of the day.
7. It is alleged that unfortunately NCM has been confined to only Political role of the commission: muslim minority.

Then see

1. NCM along with digital empowerment foundation organised a conference which strongly discouraged the word 'Minority', highlighting that it is against the philosophy of the constitution of India because every one is the citizen of India without being majority or minority. (284)



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2. In 1998, NCM wrote to election commission for preventing the use of words like vote bank, appeasement, concessions in reference to minorities in the then forthcoming elections.

Way forward:

- The digital empowerment foundation along with NCM in the conference recommended a satellite support system for minority institution to mainstream them with educational institutions.
- Emphasis on e-governance for strong connection b/w govt. & minorities and minorities & majorities.

1. In India, PM 15 point programme was introduced in 2000 which emphasized on living conditions (health), education (mental development), communal harmony (social relationships) equitable sharing of all opportunities for employment (economic development).

Women Reservation



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- Currently Composition $\rightarrow$ led by retired chief justice of India
- quasi-judicial
- formed to supplement SC as it is already loaded with much cases.
- 1 Judge of SC
- 1 Judge of HC
- 2 other members who has experience in field of human rights
- ex-officio
- Appointment by - PM, leader of opposition, chairman & Deputy chairman of Rajya Sabha, Speaker of Lok Sabha
- retirement at 70 years (at 65 they are retiring from SC)
- term of NHRC = 5 years

Locke argues that every individual is born with certain pre-existing natural right i.e. Right to life, liberty and property and the responsibility of the state is to provide a protection to these rights of individuals.

However, the conception of human rights can not be limited to a narrow definition as prescribed by Locke and is expected to be broader and universal in scope. In 1993, India introduced the protection of human rights Act which defined human rights as the legally defined ones & enumerated by the state. (Right to education, information) along with the enforcement of rights described under international conventions which may not have been subjected to a clear enumeration within domestic laws.

- The traditional approaches to enforce human rights through judicial intervention have often suffered from considerable delays and thus a need for specialised organ with competence.

and independence to protect human rights according to the Paris Principles, 1993 was felt necessary. The Paris principles emphasized (A) the need to establish human rights council / Commission which must advise govt on protection of human rights (advisory Council)

(B) is to monitor cases of a rigid violation of human rights by state or non-state actors.

(C) Such HR council must be independent and ^{must} have pluralistic composition (NCSC, NCST, NCPK, NCH, Disability Commission etc).

The State of human rights in India:

According to the report of Amnesty International for the year 2017 and the media reports of notices issued by NHRC and state human rights commission. The following issues have been the focus of attention:

1. the state of prisoners - police torture and ill treatment of prisoners are ~~very~~ ^{fairly} rampant in India. In period from Jan-Aug 2017 894 deaths in judicial custody were recorded while 70 deaths in police custody were also recorded. Moreover, India has yet not ratified the 'UN' convention against torture signed in 1997 which demands that signatory members must enact laws criminalising torture.
2. Extra Judicial Killings: Instances of ^{alleged} extra judicial killings have been widely reported from disturbed areas in N-E and J&K where the immunity provided by AFSPA act 1958 have been reported of being subject to misuse e.g. in 2017.

the instance of a civilian from J&K being used as "Human Shield", was widely reported and the NHRC and SHRC demanded by the army in Srinagar ~~and~~ an explanation as this was seen as a clear violation of human rights. The SHRC in J&K recommended to the state govt to grant a compensation of 10 lakh rupees.

3. Rights of Indigenous community: In many tribal dominated and mineral-rich areas repeated violations of land rights of indigenous communities has been widely reported by civil society organisations e.g. Medha Patkar and the Narmada Bachao Andolan reported in 2017 about 40,000 tribal families displaced by the Sardar Sarovar dam construction were yet to be provided full rehabilitation.
4. Rights of women & children: Violence against women has been widely reported in India with 3.28 lakh crimes reported in 2016 which included 1.5 lakh cases of violence by husbands and relatives. Moreover, in 2018 repeated instances of poor conditions of state funded shelter homes for children and women was reported in UP, Bihar etc. Moreover child starvation deaths in Delhi in 2018 was suo moto taken notice of of 3 children by NHRC.
5. Refugee crisis: The reported instances in 2017 and 2018 of the govt of India recommending deportation of Rohingya refugees as some of these individuals and their origin were seen as posing a security threat to India. However, the SC has provided an interim stay on any such orders and prevented an immediate deportation of 40,000 Rohingya refugees. The NHRC (309)

has also recommended the need to provide protection to the Rohingya refugees.

Issues & Challenges

Powers of NHRC

1. To proactively enquire into human rights violation
2. Visit any jail / institution to examine conditions quidam trials
3. To ensure human rights education
4. To review measures provided under law for human rights and recommend ways to improve them.

NHRC may make recommendations to Govt. to grant compensation to victim.

State do not have obligation to form SHRC necessarily

Positive Case Studies :

1. Following the NHRC's intervention in 1998, the rights of Chakma refugees were upheld under Art 21 in Arunachal Pradesh where the NHRC argued against their deportation.
2. The NHRC played a crucial role in its opposition to the policing agencies being granted vast powers under the TADA and POTA act (2002), aimed ~~at~~ explicitly to tackle terror related offences.
3. The NHRC took suo moto notice of the Gujarat riots of 2002 and requested for a right of fair trial for the riot victim following which the SC shifted the cases out of Gujarat.

Issues & Challenges

1. The autonomy of NHRC is currently weak as it is dependent upon the law ministry for its administrative and financial requirements.



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Protection of Human Rights Amendment Bill, 2018

The following changes have been proposed under this bill:

1. To widen the pool of recruitment for NHRC chief — The bill proposes to allow retired judges of the supreme court to be also eligible for being appointed as NHRC chief.
2. To increase the membership of NHRC by:
 - a) ~~is~~ increasing the number of those with expertise on human rights issues to be increased from 2 to 3.
 - b) increase the no. of ex-officio members by bringing the NCPCR and commission of disabled people representatives.
3. To limit the term of NHRC from 5 to 3 years
4. Moreover, to widen the pool of applicants for SHRC, the position of Chairperson would be thrown open to ex-judges of HC.

Prevention of SC/ST Atrocities Act, 1989

This act was introduced with the intention of curbing various offences against SC/ST. It defines:

a) atrocities as being forced to:

- (i) eat or drink something offensive
- (ii) Parading an individual naked
- (iii) Sexually assaulting a woman
- (iv) forced to leave house or village

They are termed atrocities only when committed by a non-SC/ST person against SC/ST individuals.

b) The offences registered under the act are cognisable offences with no requirement for the police to obtain a warrant against a convict individual. Moreover, it is a non-bailable offence under which bail can be denied.

c) The punishment under the act ranges from a minimum of 6 months to 5 years.

d) Under the act the duties of public officials if they fail to uphold the act or neglect its implementation can become a ground for punitive actions against them including a jail term upto 1 year.

e) The act talks about the need for the state to ensure rehabilitation of the victims.



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4

Election Commission

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- and electoral reforms
- Powers and duties of ECI
 - conduct elections in a free & fair way
 - deal with election disputes
 - deal with use of money, fake news, criminal influence on voters
- aid in dealing with post-election disputes. (HC-ECI)
- advisory role.
- role on 'delimitation commission' (of constituencies)

Appointment procedure

- 1990s - 1 member. Currently 3 membered body.
- Selection of CEC + 2 EC is done by Prez - on advice of PM & his council. No role of legislature.
- Salaries of CEC and EC are charged from CFI but not the expenditure of ECI.

Removal procedure

- CEC - similar to removal of SC judge
- EC - can be removed by govt. only on advice of CEC

Why we need ECI?

For people to have faith in democracy, elections must be free and fair and transfer of power smooth.
Vital office to keep democracy going.
(VVPAT - simultaneous elections)

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Issues -

1. Appointment of certain powers of CEC
- * 2. Criminalisation of politics
- * 3. Excessive role of money power / political finance
4. Simultaneous elections
- + 5. Role of fake news / paid news
6. Functioning of EVM
7. Lack of legal backing for Model Code of Conduct

Problem with appointment

- dominated by executive.
- It must become bipartisan and multi membered.
Leader of opp., PM, Law Minister
- CEC does not become a place of mud flinging.

Problem with removal

- disparity in procedure for CEC and ECs.
eg. N. Gopalaswami and Navin Chawla. (2008-09)
(CEC) appointed by UPA1
(6 yrs of 65 years) - appointed by previous BJP
- clashes.
- CEC recommended EC to be removed. EC moved to SC.
CEC must give advice only when asked and not suo moto.
- CEC is only first among equals.
- And hence, no disparity should be there among equals.

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(10)

Issue with powers -

- expenditure of ECI is not charged on CFI. It is votable.
- 2013-14 - It was demanded that ECI must introduce VVPAT for all constituencies and all booths, for 2014 elections.
(545)
- ECI said that it would be possible by next elections i.e. 2019.
- Status when asked in 2016, ECI said that govt. is not releasing one time fund of ₹3000 cr.
- Delay is happening, as funds are in control of executive.

ECI - Issues and Challenges

The conduct of free and fair elections is vital to the continuation of democracy and to uphold people's faith in the democratic process.

The current issues related to electoral reforms are -

1. Issues with respect to appointment, removal and financial autonomy of ECI

The appointment of CEC and the other ECs is completely in executive hands with no constitutional role for the legislature in the appointment process. This can lead to allegations of executive appointing biased / compromised candidates to get an undue advantage over other political parties.

The Second ARC and law commission have recommended a multi-membered selection body composed of the PM, the leader of the opposition and the law minister to be put in place to ensure that the appointments are bipartisan in nature and enjoy confidence of all political parties.

With respect to removal, the SC pointed out (for the need to) that the CEC cannot suo moto recommend the removal of other ECs. and can do so only upon when asked for its opinion by the executive.

They also pointed out that the CEC is only first among the equals, with regard to other ECs.

The law commission and the ECI have both recommended that a parity must be ensured b/w the CEC and ECs, by bringing uniformity in their removal process.

lastly, to ensure financial autonomy of ECI, its expenditure must be charged on CPI to avoid the delays that of the kind that were visible between 2013-17, for procurement of VVPAT machines as the executive ^{failed to} ensure a timely release of ₹ 3000 cr for this one time expenditure.



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Money power in Politics.

Issues:- 1. Uncessive use of money power in elections

- Dynamism of democracy gets negatively affected
 - lack of level playing field, because 'funds' (lack) act as a barrier to entry of new players
 - Voters do not get the choice they would otherwise have.
- Erosion of faith in democratic electoral choice
- Risk of elite / corporate capture of political process
 - "When Crime Pays" - 2017 (Mihir Vaishnav)
 - leads to corporate-biased political policies in lieu of political funding by corporate houses.
 - 'lobbying' - political parties are expected to respond positively to their sponsors.

Sources of Political fund raising:-

1. Cadre - Members make annual or monthly contributions.
 2. Corporates / elites - Since cost of elections is rising, cadres are not very effective
- Anonymity of Donations
Voter cannot make effective choice, due to lack of transparency. (RTE)
(The voter must know edu quali, character bearing of the candidate he is voting.)

• 'Chequebook democracy'

What steps have been taken to arrest money power?

- 2008 - Political parties have been mandated to make public their IT returns. If not, it might become a way of money laundering. (Though they are exempt from paying tax - they need to show the source of expenditure of funds.)
 - Reveal identity of donors of above ₹ 20,000/-.
 - Association of Democratic Report - pulled up ITRs from 2004 - 2014, found more than 75% donations were anonymous, of less than ₹ 20,000.
 - 2014 elections - All parties together spent ₹ 8000 cr. (Officially) The second most expensive democracy in electoral process.
 - Electoral expenditure limit on 'candidates' - There is no limit on the party.
 - Budget of 2017 - i) anonymous donation limit reduced from ₹ 20,000 to ₹ 2000/- (A step in ✓ direction)
It should be taken forward '0' anonymous cash donation.
- ii) Electoral bonds -
- Aimed to bring transparency in funding.
 - Also to curb the role of 'black money'.
 - It is a bearer bond, and does not reveal the name of donor or receiver. The bank knows identity of the donor.

* will help to tackle political vendetta

• This info. is not available through RTI Act or IT authorities.
(Transparency - ??)

• only RBI can integrate the info. the donor's bank or rec. bank and will be limited.

Issues:-

- Brings more anonymity than transparency.

- Lifting off of 7.5% cap of ^{net} corporate profits of past 3 years.
being legally allowed to be donated to political parties.

- FCRA has been retrospectively amended in 2014, 2016.

1976 2010 Foreign Contribution Regulation Act.

1976 - Political parties, NGOs, Media houses cannot be allowed to raise funds from foreign entities.

2014 - Regulations were further tightened.

ADR found, between 2004 - 2014,

BJP and Congress, raised money from Sterlite Goa, Indian owned, British registered company, a subsidiary of Vedanta.

BJP retrospectively changed the def. and amended the

FCRA 2010 in 2014 - donations by entity registered in India will not be considered foreign donation.

2016 - FCRA 1976 retrospectively changed.

(Case of funding Pol. Parties has been increased multifold)

- Mature democracies like USA, have a cap on corporate donations.
- It is mandatory to reveal donors' identity.
(Right of voters > Right of donors)
- 'Hawala'

WAY FORWARD -

- Indrajit Gupta Committee -
- Dinak Goswami Committee -
- State funding of elections through a 'state election fund'
 - we already have partial funding - free time of DD, AIR
 - free place for offices
 - electoral rolls
- People point it as a 'half baked idea',
as recipients from SEF must comply with total transparency.
- CIC in RTI declared Pol. parties as public authorities. So they must appoint a PIO, and subject themselves to RTI act.
- This directive went unheeded. Matter is still in Delhi HC.
[CSC > CIC]
- # Lok Prabar V/s Union of India
- # Zoya Hasan - 'Electoral Bonds' (Hinder 4d)

Role of money power in elections

The excessive role of money power in electoral process is reflected in the expenditure data of 2014 elections, where officially more than ₹8000 cr, were spent on the electoral process.

This excessive role of money power negatively affects the dynamism of democracy, limiting the entry of new players in the electoral process, which may end up eroding the faith of the electorate in the democratic process, as it may deny them effective choice. Moreover, there is an increasing risk of elite / corporate capture of democratic process as parties become dependent on raising funds through corporates, reducing Indian democracy to the status of 'checkbook democracy' as argued by Milan Vaishnav and Devash Kapur in their book, 'Finance of Political Democracy in India, 2018'.

This excessive dependence of political parties on big donors has happened in the context of a decline of cadre-based and cadre funded political parties.

Another inter-related issue is the anonymity of donations or non-transparency in the funding process.

of political parties, which often deprives the voter of adequate information required to make an effective choice during elections.

Recent Changes Introduced -

- In the past decade, some steps in the direction of introducing more transparency in funding of political parties have been introduced such as -

- With the judiciary in 2008, directing all political parties to make their IT returns public, revealing to the voter the known sources of donations of political parties

- In 2017, the budget introduced the limit of anonymous cash donations was reduced 10 times from ₹20000 p.a per individual to ₹2000 p.a. per individual making it difficult for parties to raise anonymous cash donations. Though a step in the right direction, it must be taken to the logical conclusion by prohibiting all anonymous cash donations.

- The recent electoral bond system proposed 2017 onwards, with the objective of bringing more transparency in funding of political parties and to curb the role of black money, allows users to use 'bearer bonds' to make donations to pol. parties ~~without being~~ through

the banking system without being forced to reveal their⁽¹⁴⁾ identity. Moreover, transactions made under the electoral bond system will not be subject to scrutiny of IT authorities nor the details can be revealed under RTI Act.

Zoya Hasan and SY Qureshi, have argued that the bond system is likely to introduce more anonymity rather than transparency in the electoral finance process. Moreover, coupled with recent changes such as -

The lifting off of 7.5% cap on the average of profits made in the past 3 years limit existing under the companies act in funding political parties. ~~has been~~ This allows corporates to freely fund political parties, risking corporate capture. It may also lead to the establishment of 'shell companies' for funding political parties.

Even mature democracies like USA and UK have strictly enforced limits on funds that can be made by corporates to political parties.

FCRA Amendments - In 2014 and 2016, the executive has introduced retrospective amendments to change the definition of foreign companies which are prohibited under FCRA 2010 and previously FCRA 1976, from

raising any fund from foreign sources. These amendments became necessary after the AOR findings for 2004-2014 period⁽¹⁰⁾ which showed that major parties like BJP and Congress, raised funds from Sterlite Goa, an Indian subsidiary of Vedanta, a mining firm registered in Britain.

Apart from the above issues, the poor enforcement of expenditure limits on candidates during the election period, and the absence of any limits on parties expenditures, while supporting the campaigns of its candidates remain serious issues yet to be addressed.

Way forward -

- While bringing political parties under RTI act has been a matter of intensive debate, many have argued for empowering Election Commission further for bringing transparency in the electoral process rather than bringing the RTI act into picture.

- While Partial state funding of elections in-kind as recommended by the Indrajit Gupta Committee is already in operation, any further extension of state support in-cash to pol. parties under a state election fund, must be tied to condition that parties receiving such fund complying with total transparency norms on their finances.

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Criminalisation of Politics

Data: 16th Lok Sabha → 185/543 i.e. 1/3 sitting members have criminal cases against them

- 20% of these have serious charges including murder, kidnapping etc.

Issues involved -

- * Politicisation of crime - undermining rule of law
- * Demoralising effect on bureaucracy (by top-brass rulers)
- * Ensures perpetuation of CORRUPTION

Why 'Criminals' get nominated by parties and elected by voters?

- When Crime Pays. By Milan Vaishnava - 2017

Why in Demand?

1. Breakdown of electoral finance structure
2. Elections are becoming more expensive.

Parties are looking for candidates that can contribute funds for their own campaign as well as party.

3. In scenario of weak state capacity in delivering services, voters look for power-exercising candidates as their representatives.

Why in Supply?

4. Weak legal/judicial institution or enforcement

5. Criminals tempted to enter politics, because they have better chances of winning + probable economic gains

Solution -

- Address both demand & supply issues

1. Arrest illegitimate ways of funding - more structured funding

What has been done?

1. ADR case - 2003 - File an affidavit sharing information of educational background, criminal record, assets details. (Awareness for effective choice)

2. Lily Thomas case, 2013 -

cited discrepancy in Sec 8(3), and 8(4) of RPA.

8(3) - Common individual who is not a sitting MP, cannot ^{contest} elections

If conviction by lower court has been appealed ^{by} in higher court, if punishment is more than 2 years.

(Can contest after term + 6 years).

8(4) - A sitting MP, convicted by lower court for more than 2 years, can contest election and remain a sitting MP, if case is in appeal. (Allowed due to instances of political vendetta)

She Demanded end of discrepancy, since, 8(4) has been struck down, as it is violative of Sec 14.

eg:- Lalu Yadav

3. Lok Pahari case Vs U of India, 2018 -

cited mismatch between assets and sources of income

- They suggest that contestants must reveal sources of income along with assets, and a speedy investigation in case of sharp mismatch.

(Party to highlight criminal record of its ^{candidate} parties)

4. Fast Track Court

SC - Give a detail of no. of cases against sitting MLAs and MPs - 1571 (response to a PIL)

- These courts be reserved exclusively for such cases.
- Rs 7 crore sanctioned in 2017 end - for 2 FTCs.
- Once charges have been framed, the MP must be disqualified immediately. even if the sentence has not been pronounced.

* Nota $\left\{ \begin{array}{l} \text{Right to Recall - practically impossible and illogical} \\ \text{Right to Reject - might be the direction of NOTA.} \end{array} \right.$

CRIMINALISATION OF POLITICS

The increasing entry of individuals with a criminal background is visible. if one looks at the data of the 16th Lok Sabha, where 183/543, sitting MPs have criminal cases against them, whereas 10% have serious criminal cases pending against them.

The criminalisation of politics has serious negative consequences. as it leads to politicisation of crime with law enforcement agencies being used for personal vendetta. Moreover, it demoralises the bureaucracy and insures perpetration of corruption.

Also, any further positive movement on electoral reforms by legislature becomes unlikely as 'law breakers become law makers.'

In his book, 'When Crime Pays', by Milan Vaishnav, he argues that election system is an electoral market place where the SUPPLY of candidates with a criminal background is enabled by - weak legal / judicial institutions and i.e. a general breakdown of law and order, and also as individuals with a criminal background are hopeful of major economic gains, if they capture power.

However, the demand for such candidates has also increased in the past few decades with a general breakdown of electoral finance structure, and with elections becoming more expensive, candidates are increasingly expected to fund their own election campaign and also contribute funds to party elites.

Moreover, in the state of weak state capacity, voters often look for an individual who is likely to get things done, to ensure service delivery.

The following steps have already been taken towards tackling this issue.

1. ADR Case in 2003 made it mandatory for candidates to file an affidavit which mentions their edu. background, criminal background if any and the asset details of the individual / family. This is like to give the voter an effective choice, as it would increase his knowledge about the prospective candidates.

(17)

2. *Jyoti Thomas Vs Union of India* case 2013

has struck down Sec 8(4) of the RPA, 1951 ending the discrepancy between sitting legislators and common citizens with respect to contesting elections.

Sec 8(4) was struck down on grounds of violation of Article 14, and thus sitting MPs or MLAs who are now convicted for a crime with a punishment of over 2 years will stand immediately disqualified from contesting elections for the next 6 years.

3. To speed up the law enforcement and ensure a quick dispensation of justice, the SC has directed the establishment of FTCs since 2017 following which a start has been made and 2 courts have been established with an initial fund of 7 crores, while 1571 cases are pending against the sitting legislators.

There is a need to set up more such courts in the near future.

4. *Lokesh Chandra Vs Union of India* case of 2018

has emphasized the need for disclosure of known sources of income of candidates along with their asset details and any mismatch between the two must be promptly investigated.

Conclusion: However any long term solution to this issue would require not just addressing supply side factors but also demand factors i.e. issue of finance & state capacity.

First Past the Post Vs. Proportional Representation

Data:- 2014 elections

- a party with only 31% votes, has more than 50% seats
- UP - BSP with 20% votes, has 0 seats
- Orissa - Congress got 26% votes, 0 seats.
BJP with 22% votes, got 1 seat

(undermines one man, one vote, one value - principle).

Representation becomes formal rather substantive.

Illustration:-

	FPTP			
*	A	B	C	D
	30%	20%	15%	15%
	Only A gets seats. Other (-ve votes are wasted.) Not represented			

- * easy to administer & understand
- * leads to more stable govt.
(only theoretical)
pre poll alliances - NDA, UPA.
- * ensures link b/w party candidate and constituency
(candidate fielded in all constituencies by both parties)

PR

Here A, B, C, D refers to parties and A gets 30% seats, B gets 20%, and so on. No votes wasted.

- * 'list system'.
- * More substantive representation (which 'identity')
(eg. student, old age, tribal, env.)
- * Newer pol. parties with fragmented vote base can get representation.
- * ofm list system can restore candidate - constituency link.
- ve - instability - small - small parties.

-ve-

vote bank politics / targeted campaigning, identity politics.

Which 30%, 20% etc. constituencies will be awarded?

> 90 democracies have some form of PR

Way forward-

° CEC and law commission recommend adding nearly half more seats to the assembly.

Here, do not disturb the FPTP, and new seats be filled through PR. (mix of both the systems)

° Modify to overcome shortcomings of PR - minimum vote share, post poll alliances,

44 Jan 19

lec 5

FPTP vs PR

The issue of making Indian democracy a more representative one is inherently linked to the issue of ensuring that Ambedkar's ideal of one man, one vote and one vote, one value finds replication in India's electoral system.

Currently, India's parliamentary democracy is based on FPTP system, which ensures that the candidate who receives the largest no. of votes is declared as the winner. The system was adopted by the Constituent Assembly, given its simplicity, the ease to understand for common voters and given prior experience of elections under the British rule.

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eg:- elections of 1935, 1946

However, though simplistic, the system is not without its drawbacks. eg:- The 2014 LS elections saw that in UP while the BSP got 20% of the votes held, it got '0' seats. Similarly, in Orissa, while the Congress and BJP received 26% and 22% of the votes held respectively, they won only '0' and '1' seat.

Finally, the 2014 elections saw the BJP winning more than 272 seats (50%) with a vote share of just 31%.

These examples point toward how a large no. of votes held get no representation or get simply wasted in the current system.

Moreover, the FPTP system allows political parties to target smaller section of voters and carry out targeted campaigning, to swing electoral outcomes in their favor.

Despite these drawbacks, a vital advantage of the FPTP system is the voter constituency connect maintained, which ensures that formally or informally voters get to choose their own MP/MLA, bringing more accountability at the local level.

PR

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19

The PR system has been repeatedly evaluated regarding its viability for application in India. The Nehru Report of 1928, and Jawahar Lal Nehru and B.R. Ambedkar, in the constituent assembly, both argued about the merits of the PR system. The PR system allows more substantive representation, where even smaller political parties, specially those which come 3rd or 4th in the electoral race, find representation in the parliament. Moreover, it ensures that distribution of seats according to the %age of votes held, would ensure that little or not votes get wasted.

More than 90 countries in the world have some form of PR system in place, and in some countries like Germany it has enabled new issue-based political parties such as German Green Party, which contests elections on environmental issues to climb the electoral ladder. Thus, smaller parties with fragmented vote base spread across the constituencies, may find the PR system more conducive.

The PR system though suffers from a major shortcoming that it lacks a strong voter-constituency connect, as voters choose parties who appoint representatives in such a system.

Finally, the PR system is considered by many as relatively unstable as compared to FPTP. However, such worries may be partly exaggerated given that FPTP system working in India has seen the two party system being replaced by coalition systems, and pre-poll alliances, such as the UPA and the NDA, given the federalisation of Indian Polity.

The PR system needs to be backed by a strong anti-defection law and would likely result in the emergence of post poll alliances.

Conclusion :-

The ex-CEC SY Quershi. The Law Commission reports have suggested the introduction of PR system without disturbing the existing FPTP system based on the list system. Under such a system, in addition to the existing 545 seats based on FPTP, another 272 can be added to be elected on PR basis. Within South Asia, Nepal has recently moved in its constitution towards such a system with 165 seats based on FPTP and another 110 on PR basis.

(Mani Shankar Aiyer report - India is largest + most least representative democracy)

Simultaneous elections (One Nation, One Poll)

(20)

Democracy - accountability ✓, faith x)

Arguments in favour -

1. Cost - effective -
2. Model code of Conduct -
3. Rally Vs. Parliament sessions -
4. Hamper development work.
5. Check on corruption
6. Check on communalisation

Arguments against -
Issue for national parties.

→ Simultaneous elections are more problematic for regional parties, because regional parties are overshadowed by national issues.

1. Influence of results in one state on another state.
2. Multiple elections ensure voters' check on parties.
3. More no. of election ensure 'pulao' in voters' plates.

* Workability of the proposal. (let no confidence)

(Constructive vote of no confidence)

- need of consensus, need of consti. amendments, need to change basic structure

Advantages -

- i) It reduces the cost of the electoral process as repeated elections are inherently expensive. eg:- 2014 LS elections saw 3800 cror being spent.
- ii) Frequent elections and invoking of MCC disrupt the developmental work as they prohibit govt. from introducing new schemes of welfare.
- iii) Frequent elections often lead to invoking of communal and caste identities and tensions, which has long term negative consequences for the democratic process.
- iv) Frequent elections means that political parties need to raise funds on regular basis which increases the role of money power in the electoral process, thus increasing the possibility of corruption.

Disadvantages - 'Subas Palisika'

- i) Frequent elections is an issue primarily for national pol. parties not regional ones, who often contest in one or few states, in an election cycle.
- ii) Simultaneous elections may result in pol. national political parties deliberately attempting to mix or conflate regional and national issues to confuse the voters.

iii) elections are perhaps the only mechanism available ⁽²⁾ with the voters of ensuring accountability from the ruling class and thus any idea of simultaneous polls, may adversely affect the bargaining power of voters.

Way forward-

NITI Aayog and Law Commission have both suggested that the idea of simultaneous polls should be explored further and to address implementation issues and ensure workability of sim. elections - the options of

- constructive vote of no confidence or
- holding elections twice in a 5 year cycle must be considered.

However, any such proposals need a further detailed discussion and building consensus amongst all major political actors including regional ones, to bring about the required constitutional amendments before implementation can be considered.

(#prime ordinal identity politics).

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VVPAT

- Whether to withdraw EVM and return to paper ballot? NO
- cries of losing political parties of rigged EVMs.
- paper ballot may lead to booth capturing.

Issues -

1. Implementation issues - due to paper quality, temperature etc in certain areas.
2. Manual tally of any random booth of EVM with VVPAT.
(Random Sampling)
 - ↳ Argument - cross verify atleast 15% of EVMs.

In the past decade, EVMs have been subjected to ~~much~~ multiple allegations of being manipulated to favour certain political parties, specially the ruling ones/winning ones.

Such allegations are often unfounded and need to be dispelled. For this reason and to reassure the voters, to maintain their trust in electoral system.

VVPATs have been introduced. While political parties have often demanded a return to a paper ballot system, such appeals have been rejected by the EC, given the concerns related to booth capturing.

However, VVPATs ~~must~~ be functioning must be improved to ensure that implementation challenges are taken care of.

Moreover, while currently the VVPATs of one ballot per constituency are being tallied against the EVM votes. This is considered too small a sample size. And it has been suggested by ex-CECs that perhaps a larger no. of EVMs must be tallied with paper trail. Opposition political parties have argued for 10-15% EVMs randomly picked that must be subjected to this cross verification with VVPAT. (22)

20 Jan '19.

Issue of paid news and fake news - EC.

ke-6

Paid news - advertisements in the guise of news, the publication of which has been ^{paid} for by the advertisers.

(Getting a favourable news published by paying money)

It is not an electoral malpractice, under RPA, but it is to be treated as such is recommended by EC, Law Commission.

To arrest such instances -

- EC has appointed Media Observers in every district during elections to monitor paid news in local dailies. These media observers are senior journalists.

- Nityendra Mishra - who was disqualified for not declaring paid news expenditure in his election expenditure affidavit. Way forward -

EC to declare it a malpractice. Till then, keep people aware of such practices.

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Fake News :-

This news is based on false or non-existent events. Fake news can be paid news. It is an offence if it leads to violence.



Fake news is primarily propagated through social media.

How to tackle?

- Increasing cooperation b/w Facebook, WhatsApp and ECI
- No. of forward messages has been limited to 5 msgs on WhatsApp
- EC appointing Social media observers, during elections to flag fake news and ask FB to take corrective action.

Consumers should also become more responsible. Blanket ban or penalising the social media platform is not the right idea.

H Pranjoy Thakur Varta Committee. Doll-2012.

Paid News

Possible instances of paid news have been flagged repeatedly since 2008-09, and paid news has emerged as a serious challenge to the electoral process as it has the potential to deliberately influence public opinion, in the manner aimed at misleading voters.

Currently, paid news is not an electoral malpractice under the RPA. However, under the EC and the

Press Commission of India and law commission, all²³ have argued for declaring it as an electoral malpractice. Currently, the ECI has started appointing district media observers in every district during the election period to flag possible instances of paid news, which can play an important role in making the voter aware about the extent of the problem.

Fake News -

It refers to a phenomena where patently false information is published with the objective of influencing voter behaviour / public opinion, in election period or otherwise. In the age of social media, fake news has increasingly become an emerging challenge, which needs to be tackled promptly, as it may incite communal passions, or deliberately misguide voters, specially during the election period.

Currently, the ECI has moved towards the election closer cooperation with FB and WhatsApp, to appoint social media observers to promptly identify possible instances of fake news and ensure that these news items are taken down promptly by social media platforms.

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• Article 337 - ^(scholarship) Special Right of Educational govt

→ Function of the Commission : (NCSC)

- ① To investigate and monitor all the matters relating to the safeguards provided for Scheduled Caste in the Constitution and other laws.
- ② To inquire into specific complaints with the deprivation of their rights.
- ③ To participate in the planning process of Socio-Economic development of SC.
- ④ To make a report and to present it to the Union and state government.
- ⑤ To present an annual report before the President.

→ Power of the ~~Supreme Court~~ Commission :

The Commission has the Power of Civil Court.

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→ Areas of their functioning :

① Service Safeguards

The complaints under Service Safeguards are mostly related to Promotion,

Discrimination and Harassment, Unfair disciplinary enquiries, recruitment benefits etc. In this particular function National Commission is Most Active.

② Secondly the Commission monitors the level of Literacy and Educational development of SC. It has taken special interest in female literacy and working of hostels, residential schools and library. Here most of the complain is related to denial of or discrepancies in application of reservation policy.

③ A culturally important area of concern is Attacks against SC. Here NCSC monitors the implementation of various legal provisions. It also collects the statistics relating to cases registered under Protection of Attacks Act. A key monitoring activity performed by the Commission is setting up of Special Courts.

④ In terms of Economic Development the Commission is interested in Land alienation issue and forced displacement because of

developmental activities.

* Draft land policy. (NITI Aayog).

(redistribute the land to the people alienated from the land).

Critical Analysis of the working of NCSC.

- (1) The exclusive focus of NCSC on Service Safeguards reflects Elite Biasness. It results into lack of focus on providing basic amenities like Education and also represents its failure to check inequalities.
- (2) The most significant handicap of the Commission is the fact that their decisions were not binding.
- (3) There is also a lack of Competent and Committed members in the Commission because of lack of institutionalisation of appointment.
- (4) The quality of the reports is also decreasing and focus of the Commission is on intervention in government policies rather than taking report making duties seriously.

(5) It has also been observed that the report of the Commission is not tabled in the Parliament on time.

(6) There has been conflict b/w Head of NCSC and Minister of Social Justice which results into delay in the Constitution of Commission, and if constituted there is a shortage of staff.

Composition -

- Chairperson.
- Vice Chairperson.
- 3 members.

→ To be appointed by President by warrant under his hand & seal. → (No security of Tenure).

Official Language. (Part 17). (343-351)

Language - Vocabulary
R & L
(L to R)
(Name of country)

343. official language of Union. - Hindi in Devnagari script.
" " State.

• Intergovt Communication. (346)

• HC / SC

• Special officer of linguistic minorities. (350(B))

↓
added after State Reorganisation Commission's Recommendation.



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UPSCPDF.COM

CAG.

- traces its origin to British rule in 1919 Act also there in 1935 Act.
- after independence India continued with 1935 act till 1970
- 1971 - new act for CAG, his powers were made.
- B.R. Ambedkar - CAG - most imp. constitutional office under article 148-149.

Why CAG is most important?

= one of the 3 pillars to maintain internal accountability.

CBI CVC CAG

- keeps a check on the executive, assess the legislature
- legislature keeps executive accountable through control on budget

Powers of CAG

- a) - all funds CFI that enter into consolidated fund of India
- b) - all expenditures from CFI
- c) - all funds from and beyond the budget sanction
(Guardian of Public Purse)
- d) - all PSUs - dividend - and their accounts - scrutinized by CAG
- e) - scrutinize accounts of central and state govt.
- f) - not constitutionally empowered to hold accountable local govt.
(why - british legacy - no 3rd tier govt then)
- CAG can be entrusted with local govt - auditing with respect to state govt's permission.
- g) Banks * RBI audits PSBs, cannot be done by CAG. RBI has its internal audit, not CAG.

Procedure of CAG's functioning

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Ministry of Water & San. → spends 200cr on Nirmal Bharat → expenditure report to CAG → scrutiny by CAG, report to Pres. → Pres. table it in parliament

PAC + Action Taken Report → go back to LS (concurrent) → PAC submits its own report → looks into CAG report → Public Accounts Committee (PAC) → from LS (generally) → mini parliament (prop. rep. of all parties, primarily LS (15) RS (7))

PAC recommendations + Action taken on Report tabled in LS.

call CAG
call Joint Sec. of min.
call some civil soc. members.

- CAG is a constitutional body, but is an aid to legislature. PAC headed by leader of opposition
- If legislature does not ques. the ministry, CAG, PAC are ineffective

Appointment & Removal

CAG - appointed by Pres

- 6 years or 65 years of age
- can't be reappointed (* Vinod Rai)
- can't be appointed to any office GOA (no leave, example - gov.)

Removal - can be removed like judges of SC

- to ensure autonomy of executive & part autonomy of legislature

Issues with CAG

i) CAG → Functions and powers

Functionaries

- Indian Audit & Account Service - Senior IAS
- IAS, experts - salary with Pres and CAG.
- Separate cadre - specialised in audit of acc.

Funds - very imp. and well funded institution

Functions, functionaries - Check website, see office/building - (compare w/ NCI)

These 3 are very important for an orgn to be independent

① Issue with Appointment procedure -

- CAG's appointment is done by Prez. and advice of PM and his Councils
- appointment by executive - whereas function is to check executive and aid legislature.
- so it can cause conflict of interest.

eg:- 2013 - Shashikant Sharma, prev. served as ^{Ministry of defence.} MOD, and later became CAG. So SKS auditing SKS. ^(He was supposed to audit his own which leads to conflict of interest.)

^{Administrative Reforms Commission}

2 ARC report recommends in 'Rethinking Public Institutions in India'

- a multi membered appointment body for CAG
- LK Advani - advises - a multi membered appointment process including PM, Law Minister, "Leader of opposition" to overcome conflict of interest and suspicion, maintain repute of CAG's office.
- bipartisan appointment of CAG.

② Issue with Removal

- No issue
- complete autonomy is maintained by the process followed today

CAG - Issues and Challenges

BR Ambedkar, termed the office of CAG as the most important constitutional office which would serve as the guardian of public purse. Moreover, the CAG is an important institution of internal accountability whose primary role is to aid and assist the legislature in holding the executive of the day accountable.

The key issues involved / to be dealt with while making

the CAG more empowered and effective institutions
are -

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Issues with respect to appointment procedure.

In the constitutionally defined appointment procedure, there is a lack of clarity or there is a lack of clearly defined appointment criteria for the position of the CAG.

Moreover, the appointment procedure is completely in the hands of the executive, with little or no role for the legislature. (COP)
This can often lead to possible accusations of conflict of interest, as the executive may be accused of appointing 'PLIABLE' or 'SOFT' individuals with close ties to the executive of the day.

eg:- Shashikant Sharma, appointed into 2013, was previously handling defence procurements, in MOD, which led to some criticism about the possible conflict of interest, that may arise over his appointment and audit of MOD.

Way forward-

→ The second ARC report and the book 'Rethinking Public Institutions in India' (2017), ^{2nd ARC} SK Das, argued in favour of a multi membered appointment procedure with a prominent role for the legislature.

eg:- 3 membered body composed of PM, leader of opposition in Lok Sabha and Law Minister could be appointed set up for CAG's appointment.

→ Experts have also argued for PAC's views over possible candidates must also be considered.

Scope of Audit

Three kinds of audit -

1. Financial audit
 2. Compliance audit
 3. Performance audit
- > Two key auditing functions (accounting)

First issue 3. Performance audit - Outcome assessment

eg:- MoFWD spent 1000 cr. for B3P.

① Financial ques - Was 1000 cr amount sanctioned for this scheme in the budget? outlay budget

② Compliance ques - Has money been expended in compliance with the sanction?

③ Performance ques - (Outcome assessment)
How much improvement in CSR in poor perform regions?

- Can bring CAG and executive at loggerheads.

- It is not written in constitution to perform - outcome assessment but CAG assumes / assumes this task - (i) it is custodian of public purse (ii) National Accounting Office, Britain gives them such power, also in USA (Supreme Auditing Institution),

say Performance audit is integral to CAG's function

(iii) Constitution doesn't stop us from Performance audit!

Performance audit - $\left\{ \begin{array}{l} \text{Efficiency} \\ \text{Effectiveness} \\ \text{economy} \end{array} \right.$ of public expenditure
is to assess

- Is the right thing being done? (leadership)
- Are things being done in the right manner? (mgt)

- eg:- Ayushman Bharat - Universal Health coverage
- How much disease has been reduced? - implementation of results
 - Could the scheme have been designed better?

* Sri Nath Reddy Report, 2012

former dean of AIIMS. Head of PHFI. Articles in Hindu editorial since 2012.

He says, Health insurance model is a disaster.

- Rather giving money to insurance companies, govt. should strengthen public healthcare infrastructure and institutions.
- Have more doctors, provide free of cost medicines.

Performance audits are generally trick. The 90I may accuse CAG of interfering with its work. CAG doing constitutional overreach which will effect the policy implementation.

eg:- 2G Scam

Telecom sector → spectrum allocation (limited / scarce good)
 (A. Raja)
 FC, FSeve
 Auctioning route
 first come - first served

- VPA decided with FCFS method, at low prices
- ~~auctioning~~ fees was low for spectrum allocation.

- Here, CAG did a performance audit. He argued that not auctioning the spectrum caused nominal / presumptive loss to the exchequer ranging from 60000 cr - 1.76th K crore.

The revenue that could have ^{been} generated, was not received by country.

JPC was constituted. 90I said that CAG was overreaching its jurisdiction. Hence, CAG can aid good governance.

Good governance -

- * 39 spectrum allocation was done through auditing route.
- (Post-mortem of 29) - resulted in substantial revenue gain for exchequer

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III Issue - Public Private Partnerships

(4)

- CAG has contemporarily audited public bodies
- whereas today govt. is dependant on private players for service deliverables.
- eg:- Govt. built a hospital and outsourced pathology lab with Dr. Lal. (pvt.)

P. Sainath on crop insurance

Here, the lab generates fake bills, which ^{is} loss to money of ministry, or consequently the CFI.

Association of Telecom Service Providers Vs Union of India (2014)

SC ruled that pvt. co. can be audited by CAG in 2 conditions -

- scope of revenue sharing agreement ^{explicit} between govt. and pvt. entity
- money is being spent from GOI's CF

The case: Spectrum allocation fee limited ^{to} upto 1% revenue sharing agreement.

- Under-reporting of revenues ^{WHAT projects} was being done and noticed by IT.
- Govt. losing money. Pvt. records were shared with CAG.

Insurance. provided in railways, air ways etc.

SCOPE OF AUDIT - ISSUE

The CAG's auditing functions today can't be broadly categorized into - financial, compliance and performance audits. While financial and compliance audits are low key audits, which primarily scrutinize, whether funds spent were allocated for the purpose defined under the Budget, or not.

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performance audits, on the other hand, assess the efficiency, effectiveness and the economy of public expenditure or revenue generation process. Performance audits involve asking two inter-related questions -

- i) Are the right things being done?
- ii) Are the things being done rightly?

While the constitution is largely silent over the scope of performance audits, the CAG has repeatedly argued that it is well within its powers to do so. It is pointed out that supreme auditing institutions, ^{CSM} in mature democracies such as the National Accounting Office (NAO, UK) and General Accounting Office (GAO, USA) routinely undertake performance audits. Moreover, performance audits are key to ensure good governance and can force reconsideration of public policies to secure the interest of state exchequer.

eg:- The 2G spectrum allocation process was subjected to a performance review by the CAG, which pointed out in its report that the first come first serve allocation policy to telecom players adopted by the govt. resulted in the notional loss to the state exchequer in the range of 60K cr to 176K cr.

The CAG argued in its report that the auctioning route could have been adopted to prevent such a loss in the first place.

while CAG was criticised by the executive of the day of (5) unnecessary interference in policy matters. It forced a reconsideration in public policy as the 3G spectrum allocation which followed the CAG's 2G report adopted an auctioning route, resulting in significant economic gains for the state. ~~and this~~ ^{↳ indirectly here it was able to influence the govt to change the method.}

31 Dec '18

led by Dr. J Khadar.

Issue with audit of Public Private Partnership

With respect to public private partnership, the scope of audit to be conducted by the CAG has been clarified according to SC verdict in Association of Telecom Service Provider Vs Union of India case, 2014 in which PPP which involve an explicit revenue sharing agreement with the govt. or where private players perform service delivery on behalf of the state funded by the state exchequer.

This is likely to set a precedent to expand the scope of CAG as in the post liberalisation era public private partnerships are likely to become an important mode of project implementation, involving major expenditure of state revenue as well.

Quality of CAG report and Issues related to PAC

Into SAI - International Organisation of Supreme Auditing Institutions
- It is a peer body to conduct a check into quality of peer SAI.



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Only once, in Aug 2012, CAG was audited by INTOSAI. It was a voluntary assessment for the period 2010-11. They randomly looked into 35 reports and discussed with other stakeholders.

It was observed that -

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1. almost 50% of reports were overly critical due to -

→ failure to highlight the positive steps taken by govt. depts

→ suffered/benefitted from lindsight bias. There should be more importance given to the content in which the decision was taken. (eg. why demonitisation was done rather how much sector/industry have been affected by this policy?)

(honest/deliberate mistake)

2. 25% of reports were not backed by strong data reports. (inputs)

INTOSAI recommended

- That CAG should move from a culture merely highlighting shortcomings but also the positivity
- Despite shortcomings, CAG's reports were most reliable inputs for PAC functioning.

It has been recommended that CAG must also get its peer to peer audit done by org. like INTOSAI every 3 years.

Issues with functioning of PAC

- CAG → PAC → LS
- PAC term is 1 year. Their proceedings are not public, though reports can be accessed.
- It has 15 LS members and 7 RS members.

Tenure:- LS is for 6 years. PAC is reappointed every 5 years.

PAC members are not ministers.

1 year term is an issue because the knowledge he gained in his

experience as PAC member, may not be put to use (6)
to effectively scrutinise the CAG report.

It has been recommended that the term of PAC be made
co-terminus with the LS, to be more efficient.

(Use of experience gained in term after 1 year)

Not open to public:-

There are 2 opinions - open to public in interest of transparency
and knowledge of questions on some policy.

- be closed - as parliamentarians may take it as a battle ground
rather a place to question the executive of the day.

(This process is the real check on executive by legislature, and
will give public better view for accountability.)

=(Non-transparency is not prior to smooth functioning of the body)

=(PAC) is mini parliament, so its proceedings must be made public).

Discretion of PAC chairman to select reports for deliberation:-

CAG report to be picked up for further deliberation should
be done by note / consensus, and not at DISCRETION of the
chairman.

No time limit for PAC to discuss on a CAG report.

+ PAC report + CAG report has to be tabled by speaker of LS, there
is no time frame in which it must be tabled (delay)

By convention, PAC chairman does not belong to ruling party
It is from opposition, to avoid bias.

Deadlocks can happen in PAC, but not very often. (eg. 24 - JPC)



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Quality of CAG reports -

The CAG reports were audited for the first time in a peer-to-peer assessment by the INTOSAI (The Int'l Org. of Supreme Auditing Institutions) for the period 2010-2011. Intosai scrutinised 35 CAG reports (performance audit) for the 2010-11 period, and pointed out that -

- a) 50% of reports could have been more balanced in content and tone as these reports failed to highlight any positive steps taken by govt. depts, if any.
- b) Moreover, these reports suffered/benefitted from hindsight bias.
- c) 25% of CAG report observations were not backed by strong inputs. ~~also~~

However despite their shortcomings, the report pointed out that COPU C Committee on Public Undertaking traced the PAC, found these reports as a valuable source of input while performing their functions. They argued that these reports provide information about ground level impact of govt. policies, not easily available from other media.

Challenges with respect to the working of PAC

The PAC is a vital forum where CAG reports are subjected to a closer scrutiny and hence a functional PAC is a necessary pre-requisite for CAG reports to have a desired impact.

The PAC's functioning currently suffers from a no. of problems such as -

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- a) a limited tenure of 1 year for PAC members which makes it difficult for existing members to retain their position within PAC and for new members to acquire relevant expertise, given their short tenure.
- b) the proceedings of the PAC are not open to public, which deprives the masses of the rich and informed discussions within the PAC.
- c) No punitive mechanisms exist with the PAC if the govt. delays the tabling of the PAC report along with the Action Taken Report (ATR) in the Lok Sabha.
- d) The sole discretion of deciding that which CAG reports must be subjected to a closer scrutiny by the PAC rests with the PAC chairman, with no role for other PAC members.

PAC chairman decides to table or not to table. Others with scrutiny & say in selection.

Thus, it has been argued that - PAC's term must be made co-terminus with LS term. Its proceedings must be opened to the public and a specific time limit must be introduced within which PAC reports must be tabled in Lok Sabha.

WAY FORWARD -

The CAG reports -

BP Mathur, in his book 'Reengineering CAG of India', wrote that in order to ensure govt. accountability and strengthen public audit, there is a need for -



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a) Regular peer to peer assessment of CAG every 3 years.

b) The PAC's term must be made co-terminus with the term of parliament and the PAC reports must be tabled swiftly and timely, within a year in the parliament.

c) With regard to defence purchases the book suggests a pre-acquisition audit of major defence purchases to avoid any undue criticism and delays in procurement of such systems.

CAG must be constitutionally empowered by explicitly making provisions for performance audits. Currently, the CAG spends merely 10% of its time and resources to perform performance audits. This is in contrast to (size) CAI's of the developed world where 70% of the resources and times is spent on performance audits.

CAG can aid in good governance by performing an outcome assessment of major social sector schemes of the executive.

For example, the CAG report of 2017 says, despite been declared an ODF state, more than 30% of households in Gujarat, lack access of sanitation and toilets.

Moreover, since 2012, NREGA has been subjected to a performance audit, which involves an annual expenditure of 30,000 crores and above. In these audits of NREGA, CAG

has also performed a qualitative assessment of NREGA's working in collaboration of social audits, being done by local NGOs.

Even in critical areas like defence, CAG reports have pointed out under preparedness in defence.

In 2015, a shortage of ammunition for a possible two front war was pointed out for a period extending beyond 20 days, which only worsened by 2017 to a period of 10 days, of preparedness.

Such regular assessments of executive's performance is critical to ensure accountability and good governance.



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UPSCPDF.COM

Satyendra Yalla

UPSC [Union Public Service Commission]

6

Union Public Service Commission is the Central recruiting agency in India, which is an independent, Constitutional body.

The Indian Constitution mentions about the provisions for the composition, appointment, removal, powers and functions of the UPSC from Article 315 to Article 323 in Part XIV.

Composition of UPSC

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- The UPSC consists of a chairman and other members who are appointed by the President of India.
- Generally, there are 9 to 11 members including the chairman.

Presently there is a sanctioned strength of -
One Chairman and Ten members.

- The Constitution mentions that 50% of the members should be those who have held Government office for at least 10 years. (No other qualification mentioned)
- The President of India is empowered by the Constitution to determine the conditions of service of the chairman and other members at the time of their appointment.

- All the members (including Chairman) hold office for a 6 year term, or until they attain the age of 65 years.

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Removal :

The members can also be removed by the President before the expiry of their term on the basis of either of the 4 circumstances:

- He/she goes bankrupt. (adjudged an insolvent)
- He/she engages in any paid employment outside the official duties.
- He/she becomes mentally or bodily infirm.
- For misbehaviour. (In this, the matter is enquired by the ~~SR~~ Supreme Court, if he/she found guilty the President can remove).

Role of UPSC

- It acts as a 'watchdog of merit system in India', as envisioned in the Constitution of India.
- It is just concerned with the recruitment to All-India Services, and also advises the govt. on promotion and disciplinary matters when consulted.

It should be noted here that, UPSC is not an

authority to deal with classification of services, pay and service conditions, training, cadre-management etc. These matters are handled by Department of Personnel and Training.

Therefore, UPSC is just the Central Recruiting agency while the Department of Personnel and Training is the Central Personnel agency.

Independence of UPSC

The Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of UPSC:

- (1) Security of Tenure: The chairman or member of UPSC can be removed from the office by the President only in the manner and grounds mentioned in the Constitution of India.
- (2) Security of Job Conditions: Even though the President decides the conditions of service of the Chairman and the members but he cannot change them afterwards to their disadvantage.
- (3) Entire expenses including the salaries, allowances and pensions of the chairman and members are charged on the Consolidated Fund of India.
- (4) Chairman cannot be re-employed in the Govt,



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not even on the same post. (This provision is with the exception of any constitutional post, which is not considered a job under the Constitution)

- The members are eligible for appointment as the Chairman of UPSC or a State Public Service Commission, but not for any other employment in the G.O.I or state.

Functions of UPSC :

- (1) It conducts exams for appointment to the All India Services, Public Services, Central Services. (of the Centrally administered territories)
- (2) It assists the state (if requested by 2 or more states to do so) in framing and operating schemes of joint recruitment of any services for which candidates possessing special qualifications are required.
- (3) It can serve any or all the needs of the state upon their Governor's request by permission of the President.
- (4) It consults the government upon matters related to Personnel management.
- (5) It presents, annually, a report on its performance to the President. The President then places

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this report before both the House of Parliament, along with a memorandum which explains the cases where Commission's advice was not accepted by the government with reasons for such non-acceptance.

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Constitutional Provisions

Article 315 : Public Service Commission for the Union and for the States.

Article 316 : Appointment and term of office of members.

Article 317 : Removal and Suspension of a member of a Public Service Commission.

Article 318 : Power to make regulations as to conditions of service of members and staff of the Commission.

Article 319 : Prohibition as to holding of offices of by members on ceasing to be such members.

Article 320 : Functions of Public Service Commissions.

Article 321 : Power to extend functions of Public Service Commissions.

Article 322 : Expenses of Public Service Commissions.

Article 323 : Reports of Public Service Commissions.

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